CHAPTER 9 | SCHOLARLY ARTICLE

A9.1 - James Monroe and the Era of Good Feelings

Harry Ammon

ARTICLE	James Monroe and the Era of Good Feelings
JOURNAL	The Virginia Magazine of History and Biography 66, no. 4 (1958)
EXCERPT	Original journal pages 387-388
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The Virginia Magazine
OF HISTORY AND BIOGRAPHY
VOL. 66 October 1958 NO. 4

JAMES MONROE AND THE ERA OF GOOD FEELINGS

by HARRY AMMON*

THE phrase, "Era of Good Feelings," so inextricably associated with the administration of James Monroe, was originally and most appropriately coined by a Federalist newspaper in Boston at the time of Monroe's visit to that city in 1817.[1] In view of the many intense and bitter political animosities which developed during his presidency, the ironical implications of this term have always been stressed, and much has been written to show that it was anything but an era of good feelings — at least as far as the inner history of the Republican Party was concerned. It is not the purpose of this paper to attempt a reassessment of the interpretation of the phrase which designates this era, but rather to analyze and illuminate the policies formulated by President Monroe in regard to the party trends of this period.

It may seem rather startling to some that Monroe should be presented as having had clear-cut policies on the major problems of his own day, for he has been portrayed as a somewhat indecisive figure.[2] This impression has arisen both from a lack of understanding of the man and of his methods in arriving at policy formulations. Not only was Monroe somewhat slow in reaching conclusions, but his approach to statecraft was vastly different from that of his two more famous colleagues in the Virginia Dynasty — Madison and Jefferson. Unlike his two fellow Virginians, Monroe was neither a philosopher nor a scholar. He viewed governmental problems from the standpoint of a practical politician. Because he possessed an unusual sensitivity to public opinion, Monroe's policies tended to be rather flexible. They

*Dr. Ammon is associate professor of history at Southern Illinois University, Carbondale, Illinois. A portion of this article was read on April 25, 1958, at the annual meeting of the Mississippi Valley Historical Association in Minneapolis, Minnesota.

[1]Boston *Columbian Centinel*, July 12, 1817, quoted in George Dangerfield, *The Era of Good Feelings* (New York, 1952), p. 95.

[2]*Ibid.*, pp. 100, 320.

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were never formulated in such a dogmatic form as to preclude compromise, although they manifested at all times a consistent direction. Fully aware, as he was, of the conflicting personal rivalries within his party, Monroe often found it essential to delay final decisions until he had won the support of various factional leaders. His supposed tendency to drift with the current was in fact a skilled adjustment of his program to the constantly shifting complexities of the political scene during his administration. John Quincy Adams, Monroe's Secretary of State, who was inclined to judge men harshly for what he deemed to be weaknesses of character, did not attribute this slowness to indecisiveness, but to the complexities of the political situation which confronted him.[3]

This approach to policy was fully apparent in the handling of one of the major party problems which confronted Monroe during his presidency, namely, the relationship between the parties. To this issue he gave much careful thought both before and after his inauguration. The idea of a reconciliation between the Federalists and the Republicans was not a concept which was original with Monroe, but one which was a widely discussed topic at this time. He had, after all, inherited a party which had advanced rather far on the road to Federalization having incorporated both the bank and the protective tariff into the Republican program. The possibility of a closer rapprochement between the two parties was contemplated without any misgivings by Federalists and Republicans alike. The Federalists not only realized that their party had been ruined by their opposition to the War of 1812 and by the unpleasant odor which surrounded the Hartford Convention, but the less irreconcilable members of that party, such as Harrison Gray Otis of Massachusetts, understood that there was really no longer any basis for an opposition, since the Republicans had taken over all (as they saw it) that was of permanent value in the Federalist program.[4] Otis had even anticipated the process of fusion with the Republicans by urging his friends to vote for Monroe in 1816 instead of wasting their ballots on Rufus King.[5] Only by a reconciliation with the opposition could the Federalists be relieved of the stigma of disloyalty which still hovered about them as a result of the recent conduct of the more rabid members of the party. Most Republicans like former President Madison readily acknowledged the shift that had taken place within the Republican party towards Federalist principles, and viewed the process without qualms. As he expressed it, the Republicans during the

[3]John Quincy Adams, *Memoirs*, ed. by Charles F. Adams (Philadelphia, 1874-1877), January 9, 1819, IV, 37.
[4]Samuel Eliot Morison, *Life and Letters of Harrison Gray Otis* (Boston, 1913), II, 201-202.
[5]*Ibid.*, II, 202.

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A9.1 | CITATION RECORD

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.2 - The Monroe Doctrine: Domestic Politics or National Decision?

Harry Ammon

ARTICLE	The Monroe Doctrine: Domestic Politics or National Decision?
JOURNAL	Diplomatic History 5, no. 1 (1981)
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The Monroe Doctrine: Domestic Politics or National Decision?

HARRY AMMON

With the publication in 1949 of Samuel Flagg Bemis's *John Quincy Adams and the Foundations of American Foreign Policy* it seemed that any possible controversy among historians over the origins of the Monroe Doctrine had been resolved.[1] As the first modern scholar with access to the Adams family papers, Bemis confirmed the conclusions reached by earlier scholars, notably Dexter Perkins and Arthur P. Whitaker.[2] Except for the noncolonization principle, clearly Adams's contribution, Bemis regarded the principles in President James Monroe's December 1823 message as a joint work of the president and the secretary of state. He saw the doctrine as the result of a great national decision. Domestic considerations, he believed, were relevant to the cabinet discussions of November 1823. However, probing extensively into the domestic aspects of the policy decision, he saw no reason to alter the conclusion reached by Perkins that the rejection of the British proposal of a joint policy statement was based on concepts of national interest and foreign policy objectives shared by Monroe and his advisers.[3] Bemis and other scholars have noted that Monroe and his secretaries were unwilling, to use John Quincy Adams's words, to appear as a "cockboat in the wake of the British man-of-war." They knew that the American people might not appreciate such close cooperation with the nation's recent enemy. The president and his advisers

[1] Hereafter cited as Bemis, *Foundations* (New York, 1949).

[2] Dexter Perkins, *The Monroe Doctrine, 1823–1826* (Cambridge, MA, 1927) in *Harvard Historical Studies*, vol. 29; and Arthur P. Whitaker, *The United States and the Independence of Latin America* (Baltimore, 1941).

[3] Perkins, *Monroe Doctrine*, p. 170. Perkins, after noting that the French chargé attributed Monroe's decision to the fact that all members of the cabinet with an eye to the election were seeking popularity by proving their republicanism and their courage, made this comment: "Whoever follows the cabinet debates of 1823 must, I think, arrive at the conclusion that something far more important than political advantage was the mainspring of the action that was taken; that Monroe and his advisers, Adams included, acted under a sense of solemn responsibility in what they deemed a perilous situation." See also Bemis, *Foundations*, pp. 406–8.

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were also aware that a joint declaration effectively would bar the United States from its cherished aim of acquiring Cuba. Bemis and his scholarly predecessors considered these circumstances not as determinants but merely as factors relevant to the decision-making process.[4]

This view of the Monroe Doctrine as a national decision, seemingly so firmly established, recently has been challenged in Ernest R. May's *The Making of the Monroe Doctrine*.[5] May does not question the conclusions of earlier scholarship about the authorship of the Monroe Doctrine; his concern is with the motives underlying the decision to reject the British proposal for a joint policy statement. He contends that the reaction of the president and his cabinet was shaped by the domestic political interests of each participant. As he states in his introduction, "the positions of the policy makers were determined less by conviction than by ambition. They had different stakes riding on the outcomes and Adams had a greater stake than others." According to May the key for understanding why the foreign policy debates came out as they did lies in the struggle for the presidency, for the Monroe Doctrine was "actually the by-product of an election campaign."[6]

Scholars writing in the late nineteenth century were preoccupied with issues arising from contemporary policies. At the turn of the century in the age of Big Stick Diplomacy, questions were asked regarding the intent of the doctrine, and the answers frequently reinforced existing national policies. In recent decades historians have become increasingly aware of the manipulation of foreign policy in the interest of political ambition, notably on the presidential level; and in the light of modern political behavior it is not surprising that scholars should raise questions about similar issues in an earlier age. However, historians prior to May have weighed this issue. Their failure to see domestic politics as the origin of the doctrine cannot be attributed to a reluctance to face up to such a possibility, for historians have long recognized the role personal rivalries played in the foreign policy of the Washington administration.

The reason that previous students of the doctrine have not adopted the theme of domestic politics for the Monroe Doctrine is that the direct evidence suggesting that personal ambition was a determinant is lacking. The sole source for the cabinet discussions of November 1823 is the diary of John Quincy Adams. Yet from his extensive account nothing can be cited that explicitly substantiates May's interpretation. As May admits in the introduction to his book, the evidence is "sparse and ambiguous."[7]

May's view rests, as he states, on "inference from circumstantial evidence."[8] And here one must be careful. Inference is a standard tool

[4]Bemis, *Foundations,* pp. 383–85.
[5]Cambridge, MA, 1975.
[6]May, *Monroe Doctrine* (Cambridge, MA, 1975), p. x.
[7]Ibid., p. x.
[8]Ibid., p. x.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.3 - Marriage, Morals, and Politics in the Election of 1828

Norma Basch

ARTICLE	Marriage, Morals, and Politics in the Election of 1828
JOURNAL	The Journal of American History 80, no. 3 (1993)
EXCERPT	Original journal pages 890-891
JSTOR	https://www.jstor.org/stable/2080408

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Marriage, Morals, and Politics in the Election of 1828

Norma Basch

And then about that Mrs. Robards affair—
That, too, they've told Adams and Clay—
Had it never *leaked* out, I'll make bold to declare
'Twould not be *known* to this day.
. . . . . .
Though every objection I've answered enough,
Still the Adams men jabber and squall,
'Bout militiamen—marriages—*morals & stuff,*
And war—and the deuce knows what all.

The foregoing verses, part of a longer piece of anti-Jackson doggerel entitled "Groanings," were created to deride Andrew Jackson's pique at losing the presidential election of 1828.[1] "Groanings," of course, turned out to be a form of wishful thinking; Jackson won the election, garnering almost 56 percent of the popular vote. Yet this ribald projection of his defeat reveals a good deal about the campaign. Signed appropriately enough with the pseudonym Trash, it exemplifies a narrow but virulent strain of anti-Jackson rhetoric that drew on Rachel Jackson's marital problems with her first husband, Lewis Robards, and her allegedly illicit union with the general. Some supporters of John Quincy Adams were clearly convinced that the voters would shrink from electing a candidate so tainted by marital scandal, and although the voters did not respond as anticipated, the Jacksons were deeply distressed by the public scrutiny of their private life. Rachel Jackson was already in declining health, but there is little reason to discount James Parton's assessment that the political exploitation of the Robards affair contributed to her death in December 1828. The new president neither forgave nor forgot the great personal price of the

Norma Basch is chair of the department of history at Rutgers University, Newark. Research for this essay was funded by an American Antiquarian Society–National Endowment for the Humanities fellowship. Earlier versions were presented at the American Studies Association annual meeting at Costa Mesa in November 1992 and at the New York University Law School Legal History Colloquium in November 1992.

I want to thank Scott Casper, Robert Gross, Annette Igra, Mary Kelley, Jan Lewis, Louis Masur, William Nelson, Elisabeth Perry, Carl Prince, Marylynn Salmon, David Thelen, and the referees of the *Journal of American History* for their insightful comments, and I want to express my indebtedness to Joanne Chaison, Georgia Barnhill, and the staff of the American Antiquarian Society for their generous assistance.

[1] *Truth's Advocate and Monthly Anti-Jackson Expositor* (June 1828), 235–36.

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exposure. He entered the White House in mourning over the loss of his beloved wife and embittered at "the Adams men" who had raked up the scandal.[2]

The broad outlines of the so-called Robards affair, at least as they were sketched by Jackson supporters, portrayed the Jacksons as the innocent victims of a petty legal misunderstanding. Andrew Jackson married Rachel Donelson Robards in Natchez on the lower Mississippi River some time in 1791 on the presumption that she had been divorced from Lewis Robards by the Virginia legislature, only to discover that what they both had believed was a formal divorce decree was merely an authorization for Robards to sue for divorce in a civil court. Robards, however, did not pursue his option until 1793 in the newly admitted state of Kentucky, which had previously fallen under the jurisdiction of Virginia. In 1794, after a final decree had been issued and the Jacksons came to understand that they were not legally married, they participated in a second marriage ceremony. Now in 1828, some thirty-seven years after their initial union, their innocent mistake was being distorted in the vituperative heat of partisan politics.[3]

Supporters of John Quincy Adams proffered a far more sinister script, which they documented with citations from Robards's divorce decree. Their version of the story, as they were quick to point out, faithfully followed the court's conclusion that "the defendant, Rachel Robards, hath deserted the plantiff, Lewis Robards, and hath and doth still live in adultery with another man."[4] The other man, of course, was Andrew Jackson, a candidate now for the nation's highest office. Substituting the treachery of seduction for the innocence of a courtship undertaken in good faith, they accused the general not only of the legal lapse of living with his lady in a state of long-term adultery but also of the moral lapse of being the paramour in the original divorce action. Rachel Jackson in her youth was depicted as not having been a lady at all, but as a loose, impetuous, and immoral woman who willingly cast off her lawful husband for an arrogant and impassioned young suitor. The political implications of her illicit union were readily apparent: a vote for Jackson was a vote for sin. By raising the prospect of a convicted adulteress and her paramour husband living together in the White House, the Adamsites transformed the circumstances of the Jacksons' marriage into an intense and gendered political controversy.

[2] James Parton, who interviewed the slave in whose arms Rachel Jackson expired, suggests she died of a heart condition aggravated by the stress of the campaign; see James Parton, *Life of Andrew Jackson* (3 vols., New York, 1860), III, 154. For the influence of her death on Andrew Jackson's subsequent defense of the maligned Peggy Eaton and his enduring enmity toward John Quincy Adams, see James C. Curtis, *Andrew Jackson and the Search for Vindication* (Boston, 1976).

[3] For the definitive pro-Jackson view, see *A Letter from the Jackson Committee of Nashville, in Answer to One from a Similar Committee, at Cincinnati, upon the Subject of Gen. Jackson's Marriage* (Nashville, Tenn., 1827). All the pamphlets, handbills, broadsides, and election ephemera cited here are, unless otherwise noted, available at the American Antiquarian Society, Worcester, Mass. For a meticulous assessment of the extant evidence related to the Jacksons' first marriage, see Harriet Chappell Owsley, "The Marriages of Rachel Donelson," *Tennessee Historical Quarterly,* 36 (Winter 1977), 479–92.

[4] [Charles Hammond], *View of General Jackson's Domestic Relations, in Reference to his Fitness for the Presidency* (Cincinnati, 1828), 15. See also *An Appeal to the Moral and Religious of All Denominations; or, An Exposition of some of the Indiscretions of General Andrew Jackson as Copied from Records and Certified by the Clerk of Mercer County Kentucky* (New York, 1828), 4.

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Bibliography entry

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.4 - The Origins of the Monroe Doctrine Revisited: The Madison Administration, the West Florida Revolt, and the No Transfer Policy

William S. Belko

ARTICLE	The Origins of the Monroe Doctrine Revisited: The Madison Administration, the West Florida Revolt, and the No Transfer Policy
JOURNAL	The Florida Historical Quarterly 90, no. 2 (2011)
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The Origins of the Monroe Doctrine Revisited: The Madison Administration, the West Florida Revolt, and the No Transfer Policy

by *William S. Belko*

Late in October of 1810, as citizens and statesmen throughout the United States focused almost entirely on an imminent conflict with Great Britain and apprehensively monitored Napoleon's armies in Europe, the president of the United States, James Madison, quickly convened an emergency session of his cabinet members. Great Britain and Napoleon were not, however, the reason for calling the secret cabinet meeting. What occupied the attention of the executive branch was a little recognized rebellion in a sparsely populated region south of the Mississippi Territory. Two days after secretly conferring with his cabinet, on October 27, Madison issued a pivotal presidential proclamation authorizing the U. S. occupation of the territory below the official U. S. border with Spanish Florida—the 31st parallel—and extending from the Mississippi River eastward to the Perdido River. Just weeks earlier, in late September of 1810, rebellious citizens, mostly recent American immigrants to the Baton Rouge area, declared their independence from Spain and dubbed themselves the West Florida Republic—the original Lone Star Republic. Within days of their precipitous declaration, the

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William S. Belko is an Associate Professor of History. He is the author of *The Invincible Duff Green: Whig of the West* (2006) and editor of *America's Hundred Years' War: U.S. Expansion to the Gulf coast and the Fate of the Seminole, 1763-1858* (2011). His current book, *The Triumph of the Antebellum Free Trade Movement* will be published by University Press of Florida.

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rebels requested the protection of and annexation by the United States. President Madison, motivated by a number of "weighty and urgent considerations," deemed it "right and requisite" that the United States accept that invitation, and, accordingly, the Virginian unilaterally ordered the governor of the Orleans Territory, William C. C. Claiborne, to mobilize the territorial militia and enter into and exercise over the newly acquired region the "authorities and functions legally pertaining to his office." Under the protection of the United States, the "good people" of the liberated Spanish territory were thus "invited and enjoined to pay due respect" to the new governor, and "to be obedient, to maintain order, to cherish harmony, and in every manner to conduct themselves as peaceable citizens, under full assurance that they will be protected in the enjoyment of their liberty, property, and religion."[1]

Few Americans know of this seemingly obscure presidential action seizing the "boot heels" of the present states of Alabama and Mississippi and the state of Louisiana east of the Mississippi River from Baton Rouge to the Pearl River. But Madison's actions, taken only seven years after the Louisiana Purchase and nine years prior to the U. S. acquisition of all of Spanish Florida, initiated one of the more consequential territorial acquisitions in American history. Indeed, Madison's ostensibly innocuous exploit provided the ideological foundation and the diplomatic justification for future annexation of foreign territory, from Spanish Florida in 1818 to nearly all of Mexico in 1848, and ultimately Alaska, Hawaii and Cuba in the late nineteenth century. The pivotal policy which Madison ultimately handed the United States—the No Transfer policy—served as an integral ingredient of the famous Monroe Doctrine of 1823, and beginning with the post-Civil War era, became a prominent component of U. S. foreign policy extending well into the twentieth century.

As soon as Madison assumed the presidency in March of 1809, activities and intrigues in Spanish Florida, and throughout the entire Spanish empire in the Western Hemisphere for that matter, attracted the attention of the U. S. government. From 1801 to 1809, President Thomas Jefferson had undertaken a rather confused and inconsistent foreign policy in relation to the region separating the United States from the Gulf of Mexico east of the Mississippi River. His secretary of state, James Madison, was intimately involved in

1. Madison to 11th Congress, October 27, 1810, in James D. Richardson, ed., *A Compilation of the Messages and Papers of the Presidents, 1789-1897* (Washington, D.C.: Government Printing Office, 1896), 1: 480-81.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.5 - Pennsylvania Banks and the Panic of 1819: A Reinterpretation

Robert M. Blackson

ARTICLE	Pennsylvania Banks and the Panic of 1819: A Reinterpretation
JOURNAL	Journal of the Early Republic 9, no. 3 (1989)
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PENNSYLVANIA BANKS AND THE PANIC OF 1819: A REINTERPRETATION

Robert M. Blackson

The Panic of 1819 was the first in a series of major financial crises which impeded American economic development during the nineteenth century. The few published studies of the panic emphasized its devastating effects at the expense of critical analyses of the causes, which were interpreted primarily as either domestic or foreign in origin. Proponents of domestic causes underscored the rapid expansion after the War of 1812 in various sectors of the American economy including banking, internal improvements, domestic commerce, and agriculture. The banking community fueled the expansion with liberal note issues until the overextended Second Bank of the United States sparked the financial crisis with a precipitous contraction program in 1818.[1] When historians viewed the United States as a component of the larger Atlantic economy, they often emphasized foreign origins for the panic. Studies conceived within this broader context identified increased imports swelled by foreign dumping, a mounting foreign indebtedness, the continued export of specie, and intranational efforts to restore specie-based currencies as significant international or foreign factors. Finally, the loss of foreign markets for American agricultural

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Mr. Blackson is a member of the Department of History at Kutztown University, Kutztown, Pennsylvania.

[1] Murray N. Rothbard, *The Panic of 1819: Reactions and Policies* (New York 1962), 1-23; Samuel Rezneck, "The Depression of 1819-1822: A Social History," *American Historical Review*, 39 (Oct. 1933), 28-47; Dorothy B. Dorsey, "The Panic of 1819 in Missouri," *Missouri Historical Review*, 29 (Jan. 1935), 79-91; Leon M. Schur, "The Second Bank of the United States and the Inflation after the War of 1812," *Journal of Political Economy*, 68 (Apr. 1960), 118-134; J. Van Fenstermaker, *The Development of American Commercial Banking: 1782-1837* (Kent, Ohio 1965), 14, 53-54, 70.

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staples initiated the period of economic distress.[2] Historians who emphasized international developments, like advocates of domestic causes, often placed some responsibility for the panic with the banks. They charged that irresponsible loans and note issues by the banks contributed to the subsequent financial crisis. Walter Buckingham Smith and Arthur Harrison Cole, for example, noted that "many banks exercised little caution in the volume of their note issue." More specifically, they reported, "In 1817 and 1818, we find that the State banks . . . greatly expanded their note issues and their advances to borrowers. Quantitatively this bank expansion was large . . . ."[3]

Most studies of the Panic of 1819 cited primary sources containing extensive qualitative information. These manuscripts, newspapers, and public documents echoed the complaints of individuals during the hard times, including their hostility toward the banks, which was reinforced in Pennsylvania by the political battle between New School and Old School Democrats.[4] The banks became a whipping boy, and historians have succumbed to the antibank sentiments contained in numerous sources. A more balanced interpretation of state banking in Pennsylvania can be developed by approaching the subject from angles which have been either ignored or developed only recently. One aspect is an appreciation for the historical context, which requires judgments based upon early nineteenth-century banking theory and popular expectations. Another important consideration is the collective record of the Pennsylvania banks' monetary activities. The latter perspective provides a quantitative measure of the chartered banks' performance. Certainly, like other states, Pennsylvania contributed to an expansion in the number of banks, but in the light of a fresh analysis the

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[2] Thomas H. Greer, "Economic and Social Effects of the Depression of 1819 in the Old Northwest," *Indiana Magazine of History*, 44 (Sept. 1948), 227-243; George Dangerfield, *The Era of Good Feelings* (1952; rep. New York 1963), 175-196; George Rogers Taylor, *The Transportation Revolution, 1815-1860* (1951; rep. New York 1968), 334-338; Walter Buckingham Smith and Arthur Harrison Cole, *Fluctuations in American Business, 1790-1860* (Cambridge, Mass. 1935), 19-21, 23, 28-33, 37; Douglass C. North, *The Economic Growth of the United States, 1790-1860* (1961; rep. New York 1966), 70-71, 86-87, 177-188; William Edward Folz, "The Financial Crisis of 1819: A Study in a Post-War Economic Readjustment" (Ph.D. diss., University of Illinois 1935).

[3] Smith and Cole, *Fluctuations in American Business*, 32, 29.

[4] Kim T. Phillips, "Democrats of the Old School in the Era of Good Feelings," *Pennsylvania Magazine of History and Biography*, 95 (July 1971), 363-382, and "The Pennsylvania Origins of the Jackson Movement," *Political Science Quarterly*, 91 (Fall 1976), 491-497.

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Bibliography entry

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.6 - From Old Hickory to Sly Fox: The Routinization of Charisma in the Early Democratic Party

Thomas Brown

ARTICLE	From Old Hickory to Sly Fox: The Routinization of Charisma in the Early Democratic Party
JOURNAL	Journal of the Early Republic 11, no. 3 (1991)
EXCERPT	Original journal pages 339-340
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FROM OLD HICKORY TO SLY FOX: THE ROUTINIZATION OF CHARISMA IN THE EARLY DEMOCRATIC PARTY

Thomas Brown

As Marvin Meyers has written, "Old Hero and Sly Fox should be adversaries in a morality fable."[1] That, in reality, Andrew Jackson and Martin Van Buren were not foes, but personal and political allies, is a fascinating and much-noted paradox. Considerable attention has been devoted to the contrasting but complementary roles of these two men in the creation of the Democratic party—Jackson's as its heroic progenitor, Van Buren's as its masterful organization builder.[2] We do not understand fully, however, what

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Thomas Brown is a member of the department of history at the University of Detroit Mercy. He is the author of *Politics and Statesmanship: Essays on the American Whig Party* (1985). The author would like to acknowledge that research on this article was made possible by a Peterson Fellowship from the American Antiquarian Society and a Travel-to-Collections Grant from the National Endowment for the Humanities. He would also like to express his thanks for the assistance and constructive criticism of Peter Hoffer, Ari Hoogenboom, William W. Stueck, Mark Summers, and the anonymous referees.

[1] Marvin Meyers, *The Jacksonian Persuasion: Politics and Belief* (Stanford, Cal. 1957), 142.

[2] The best studies are Robert V. Remini, *Martin Van Buren and the Making of the Democratic Party* (New York 1959), and Remini, *The Election of Andrew Jackson* (Philadelphia 1963). There is also much of value in Donald B. Cole, *Martin Van Buren and the American Political System* (Princeton, N.J. 1984), chs. 6-8, and John Niven, *Martin Van Buren: The Romantic Age of American Politics* (New York 1983), chs. 14-22. Throughout this essay, I refer to the pro-Jackson party as Democratic, even though the party's name varied from Republican, to Democratic Republican, to simply Democratic. My choice is mainly for reasons of consistency; it also reflects the usage the Jacksonians themselves finally agreed upon.

JOURNAL OF THE EARLY REPUBLIC, 11 (Fall 1991). © 1991 Society for Historians of the Early American Republic.

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was perhaps the most important aspect of the relationship between them: Van Buren's emergence as Jackson's successor for the leadership and presidential candidacy of the Democrats. This gap in our knowledge exists, in good part, because Van Buren's accession was intricately related to the complex process whereby some of the partisan followers of Jackson attempted to institutionalize Jackson's personal charisma in the national Democratic party.

Any mention of charisma, given the prevalent overuse and misuse of the word, is bound to arouse misgivings. In everyday discourse, charisma has become a commodity serviceable for enhancing the vendibility of mouthwash and toothpaste. Max Weber's own writings on the concept have contributed to the confusion and misunderstandings that mar most uses of it today. But recent scholarship on charisma, along with a close scrutiny of Weber's work on the subject, have given it a degree of rigor that makes it a valuable analytical tool in the study of political and social movements.[3] Weber defined charisma as "a certain quality of an individual personality by virtue of which he is considered extraordinary and *treated as endowed* with supernatural, superhuman, or at least specifically exceptional qualities."[4] The relevant point about this definition is that, contrary to prevailing belief, charisma is not a quality that inheres in the charismatic leader, independently of historical or social context. Rather, charisma is *ascribed to* the leader by his followers; as Weber himself observed, "it is recognition on the part of those subject to authority which is decisive for the validity of charisma."[5] Weber suggested that charismatic leaders are most likely to emerge and attract large followings in periods of crisis and difficulty, when traditional and legal authorities lose their hold on public support.[6] It is at such times, as Ann Willner has written, that many people will

[3] See especially Reinhard Bendix, *Max Weber: An Intellectual Portrait* (1960; rep., Berkeley 1978), ch. 10; S. N. Eisenstadt, ed., *Max Weber on Charisma and Institution Building* (Chicago 1968); Charles Lindholm, *Charisma* (Cambridge, Mass. 1990); Ann Ruth Willner, *Charismatic Political Leadership* (Princeton 1968); and Willner, *The Spellbinders: Charismatic Political Leadership* (New Haven, Conn. 1984).

[4] Max Weber, *Economy and Society: An Outline of Interpretive Sociology*, ed. Guenther Roth and Claus Wittich (3 vols., New York 1968), I, 241 [emphasis added].

[5] *Ibid.*, I, 242.

[6] *Ibid.*, I, 244-245. See also Bendix, *Max Weber*, 300-301, and Willner, *Charismatic Leadership*, ch. 3. As Willner points out, however, the existence of a crisis is not a *necessary* condition for the emergence of charismatic leaders. *Spellbinders*, 10.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.7 - John Marshall, the Virginia Political Economy, and the Dartmouth College Decision

Bruce A. Campbell

ARTICLE	John Marshall, the Virginia Political Economy, and the Dartmouth College Decision
JOURNAL	The American Journal of Legal History 19, no. 1 (1975)
EXCERPT	Original journal pages 40-41
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John Marshall, the Virginia Political Economy, and the *Dartmouth College* Decision

by BRUCE A. CAMPBELL*

In 1819, the United States Supreme Court announced its decision in the case of *Trustees of Dartmouth College v. Woodward*. In his opinion for the Court, Chief Justice John Marshall set forth what has come to be known as the *Dartmouth College* doctrine—the rule that the charter of a private corporation was a contract protected by the federal constitution from arbitrary legislative amendment or repeal. Public corporations enjoyed no such protection. Although the distinction between "public" and "private" corporations was not as clearly drawn as might be wished, Marshall stated in general terms that the contracts clause extended to "contracts respecting property under which some individual could claim a right to something beneficial to himself," and indicated that a private corporation was one "endowed with a capacity to take property, for objects unconnected with government, whose funds are bestowed by individuals on the faith of the charter."[1] Because of the importance of the element of private property in his definition, Marshall plainly intended the category of "private corporations" to include business corporations.[2] Indeed, both the structure and terms of Marshall's opinion indicate that the Chief Justice simply *assumed* that the contracts clause em-

*Law Clerk to Judge Noel P. Fox, U.S. District Court for the Western District of Michigan, Grand Rapids, Michigan.

1. *Trustees of Dartmouth College v. Woodward,* 4 Wheat. 518, 628, 630 (1819).

2. In the early national period, corporations served a wide variety of functions and were organized and controlled along many different legal lines. Functionally, public and private were not sharply differentiated. Profit-making corporations graded into non-profit mutual insurance companies and charitable and governmental institutions which provided economically valuable services. Thus, it has proved impossible to frame a definition of "business corporation" which would unequivocally divide this category of corporation from all others. The term "business corporation" is used here to mean a corporation created primarily for the purpose of making money for its owners.

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braced the charters of business corporations.[3] The major legal issue in *Dartmouth College* was whether the clause also protected the charters of privately founded charitable institutions.[4]

Most modern authorities agree that a judge's extra-judicial experience profoundly influences his reading of the law, the content of his opinions, and his decisions. For this reason the life of Chief Justice Marshall holds a continuing fascination for historians, political scientists, and constitutionalists alike. However, none of these has adequately explored Marshall's experience with Virginia business corporations after 1801.[5] The purpose of this article is to fill this gap in our knowledge of the great Chief Justice and to offer an explanation of why Marshall so readily assumed that the contracts clause of the federal constitution extended to business corporations.

I

The basic features of Marshall's life in Virginia are easily identifiable. He spent most of his adult life in Richmond, almost

3. Some analysts have argued that the *Dartmouth College* decision was not intended to embrace business corporations. See, e.g., Gerald T. Dunne, *Justice Joseph Story and the Rise of the Supreme Court* (1970), 179-180. This position is untenable. The terms, logic, and structure of all three opinions filed in the case argue against it. Washington's discussion of "the different kinds of lay aggregate corporations, in order to prevent any implied decision by this court of any other case, than the one immediately before it," 4 Wheaton, 659-664, was intended to be notice that the Virginia Court of Appeals' decisions that William and Mary was a public corporation were not being challenged or overruled by implication. See *Bracken v. Visitors of William and Mary College*, 3 Call. 573 (Va., 1790); *Bracken v. William and Mary College*, 1 Call. 161 (Va., 1797).

4. This author has argued elsewhere that *Dartmouth College* was essentially a civil liberties case in which the Supreme Court used its constitutional power to protect private educational institutions from harassment by governmental authorities. "Law and Experience in the Early Republic: The Evolution of the Dartmouth College Doctrine, 1780-1789" (Ph.D. diss., Mich. State Univ., 1973). This article is a revised version of Chapter V of the dissertation. Many references to secondary sources have been deleted in this article because of a lack of space. Readers are referred to the dissertation for more complete citations.

5. Marshall's legal career and business affairs before his appointment to the Supreme Court have been covered by Albert J. Beveridge, *Life of John Marshall*, esp. 2 (1916): Ch. V. Beveridge is not so complete, however, with regard to Marshall's affairs after 1800. He states that Marshall "seems to have left to his brother and partner, James M. Marshall, the practical handling of his business affairs" after the Fairfax deal. *Ibid.*, 173, n. 2.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.8 - The Debate over the Panama Congress and the Origins of the Second American Party System

Andrew R. L. Cayton

ARTICLE	The Debate over the Panama Congress and the Origins of the Second American Party System
JOURNAL	The Historian 47, no. 2 (1985)
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The Debate over the Panama Congress and the Origins of the Second American Party System

By
ANDREW R. L. CAYTON*

FOREIGN policy has often been a divisive issue in American politics, and never more so than in the early years of the republic. Historians have long noted the role of international relations in precipitating and defining the conflicts of Federalists and Jeffersonians. Not so well-known, however, is the similar, if less spectacular, role that foreign policy played in the origins of the Second American Party System. If, by the 1820s, the first generation of Americans had demonstrated the viability of the United States and secured the Revolution, they had failed to forge a consensus about how that republic should function and what principles it should exemplify.

Nothing reveals this lack of agreement more than the prolonged debate over United States relations with the emerging nations of Latin America. Seeing growing markets and potential republics to the South, some Anglo-Americans sought close ties with the Hispanic Americans and emphasized the similarity of their experiences. Others, fearing the new nations as potentially powerful rivals and critics, noted intense differences between Anglo and Spanish Americans as obstacles to friendly relations. Originating in economic and political interests, the question of how the United States should deal with the former Spanish colonies was part of a long process of definition for Americans.

The debate testifies to how fragile Americans thought their republic was, even in the 1820s, and it demonstrates the tenacity of ideological perspectives formed during the American Revolution. Despite their increasingly partisan behavior, many American leaders in the 1820s saw themselves as engaged in a never-ending struggle to preserve the republic by protecting it from the ambitious schemes of apostates. What was at issue in the debate over how to deal with the Latin Americans was much more than diplomacy or politics—the basic concern of the participants was with defining the nature and responsibilities of the government of the United States.

*The author is Assistant Professor of History at Ball State University.

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The Historian

I

The "intemperate discussion" produced by President John Quincy Adams' December, 1825 request that the Senate confirm the nominations of Richard C. Anderson, Jr., of Kentucky and John Sergeant of Pennsylvania as ministers plenipotentiaries to the Congress of American Nations at Panama fully reveals the depth of American disagreement. President Adams hoped that Simon Bolivar's proposed Congress of Nations would adopt principles of liberal commercial intercourse and maritime neutrality, further religious toleration, bring world peace closer, and strengthen inter-American friendship. But the opponents of the mission saw the nominations as provoking what Congressman James K. Polk called a "crisis in the history of this country." "Every Patriot should be at his post," Polk warned. Indeed, the debate over North American attendance at the Panama Congress, claimed a pro-mission New York newspaper, was a subject of "extraordinary magnitude," one of "the most difficult and delicate since the commencement of our glorious revolution."[1]

Why were some Americans so upset by the proposed mission? Why did men like Martin Van Buren and John C. Calhoun go to such lengths to prevent its occurrence?

Traditional answers begin with politics. President Adams and his Secretary of State, Henry Clay, saw the "protracted and heated debate" over United States participation in the Panama Congress as completely partisan in origin. Generally agreeing with these assertions, historians have viewed the crisis over Panama as either a diplomatic anti-climax to the Monroe Doctrine or one of many political harbingers of the Jacksonian period. "Seldom in our history," concluded the diplomatic historian John Logan, "has there been so little discussion of the intrinsic merits of the case, and so much sheer partisanship."[2]

The nominations did draw "every loose element of opposition" to Adams into an alliance that eventually united behind Andrew Jackson's candidacy in 1828. With the virtual disappearance of the

[1]Thomas Hart Benton, *Thirty Years' View*, 2 vols., (New York, 1854), 1: 69; John Quincy Adams to the U.S. Senate, 26 December 1825, J. D. Richardson, ed., *A Compilation of the Messages and Papers of the Presidents*, 20 vols., (New York, 1897), 3: 886; James K. Polk, *Register of Debates in Congress*, 14 vols., (Washington, 1825-1837), 2: 2478; unidentified New York City newspaper quotation in Francis L. Reinhold, "New Research on the First Pan-American Congress Held at Panama in 1826," *Hispanic American Historical Review* 18 (August 1938): 348.

[2]John Logan, Jr., *No Transfer: An American Security Principle* (New Haven, 1961), 188, 173-197. On the Panama Congress and North American participation, see also, Samuel Flagg Bemis, *John Quincy Adams and the Foundations of American Foreign Policy* (New York, 1949); and Dexter Perkins, *The Monroe Doctrine, 1823-1826* (Cambridge, Mass., 1927), 204-22.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.9 - John Quincy Adams and the Monroe Doctrine: Some New Evidence

Edward P. Crapol

ARTICLE	John Quincy Adams and the Monroe Doctrine: Some New Evidence
JOURNAL	Pacific Historical Review 48, no. 3 (1979)
EXCERPT	Original journal pages 413-414
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Notes and Documents

John Quincy Adams and The Monroe Doctrine: Some New Evidence

Edward P. Crapol

The author is a member of the history department in the College of William and Mary.

Since the late nineteenth century historians have debated a number of issues surrounding the announcement of the Monroe Doctrine in 1823. One source of controversy has been the question of authorship of the famous declaration. Who was responsible for the principles of non-colonization and non-intervention? Was it John Quincy Adams, James Monroe, or possibly Thomas Jefferson?[1] Or did the doctrine incorporate the thinking of a number of national leaders?[2] The reasons for the declaration and its purposes have provided another area of contention and disagreement. Was it in response to Russian designs on the Northwest coast? Was it aimed at the European nations that threatened to intervene in Latin America to restore to Spain its

[1]The original case for Adams was presented by Worthington C. Ford, "Some Original Documents on the Genesis of the Monroe Doctrine," *Massachusetts Historical Society Proceedings*, XV, second series (1902), 373–436, and "John Quincy Adams and the Monroe Doctrine," *American Historical Review*, VII–VIII (1902), 676–696, 28–52. Recent advocates of Adams include: Harold E. Bergquist, Jr., "John Quincy Adams and the Promulgation of the Monroe Doctrine, October–December 1823," *Essex Institute Historical Collections*, III, (1975), 37–52; Howard I. Kushner, *Conflict on the Northwest Coast, American-Russian Rivalry in the Pacific Northwest, 1790–1867* (Westport, Conn., 1975), 53–58. William A. MacCorkle contended Monroe originated the declaration in *The Personal Genesis of the Monroe Doctrine* (New York, 1923), 3. See also Harry Ammon, *James Monroe, The Quest for National Identity* (New York, 1971), 491. The argument for Jefferson was made by T. R. Schellenberg, "Jeffersonian Origins of the Monroe Doctrine," *Hispanic American Historical Review*, XIV (1934), 1–31.

[2]For a discussion of the doctrine as the work of several leaders, see Samuel Flagg Bemis, *John Quincy Adams and the Foundations of American Foreign Policy* (New York, 1949), 407–408.

Pacific Historical Review

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colonies? Or was it directed against British commercial and imperial ambitions in the western hemisphere? Perhaps it was some combination of these factors? Virtually every explanation has had its champion, and recently one noted historian has argued that foreign policy considerations were not of primary importance, for the doctrine may best be understood in the context of domestic politics and the upcoming presidential campaign of 1824.[3]

A letter of John Quincy Adams to Richard Rush of September 17, 1831, long overlooked by diplomatic historians, provides some answers to these questions. Less than eight years after the event, Adams, at present generally acknowledged as the author of the non-colonization principle and the chief architect of the doctrine, explained to his old friend what he believed had been his part in the formulation and strategy of "Mr. Monroe's declaration of Decr 1823." The succinct explanation presented by Adams in this letter should clarify a number of disputed points and hopefully put to rest several historical controversies that have waxed and waned over the past century concerning the purposes of the declaration.

Excerpt[4]

Richard Rush Esq. York—Pennsylvania

Quincy 17 September 1831

My dear Sir.

I sent you some days since a copy of my eulogy upon Mr. Monroe, intending to have enclosed with it a reply to your two kind letters of 31. July and 18. Augt. . . .

Mr. Monroe's declaration in the message of 2 Decr 1823, to which you allude, was my own work. I wrote that paragraph of the message, and I think he adopted it without alteration. The Declaration itself was first made in a secret communication from me to Baron Tuyll, the Russian Minister. I proposed to Mr. Monroe that it should be made, and after some hesitation and deliberate reflection he agreed to it—Your secret conferences with Mr. Canning and mine with Baron Tuyll both concurred in leading to it—Its first object was to present to the Emperor Alexander a prevailing *motive*, to recede from his pretensions on the Northwest Coast of America by presenting a principle which he would consider as bearing chiefly upon Great Britain, and which would fall in with his feelings towards her at that time. Its Second purpose was as you judged—a warning to Great Britain herself. I believed the principle itself perfectly sound, and that it comported with the dignity and justice of the United States to assume it—With the Emperor of Russia, it was completely successful. You know what its effect was upon Canning. . . .

Truly yours J Q Adams

[3]Ernest R. May, *The Making of the Monroe Doctrine* (Cambridge, 1975).

[4]Most of this four page letter is devoted to a discussion of Antimasonry. The original is in the James Monroe Papers, Swem Library, College of William and Mary. A letterbook copy is contained in the Adams Papers, microfilm edition, Reel #150. I wish to thank Ellen Strong for bringing this letter to my attention.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.10 - The Constitution in the Supreme Court: State and Congressional Powers, 1801-1835

David P. Currie

ARTICLE	The Constitution in the Supreme Court: State and Congressional Powers, 1801-1835
JOURNAL	The University of Chicago Law Review 49, no. 4 (1982)
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The Constitution in the Supreme Court: State and Congressional Powers, 1801-1835

David P. Currie†

This article is the third installment of an attempt to analyze and criticize the constitutional work of the Supreme Court in historical sequence, from the lawyer's point of view.[1]

In the twelve years of its existence before the appointment of John Marshall as Chief Justice, the Supreme Court began to develop lasting principles of constitutional adjudication, but it decided few significant constitutional questions. In the first decade of Marshall's tenure, apart from *Marbury v. Madison*,[2] the Court's constitutional docket consisted almost entirely of relatively minor matters respecting the powers of the federal courts. Although im-

† Harry N. Wyatt Professor of Law, University of Chicago. I should like to thank my colleagues Frank Easterbrook, Richard Epstein, Richard Helmholz, Dennis Hutchinson, Stanton Krauss, Philip B. Kurland, Phil C. Neal, Rayman Solomon, and James B. White for their helpful comments and encouragement, and Locke Bowman and Paul Strella, Chicago class of 1982, for their valuable research assistance.

[1] *See* Currie, *The Constitution in the Supreme Court: 1789-1801*, 48 U. CHI. L. REV. 819 (1981) [hereinafter cited as Currie, *Supreme Court, 1789-1801*]; Currie, *The Constitution in the Supreme Court: The Powers of the Federal Courts, 1801-1835*, 49 U. CHI. L. REV. 646 (1982) [hereinafter cited as Currie, *Federal Courts, 1801-1835*]. These articles form the beginning of a study to be published in book form by The University of Chicago Press.

[2] 5 U.S. (1 Cranch) 137 (1803).

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portant issues of federal jurisdiction confronted the Justices until Marshall's death in 1835, after 1810 the constitutional docket was dominated for the first time by cases raising important substantive issues respecting state and congressional powers: *Fletcher v. Peck*,[3] *McCulloch v. Maryland*,[4] *Gibbons v. Ogden*,[5] *Brown v. Maryland*,[6] *Trustees of Dartmouth College v. Woodward*,[7] and many others. These decisions are the subject of the present article.

With the replacement of the old Federalists William Cushing and Samuel Chase by Gabriel Duvall and Joseph Story in 1811, the Court consisted of two Justices appointed by President Adams—Marshall and Bushrod Washington—and five appointed by Presidents Jefferson and Madison—William Johnson, Brockholst Livingston, Thomas Todd, Duvall, and Story. These seven men were to sit together until 1823.[8] As on jurisdictional issues,[9] they were to speak with remarkable unanimity on other constitutional questions, and usually through the medium of Marshall himself. Major differences of opinion first surfaced in *Ogden v. Saunders*[10] in 1827; they became increasingly frequent as Marshall's earlier colleagues were supplanted by Smith Thompson, Robert Trimble, John McLean, and Henry Baldwin,[11] and at the end of the Marshall period three important constitutional cases had to be put off until the Taney period[12] because the illness of Duvall and Johnson prevented any decision from commanding a majority of the whole Court.[13]

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[3] 10 U.S. (6 Cranch) 87 (1810).

[4] 17 U.S. (4 Wheat.) 316 (1819).

[5] 22 U.S. (9 Wheat.) 1 (1824).

[6] 25 U.S. (12 Wheat.) 419 (1827).

[7] 17 U.S. (4 Wheat.) 518 (1819).

[8] The terms of the Justices as well as their political party affiliations and the names of the Presidents who appointed them are given in G. GUNTHER, CASES AND MATERIALS ON CONSTITUTIONAL LAW app. A, at A-1 to A-2 (10th ed. 1980). The terms of the Justices of the Marshall era are presented graphically in Currie, *Federal Courts, 1801-1835*, *supra* note 1, at 649 n.26.

[9] *See generally* Currie, *Federal Courts, 1801-1835*, *supra* note 1.

[10] 25 U.S. (12 Wheat.) 213 (1827).

[11] For a chronology of the Justices, see sources cited *supra* note 8. James Wayne sat with Marshall during the Chief Justice's last term in 1835, *see* 34 U.S. (9 Pet.) v (1835), but the Court was shorthanded that year and decided no constitutional cases, *see infra* note 13.

[12] Appointed by President Jackson in 1836, Roger Taney remained Chief Justice until his death in 1864. *See* G. GUNTHER, *supra* note 8, app. A, at A-2.

[13] Briscoe v. Commonwealth's Bank, 33 U.S. (8 Pet.) 118, 122 (1834) (also withholding judgment in *Mayor of New York v. Miln*) ("The practice of this court is, not (except in cases of absolute necessity) to deliver any judgment in cases where constitutional questions are involved, unless four judges concur in opinion, thus making the decision that of a majority of the whole court." *Id.*). Story and Charles Warren reported, without citation, that the

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.11 - Carlos de Alvear and James Monroe: New Light on the Origin of the Monroe Doctrine

Thomas B. Davis Jr.

ARTICLE	Carlos de Alvear and James Monroe: New Light on the Origin of the Monroe Doctrine
JOURNAL	The Hispanic American Historical Review 23, no. 4 (1943)
EXCERPT	Original journal pages 632-633
JSTOR	https://www.jstor.org/stable/2507861

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CARLOS DE ALVEAR AND JAMES MONROE: NEW LIGHT ON THE ORIGIN OF THE MONROE DOCTRINE

The circumstances under which the Monroe Doctrine was drafted, and the contributions of the several statesmen who helped to formulate it, always will have interest to the historians of the New World, not to mention those of the Old World. For years scholars have disputed the precise reasons why President Monroe took the stand he did. Our knowledge of the discussions of Monroe with his cabinet officers preceding the famous pronouncement of 1823 has been drawn mostly from the famous *Memoirs* of Secretary of State John Quincy Adams, and from his private papers as presented by Worthington C. Ford. These sources show the Secretary of State as adamant as Chimborazo in favor of an American system, separate from the political controversies and wars of Europe, while the President vacillates, yielding finally to the counsel of his Secretary.

Monroe himself left few records of the consultations, or his deliberation. His recorded comments to his associates, insofar as preserved by them, are general in nature. He left no diary to tutor posterity on the acuteness of his perception and the wisdom of his policy. Scholars have contented themselves with inferring what *may have been* in the mind of the President when he prepared his notable message. We therefore welcome any additional source which may reflect what the President had in mind when he prepared his message, what the situation was which he thought he faced in 1823, and why he chose the solution so strongly urged by his Secretary of State. Fortunately we have such a source, to be sure not the President's own words, but his account of the Monroe Doctrine as told for the benefit of the first Minister to the United States from the United Provinces of the Río de la Plata.

Although known to Argentine scholars, the missions of Carlos de Alvear to the United States and his interviews of

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October, 1824, with President James Monroe have escaped the attention of historians in this country until very recently,[1] and it still remains to give a full account of them. It is the purpose of this paper to present Monroe's own exegesis of the historical setting of his own Doctrine, and to analyze his statements in the light of what we already know about the immediate origin of the Monroe Doctrine. In doing so, we shall have to bear in mind constantly that Monroe was speaking to a diplomatic purpose, rather than for the benefit of historical scholars.

General Carlos de Alvear, almost unknown in the United States, yet widely honored in Argentina as a leader in the War for Independence, was born in the distant Province of Misiones during the years that his distinguished father, a native of Spain, sought to adjust in that area the disputed boundaries with Portugal. Attempting to return to Spain after a lengthy tour of duty, the father and son were held as prisoners of war in England. When Spain made common cause with England against Napoleon, Don Diego de Alvear and young son, now of military age, enrolled in the Spanish service, and in succeeding years they fought worthily against the French invaders.

Revolts in La Plata aroused in young Carlos a latent patriotism for his native land, and casting aside his previous devotion to the Spanish crown, he secured his inheritance and promptly devoted himself and his fortune to the cause

[1] Photographic reproductions of the diplomatic correspondence relating to the 1824 mission of Alvear and his later mission in Washington during the period of Rosas are now in the Congressional Library. These photographs were secured for the Library through the intercession of Professor S. F. Bemis, who saw the originals in the Archivo General de la Nación while he was visiting in Buenos Aires in 1938. All these documents, besides other archival material in Buenos Aires, I have consulted while travelling on a grant from the Division of Cultural Relations of the State Department. This article represents a summary of one phase of Carlos de Alvear's reception in 1824 in Washington, where he secured lengthy interviews both with President Monroe and with Secretary of State John Q. Adams. His conference with Secretary of State Adams will be set forth at length in a study of Alvear's diplomatic career.

Professor A. P. Whitaker mentioned these interviews in his recent work on *The United States and the Independence of Latin-America, 1810-1830.* When he learned that I had been working on the diplomatic career of Carlos de Alvear, he generously left it to me to present this account.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.12 - Congressional Debate on Slavery and the Declaration of Independence, 1819-1821

Philip F. Detweiler

ARTICLE	Congressional Debate on Slavery and the Declaration of Independence, 1819-1821
JOURNAL	The American Historical Review 63, no. 3 (1958)
EXCERPT	Original journal pages 598-599
JSTOR	https://www.jstor.org/stable/1848882

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Congressional Debate on Slavery and the Declaration of Independence, 1819-1821

Philip F. Detweiler

EVER since the Continental Congress proclaimed the independence of the American colonies to "a candid world," the Declaration of Independence has formed part of the political thought and feeling of the American people. Unchanged in language through the years, the Declaration nevertheless has had a changing meaning for different groups of Americans, and one generation has often viewed it with a different feeling or emphasis from another. By the 1820's, for example, when the Declaration was read at Fourth of July celebrations, Jefferson's charges against an iniquitous George III no longer stirred the same feelings they did in 1776. And the preamble, more enduring than the invective against the British king, has been a wellspring of imposing phrases for a variety of men and women with a mission. The history of the changes in thinking and feeling about the Declaration, and the story of the way in which politicians, reformers, and others have appealed to it in support of a variety of causes, are long ones, touching many of the major issues of American life. As in much historical writing, however, a few key points give form to an otherwise shapeless story.

One such critical point centers in the years of the Missouri controversy, 1819–1821, when Congress, no longer able to avoid the problem, threshed out, for a few years, the future of Negro slavery in America. One of the authorities appealed to in the debates was the Declaration of Independence. For the first time in our history its preamble was examined and analyzed, praised or criticized, in large-scale fashion. Some of the congressmen took as their text the Declaration's statement that "all men are created equal" and endowed with "certain unalienable Rights." One of these rights was that of liberty. How, it was asked, could Negro slavery be reconciled with man's right to "Life, Liberty and the pursuit of Happiness"? Other passages of the Declaration were invoked, and the question of its meaning became part of the controversy.

From the vantage point of the present it is difficult to write about the role of the Declaration in these debates without taking sides. George Dangerfield, for example, in describing the irreverent attitude toward the Declaration shown by Senator Nathaniel Macon of North Carolina, wrote that the Declaration was "a part of the spiritual fabric of the American Republic;

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and it was a melancholy moment when a man as noble as Macon attempted to tear it away."[1] Dangerfield may have described the incident perceptively, but too much of the writing about the Declaration has first erected it on a pedestal. Before placing it there we might observe just what was being said about the Declaration by the politicians in Congress, many of whom felt that the American political tradition, or a section of the Union, or the Union itself, was in jeopardy.

The congressional controversy over Missouri began early in 1819 when Representative James Tallmadge of New York proposed an antislavery amendment to a bill then pending for the admission of Missouri into the Union. "This motion," the House reporter wrote, "gave rise to an interesting and pretty wide debate"—one which lasted until 1821.[2] It was a debate which crowded the galleries and lobbies of Congress with spectators, eager to hear the latest speech on the "Missouri Question."[3] Some congressmen spoke to express strong convictions and others because it appeared to be the right thing for dutiful congressmen to do, and together they filled many pages of the *Annals of Congress*. Sometimes the Missouri question lay dormant for days, but it erupted periodically, giving rise to contrived oratory as well as to everyday speechmaking. On the surface the question was one of slavery in Missouri, but speakers ranged further to examine the whole "peculiar institution"; they condemned or excused it, and a number of them defended it.[4] They appealed to the Bible, to the Constitution, and to the Declaration of Independence. They talked mostly about the Constitution but gave an unusual amount of attention also to the Declaration.[5]

Congressmen who read and quoted the Declaration did so to explain what it said, or should be construed to say, about Negro slavery. Their task was difficult since the Declaration said nothing explicitly about it. The Continental Congress, it is well known, had deleted Jefferson's draft of a charge against King George III for perpetuating the slave trade. So much we know, but little more. Virtually no evidence exists that will permit a categorical statement about the relationship of the preamble of the Declaration to the institution of Negro slavery. "All men," Jefferson had written, "are created equal," and endowed with the rights of "Life, Liberty and the pursuit of Happiness." The historian of today, however, who would contend that the phrase "all

[1] Dangerfield, *The Era of Good Feelings* (New York, 1952), p. 220.
[2] *Annals of Congress,* 15 Cong., 2 sess., p. 1166 (Feb. 13, 1819).
[3] See, for example, Washington *National Intelligencer,* Jan. 15, 1820.
[4] Earlier accounts of the controversy have been superseded in large part by Glover Moore's extended study, *The Missouri Controversy, 1819–1821* (Lexington, Ky., 1953).
[5] The only substantial account of the role of the Declaration in the Missouri debates appears in Professor Moore's study at pp. 307–309. For his other comment on the Declaration see pp. 44, 79, 84, 123, 165, 196, 237, and 256.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.13 - Duff Green, John C. Calhoun, and the Election of 1828

Gretchen Garst Ewing

ARTICLE	Duff Green, John C. Calhoun, and the Election of 1828
JOURNAL	The South Carolina Historical Magazine 79, no. 2 (1978)
EXCERPT	Original journal pages 126-127
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DUFF GREEN, JOHN C. CALHOUN, AND THE ELECTION OF 1828

GRETCHEN GARST EWING *

As editor of the Washington *United States' Telegraph*, Duff Green played an important role in promoting Andrew Jackson for the presidency and John C. Calhoun for the vice presidency in the election of 1828. Although the *Telegraph* was established as the primary campaign organ for Jackson, many claimed that its editor supported the General only to advance Calhoun's political ambitions. Green denied the charge, but his actions gave it credibility. The *Telegraph* consistently defended Calhoun against attacks by the Adams' administration press and zealously guarded his claim to second place on the Jackson ticket. Green also engaged in a personal letter writing campaign to insure Calhoun's nomination as vice president. Moreover, he readily admitted that he was an "ardent admirer and warm personal friend" of the South Carolinian.[1]

Considering the dissimilar backgrounds and personalities of the two men, their friendship seemed paradoxical. Green's free-wheeling life in the territory and state of Missouri had imbued him with the rough frontier spirit. An erratic business career attested to his willingness to gamble for a fast dollar. Before taking over the *Telegraph* at age thirty-five, he had dabbled in Missouri politics and had been a soldier, merchant, lawyer, land speculator, stagecoach line operator, and newspaper editor. He personified the entrepreneur. In contrast, Calhoun had grown to manhood in the more genteel southern tradition and attended Yale. Although his parents had been of moderate means, marriage to Floride Bonneau gave him an entree into Charleston's most elite circle. The acquisition of land and slaves identified him with the planter aristocracy. Green was loud, blustering, impetuous, and prone to bursts of temper which sometimes culminated in fisticuffs. Calhoun was reserved, cool, cautious, and tightly controlled. Despite these differences of temperament, both men possessed a keen intelligence, driving ambition, and a passion for politics.[2]

* Division of Social Sciences, University of Houston, Downtown College, Texas.

[1] Duff Green to William Snowden, November 16, 1827, Duff Green Letter Book, 1827-1830, 32, Manuscript Division, Library of Congress. (A microfilm copy of this letter book is in the M. D. Anderson Library, University of Houston.)

[2] For information concerning Green's early business dealings see Fletcher M. Green, "Duff Green: Industrial Promotor," *Journal of Southern History*, II (February, 1936), 29-42; Fletcher M. Green, "Duff Green, Militant Journalist of the Old

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Although joint business dealings and the marriage of Green's daughter, Margaret, to Calhoun's son Andrew, would later increase the intimacy between the two men, it was their common political views more than anything else that engendered and sustained their close relationship for nearly three decades. By 1827 both men had become champions of states' rights, opponents of the protective tariff, and defenders of the institution of slavery. In addition to professing the same political tenets, they shared a common goal—the advancement of John C. Calhoun in national politics.

Green's brother-in-law, Illinois Senator Ninian Edwards, had shared this goal since 1822 and provided the initial contact between Green and Calhoun in the summer of 1823. At their first meeting, Calhoun, a presidential candidate for the election of 1824, freely discussed his campaign strategy with Green. He liked Green personally and as a practical politician recognized the importance of gaining an influential supporter in Missouri. Pleased with his new political ally, Calhoun wrote to Edwards that Green was "intelligent and decisive, and must, in time, become important in the West." [3]

During the next several months Green worked for Calhoun by encouraging publication of pro-Calhoun articles in Missouri papers. His purchase of the St. Louis *Enquirer* late in 1823 enabled him to champion more effectively Calhoun's candidacy. Calhoun, who recognized the importance of political papers in his presidential campaign, must have welcomed the addition of another newspaper to his ranks.[4]

But the Pennsylvania Convention's nomination of Jackson in early March killed Calhoun's immediate presidential ambitions. Soon afterwards rumors circulated that Jackson and Calhoun had reached an "understanding" that the Carolinian would support Jackson for the presidency and in return would receive the Old Hero's backing for the vice presidency. Calhoun was then to succeed Jackson at the end of four years.

School," *American Historical Review,* LII (January, 1947), 247-264; also, Gretchen Ewing, "Duff Green, Independent Editor of a Party Press," *Journalism Quarterly,* Winter, 1977.

[3] John C. Calhoun to Ninian Edwards, June 12, 1822, May 21, July 20, September 23, 1823, in Ninian W. Edwards, *History of Illinois, from 1778 to 1833; and Life and Times of Ninian Edwards* (Springfield, 1870), 490, 494-495, 495-496.

[4] Duff Green to Ninian Edwards, December 10, 1823, in E. B. Washburne (ed.), *The Edwards Papers; Being a Portion of the Collection of the Letters, Papers, and Manuscripts of Ninian Edwards* (Chicago, 1884), 215; John C. Calhoun to Ninian Edwards, June 12, 1822, in Edwards, *History of Illinois,* 490; John C. Calhoun to General Joseph Gardner Swift, September 8, 1823, in Thomas Robson Hay (ed.), "John C. Calhoun and the Presidential Campaign of 1824; Some Unpublished Calhoun Letters," *American Historical Review,* XL (October, 1934), 90-91.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.14 - Slavery and the Creation of Arkansas Territory: A Reconsideration

James J. Gigantino II

ARTICLE	Slavery and the Creation of Arkansas Territory: A Reconsideration
JOURNAL	The Arkansas Historical Quarterly 78, no. 3 (2019)
EXCERPT	Original journal pages 231-232
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Slavery and the Creation of Arkansas Territory: A Reconsideration

James J. Gigantino II

The creation of Arkansas Territory in 1819 addressed the fundamental question of whether the United States would become an "empire for liberty" or an "empire for slavery." But many contemporary spectators saw Arkansas as simply a piece of a larger drama involving slavery's future in Missouri. Historians over the last fifty years have largely done the same, treating the status of slavery in Arkansas as a footnote to the national debate that ultimately yielded the Missouri Compromise. However, Arkansas was no mere sideshow. Instead, discussions and decisions about its organization helped determine what the future held for relations between the states and federal government. Federal endorsement of slavery in Arkansas Territory reinforced the sectional tensions and tortuous relationship between slave and free states that precipitated the Civil War roughly forty years later.[1]

Historians both of Arkansas and of the politics of slavery's expansion have traditionally seen the decisions that congressmen made about slavery in Arkansas as the product of a compromising strategy intended to maintain the political balance of power between North and South. They have seemed content with caricatures of northern politicians seeking to restrict slavery's expansion in order chiefly to maintain their section's strength in the Senate and Electoral College. But, given that the territory seemed a long way from statehood, and thus posed no immediate threat to the balance of power, these congressmen surrendered Arkansas to slavery for the larger prize of protecting the vast territory north of Missouri as

[1]John Craig Hammond, *Slavery, Freedom, and Expansion in the Early American West* (Charlottesville: University of Virginia Press, 2007), 155.

James J. Gigantino II is professor and chair of the department of history at the University of Arkansas, Fayetteville. He is the author of *The Ragged Road to Abolition: Slavery and Freedom in New Jersey, 1775-1865* (2014), *Slavery and Secession in Arkansas: A Documentary History* (2015), and, most recently, *William Livingston's American Revolution* (2018).

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free soil.[2] This interpretation, however, relies on a rather simplistic understanding of northern concerns over slavery's expansion. To understand the nuances of northerners' posture toward the territory—why some northern congressmen accepted an enslaved Arkansas while others chafed at its existence—requires examinations of larger debates occurring in these decades over slavery's expansion, the future of the Democratic-Republican Party, and the extent of federal power.

1819 marked a significant departure in discussions of slavery and freedom. In the aftermath of that year's landmark Supreme Court decision, *McCulloch v. Maryland*, which seemed to enshrine a broad construction of the Constitution, old-style republicans feared nationalistic approaches to domestic policy that expanded the power of the federal government all the more. These fears of federal expansion occurred at the same time North and South fought over the role of state and federal governments in the recapture of fugitive slaves—a debate that came to pervade antebellum America. Similarly, 1819 represented the culmination of northerners' fundamental turn away from slavery. Gradual abolition programs in northern states had by this time largely rid their states of slaves. The debate over Arkansas and Missouri was driven by northerners' wish not only to limit slavery's political power but to further insulate themselves from the increasingly undesirable institution. New York, the home of Congressman John Taylor, who led the fight to restrict slavery in Arkansas, had just enacted a law in 1817 that provided freedom as of July 4, 1827 for all slaves unaffected by New York's 1799 gradual abolition law. New York governor Daniel Tompkins advocated strongly for this law, believing that if "slavery be expunged from our statue book," it would illustrate New York's progress according to the "dictates of humanity." This complete abolition restored "the reputation of the state" and effectively allowed New Yorkers

[2]For examples of this, see Waddy William Moore, "Territorial Arkansas, 1819-1836" (Ph.D. dissertation, University of North Carolina, Chapel Hill, 1962); Glover Moore, *The Missouri Controversy, 1819-1821* (1953; repr., Gloucester, MA: Peter Smith, 1967); William R. Johnson, "Prelude to the Missouri Compromise: A New York Congressman's Effort to Exclude Slavery from Arkansas Territory," *Arkansas Historical Quarterly* 24 (Spring 1965): 47-66; Lonnie J. White, *Politics on the Southwestern Frontier: Arkansas Territory, 1819-1836* (Memphis: Memphis State University Press, 1964). This view has reached into more current scholarship; see S. Charles Bolton, *Arkansas, 1800-1860: Remote and Restless* (Fayetteville: University of Arkansas Press, 1998), 125-126; S. Charles Bolton, *Territorial Ambition: Land and Society in Arkansas, 1800-1840* (Fayetteville: University of Arkansas Press, 1993), 24; Matthew Hall, *Dividing the Union: Jesse Burgess Thomas and the Making of the Missouri Compromise* (Carbondale: Southern Illinois University Press, 2015), 129-130; John R. Van Atta, *Wolf by the Ears: The Missouri Crisis, 1819-1821* (Baltimore: Johns Hopkins University Press, 2015), 76; Robert Pierce Forbes, *The Missouri Compromise and Its Aftermath: Slavery and the Meaning of America* (Chapel Hill: University of North Carolina Press, 2007), 49-58; Hammond, *Slavery, Freedom, and Expansion in the Early American West*, 151-153, 157-162.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.15 - The Monroe Doctrine: Meanings and Implications

Mark T. Gilderhus

ARTICLE	The Monroe Doctrine: Meanings and Implications
JOURNAL	Presidential Studies Quarterly 36, no. 1 (2006)
EXCERPT	Original journal pages 5-6
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ARTICLES

The Monroe Doctrine: Meanings and Implications

MARK T. GILDERHUS
Texas Christian University

This article presents a brief history of the Monroe Doctrine since its articulation in 1823. First conceived as a statement in opposition to European intrusions in the Americas, it became under President Theodore Roosevelt a justification for U.S. intervention. To cultivate Latin American trade and goodwill during the Great Depression and the Second World War, Franklin Roosevelt's administration accepted the principle of nonintervention. Later with the onset of the Cold War, perceived international imperatives led to a series of new interventions in countries such as Guatemala, Cuba, the Dominican Republic, and Chile. Though typically couched in idealistic rhetoric emphasizing Pan-American commitments to solidarity and democracy, the various versions of the Monroe Doctrine consistently served U.S. policy makers as a means for advancing what they understood as national strategic and economic interests.

The Monroe Doctrine as articulated before the U.S. Congress in 1823 established a rhetorical style associated many years later with similar pronouncements during the Cold War and after. Typically couched in the language of idealism and high principle, such affirmations of presidential purpose often purported to advance the cause of humankind, or at least a substantial portion thereof, by upholding values such as freedom, democracy, and peace. Such language sometimes served as a cover for less ennobling purposes connected with the defense of strategic and economic interests and usually contained some kind of threat to take countermeasures if other nations went beyond what the United States regarded as the appropriate bounds. The Monroe Doctrine also instituted a pattern by affirming defensive objectives.

Over the years, James Monroe's doctrine took on various meanings and implications, depending upon shifting policies and preferences, but nevertheless consistently

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Presidential Studies Quarterly 36, no. 1 (March) 5
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served as a mainstay in the articulation of U.S. goals and purposes in the Western Hemisphere. Three stood out among them. Policy makers wanted to keep out the Europeans, to safeguard order and stability in areas of special concern, and to ensure open access to markets and resources. To be sure, the means of implementation varied from time to time, but the pursuit of these objectives remained much the same. Underlying them, another constant projected a sense of racist condescension. Usually viewed as unruly children in need of discipline and direction, according to a prevailing assumption among U.S. policy makers, Latin Americans could not function without paternalistic oversight and supervision.

The Monroe Doctrine emerged in response to the exigencies of European politics at the end of the Napoleonic Wars. In efforts to put the world back together again, the Great Powers, that is, the Austrians, Prussians, Russians, and British, under the terms of the Treaty of Paris in 1815 formed the Quadruple Alliance, an alignment committed to peace, order, and the status quo. Three years later, it turned into the Quintuple Alliance with the admission of France, a newly rehabilitated monarchy under the restored Bourbon kings.

For good reason in the aftermath of the French upheaval, European leaders feared the threat of revolution more than most things. Consequently at the Congress of Troppau in 1820, they agreed forcibly to put down insurrectionist activities whenever and wherever necessary. Soon after, in 1821, Austrian armies suppressed a series of revolts in Italy. A year later French forces took action against an uprising in Spain. The Europeans also supported the Ottoman Turks in efforts to snuff out a rebellion in Greece. Such actions caused John Quincy Adams, the U.S. secretary of state, to wonder whether the Great Powers also might harbor similar ambitions in the New World, possibly to reinstate the Spanish American empire.

The Latin American wars for independence inspired a great deal of interest among citizens of the United States. Indeed, many, such as Congressman Henry Clay of Kentucky, regarded them as conscious attempts to emulate the American Revolution. As Clay observed in 1818, Latin American leaders such as Simón Bolívar and José de San Martín have "adopted our principles, copied our institutions and . . . employed the very language and sentiments of our revolutionary papers." Such perceptions probably attributed too much importance to the U.S. example and not enough to indigenous circumstances, but nevertheless they indicated high levels of popular enthusiasm.

For U.S. leaders, in contrast, *realpolitik* governed official reactions. The negotiation of the 1819 Transcontinental Treaty with Spain leading to the acquisition of the Floridas preoccupied Secretary Adams. Premature recognition of the newly independent Latin American states might alienate Spanish leaders and ruin his diplomacy. While wishing Spanish Americans well, he put scant faith in their ability to establish "free or liberal institutions of government." In his view, "arbitrary power, military and ecclesiastical, was stamped upon their education, upon their habits, and upon all their institutions. Civil dissension was infused into all their seminal principles." In a proclamation on July 4, 1821, he elaborated upon his thoughts. "Wherever the standard of freedom and independence has or shall be unfurled, there will her [the United States] heart, her benediction, and her prayers be. But she goes not abroad in search of monsters to destroy."

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.16 - Political Virtue in the Age of Jackson

Perry M. Goldman

ARTICLE	Political Virtue in the Age of Jackson
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Political Virtue in the Age of Jackson

PERRY M. GOLDMAN
City College, City University of New York

The neoclassical ideal of the lawmaker formulated by the Founding Fathers was the "virtuous republican" whose hallmark was his active and exclusive concern for the public good and the general welfare. He was expected to display the detached and disinterested judgment of the statesman, to behave with integrity and independence, and publicly to debate issues purely on their merits. This ideal was instrumental in determining the earliest national image of the republic and its leaders. As a strong party system developed in the second quarter of the nineteenth century, however, legislators learned that in order to stay in politics they had to act like party men. They began to see the principled party as an instrument of service to the nation and to make a virtue of the sacrifices party loyalty entailed.[1] Consequently, the idea of the nonpartisan as the bearer of republican virtue had to be changed; armed with new political values, rhetoric, and weaponry, the "virtuous republican" was transformed into a political partisan, the "democratic soldier."[2]

[1] Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill, 1966), 29; Lynn L. Marshall, "The Strange Stillbirth of the Whig Party," *American Historical Review*, LXXII (1967), 445-68.

[2] I am indebted to Professor Eric McKitrick of Columbia University for this phrase. For details of the transformation of political values, rhetoric, and weaponry from 1789-1840, see my "The Republic of Virtue and Other Essays on the Politics of the Early National Period" (Ph.D. diss., Columbia Univer-

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The emergence of this new ideal legislator was a symptom of the growth of a new role in an age of mass politics—the special role of the popular politician.

The organization and continued operation of party machinery absorbed the energies of thousands of participants and enlisted the special skills of leaders who took the initiative in creating parties and superintending their activities. The details varied with the individual state, but the overall structure was essentially the same. The party was coordinated through a network of committees, headed by a state committee usually created at the general state convention. Here officers of the state committee and members of the party's central committee were selected. The central committee was a national body which wrote an address to the people, communicated with the state committees, supervised the activities of the county committees, and chose an electoral ticket with electors pledged to the candidates. The Jackson forces in 1828 also marshalled an 8-member state central committee in Nashville and a 24-member national central committee in Washington, D.C.[3] The success of their efforts revealed the necessity for an active, well coordinated political organization.

The value of organizational efficiency did not go unperceived by the losers.[4] In the campaign of 1832, Henry Clay urged Francis Brooke: "Let our friends organize, throughout the State; let each county be divided into sections, and let one or more members of your Committees of Vigilance be designated in each to bring the voters to the polls, and I incline to think that you would win the day. All this should be put in motion by some central committee."[5] The lesson of the 1828, 1832, and 1836 elections was obvious: "where parties are nearly balanced, that which is disciplined, and in a state of complete organization, is almost sure to prevail over its adversary."[6] Whig bosses like Thurlow Weed of New York became adept

sity, 1970) and my "Political Rhetoric in the Age of Jackson," *Tennessee Historical Quarterly*, XXIX (1970-71), 360-71.

[3] Robert V. Remini, *Martin Van Buren and the Making of the Democratic Party* (New York, 1959); Robert V. Remini, *The Election of Andrew Jackson* (Philadelphia, 1963), 88-94, 63, 70; McCormick, 253.

[4] Remini, *Election of Andrew Jackson*, 164.

[5] Clay to Brooke, Aug. 5, 1832, in Calvin Colton, ed., *The Life, Correspondence and Speeches of Henry Clay* (New York, 1857), IV, 341-42.

[6] Clay to Brooke, Apr. 2, 1839, *ibid.*, IV, 440.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.17 - 'They Are Very Much Interested in Obtaining an Unlimited Slavery': Rethinking the Expansion of Slavery in the Louisiana Purchase Territories, 1803-1805

John Craig Hammond

ARTICLE	'They Are Very Much Interested in Obtaining an Unlimited Slavery': Rethinking the Expansion of Slavery in the Louisiana Purchase Territories, 1803-1805
JOURNAL	Journal of the Early Republic 23, no. 3 (2003)
EXCERPT	Original journal pages 353-354
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"THEY ARE VERY MUCH INTERESTED IN OBTAINING AN UNLIMITED SLAVERY": RETHINKING THE EXPANSION OF SLAVERY IN THE LOUISIANA PURCHASE TERRITORIES, 1803-1805

John Craig Hammond

By late 1804, discontent with the United States government was growing among the white inhabitants of the newly acquired Louisiana Purchase territories. That fall, "the representatives elected by the freemen of their respective districts" in Upper Louisiana met in St. Louis to protest their new territorial government: or, as they deemed it, the "entire privation of some of the dearest rights enjoyed by *freemen*!" The "freemen" especially feared that the United States might deprive them of their right to buy and hold slaves. They had good reason to worry. The host of restrictions Congress placed on Louisiana slavery seemed "calculated to abolish slavery at a future day altogether."[1]

John Craig Hammond is a Ph.D student at the University of Kentucky. Thanks to the University of Kentucky history department and the editors and anonymous readers of the *JER*. Special thanks to Lance Banning, David Nichols, and Hallie Perkins Hammond.

[1] "The remonstrance and petition of the representatives elected by the freemen of their respective districts in the District of Louisiana,"*American State Papers*, Class X, *Miscellaneous*, 1:401. The territorial bills created two territories in the Louisiana Purchase. Orleans Territory, or Lower Louisiana, encompassed the present-day state of Louisiana,

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In 1804 a Republican-controlled Congress defied the testy demands of white Louisianans, the recommendations of Thomas Jefferson, and the interests of southern slaveholders by prohibiting both the international and domestic slave trades to the Louisiana Purchase territories. White Louisianans from New Orleans to St. Louis reacted to these restrictions, which seemed tantamount to a plan of gradual abolition, by insisting that they would consent to American rule only if provided guarantees for slavery. Fearful that white Louisianans might act on their threats of rebellion and disunion, Congress quietly failed to renew the bulk of the restrictions on slavery the following year.

The historical literature on slavery and expansion in the early republic makes it difficult to understand the causes and significance of the restrictions passed by Congress in 1804 and then rescinded in 1805. Historians generally agree that southern politicians controlled debates over the expansion of slavery. Upper South planters defended expansion because it opened new markets for their "surplus" slaves, promising relief from their fearfully large slave populations and much needed income to supplement their declining fortunes. Deep South planters, ready to threaten disunion at the first sign of the dreaded entering wedge, resisted efforts to restrict slavery's growth except in the Northwest territories. Southern politicians like Jefferson could afford to temporize on expansion because, unlike discredited New England Federalists, northern Republicans proved unwilling to challenge slaveholders on expansion because of fears of upsetting their fragile, bisectional party.[2] When forced to legislate for the Louisianas in 1804, the federal government supposedly did "nothing about slavery," permitting it "to continue in Louisiana under American rule virtually as it had under Spanish and French rule."[3]

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minus the Florida parishes. Upper Louisiana encompassed the remainder of the territory and was referred to as the District of Louisiana.

[2] Don Fehrenbacher, *The Dred Scott Case: Its Significance in American Law and Politics* (New York, 1978), 74-100; Fehrenbacher, *The Slaveholding Republic: An Account of the United States Government's Relations to Slavery* (New York, 2001), 253-63; William W. Freehling, "The Founding Fathers and Conditional Antislavery," in Freehling, *The Reintegration of American History: Slavery and the Civil War* (New York, 1994), 12-33; Freehling, *The Road to Disunion,* Vol. 1: *Secessionists at Bay, 1776-1854* (New York, 1990), 138-43; Paul Finkelman, *Slavery and the Founders: Race and Liberty in the Age of Jefferson* (2nd ed., Armonk, NY, 2001); Donald Robinson, *Slavery in the Structure of American Politics, 1765-1820* (New York, 1971), 378-400; Gary Nash, *Race and Revolution* (Madison, WI, 1990), 25-55; Duncan MacLeod, *Slavery, Race, and the American Revolution* (London and New York, 1974), 47-61.

[3] Freehling, "Founding Fathers and Conditional Antislavery," 12; Robinson, *Slavery and the Structure of American Politics*, 399. This conclusion informs literature focusing on

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.18 - President, Planter, Politician: James Monroe, the Missouri Crisis, and the Politics of Slavery

John Craig Hammond

ARTICLE	President, Planter, Politician: James Monroe, the Missouri Crisis, and the Politics of Slavery
JOURNAL	The Journal of American History 105, no. 4 (2019)
EXCERPT	Original journal pages 843-844
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President, Planter, Politician: James Monroe, the Missouri Crisis, and the Politics of Slavery

John Craig Hammond

Historians have long sought to assess the role of President James Monroe in forging and then negotiating the passage of the Missouri Compromise of 1820. Their assessments have been written within a historiographical tradition that praises statesmanship over sectionalism, celebrates southern statesmen's invocations of union and nationalism, and elevates compromise to the loftiest of American political values. Within that historiographical paradigm, interpretations of the politics of slavery focus on how sectional extremists exploited the fragility of the Union for their own purposes, and how moderate unionist statesmen intervened to save the Union from sectionalists. In turn, much historical writing seeks to identify sectional threats to union, castigate disunionists, and then celebrate how unionists won in every sectional crisis from the 1770s through the late 1850s, or explain how disunionists triumphed in 1860–1861. Overlapping spectrums of union and disunion, slavery and antislavery, statesmen and sectionalists form a metanarrative that provides an outline for most writing on slavery and politics from the American Revolution through the Civil War. In the broader scholarly literature on the politics of slavery, disunionism and narrow sectionalism are cardinal sins; unionism and nationalism are virtues.[1]

John Craig Hammond is an associate professor of history at Penn State University, New Kensington. He would like to thank Mike McManus, Matthew Mason, David Waldstreicher, Frank Towers, Annette Gordon-Reed, Peter Onuf, Jim Oakes, and the readers and editors of the *JAH* for their assistance with this article.

Readers may contact Hammond at JCH24@psu.edu.

[1] On the causes, course, resolution, and significance of the Missouri crisis, see John R. Van Atta, *Wolf by the Ears: The Missouri Crisis, 1819–1821* (Baltimore, 2015); Matthew W. Hall, *Dividing the Union: Jesse Burgess Thomas and the Making of the Missouri Compromise* (Carbondale, 2016); Michael J. McManus, "President James Monroe's Domestic Policies, 1817–1825: 'To Advance the Best Interests of Our Union,'" in *A Companion to James Madison and James Monroe,* ed. Stuart Leibiger (New York, 2013), 438–55; Matthew Mason, "The Maine and Missouri Crisis: Competing Priorities and Northern Slavery Politics in the Early Republic," *Journal of the Early Republic,* 33 (Winter 2013), 675–700; John Craig Hammond, "'Uncontrollable Necessity': The Local Politics, Geopolitics, and Sectional Politics of Slavery Expansion," in *Contesting Slavery: The Politics of Bondage and Freedom in the New American Nation,* ed. John Craig Hammond and Matthew Mason (Charlottesville, 2011), 138–60; George William Van Cleve, *A Slaveholders' Union: Slavery, Politics, and the Constitution in the Early American Republic* (Chicago, 2010), 211–23; Lacy K. Ford, *"Deliver Us from Evil": The Slavery Question in the Old South* (New York, 2009), 112–40; John Craig Hammond, *Slavery, Freedom, and Expansion in the Early American West* (Charlottesville, 2007); Robert Pierce Forbes, *The Missouri Compromise and Its Aftermath: Slavery and the Meaning of America* (Chapel Hill, 2007); and Matthew Mason, *Slavery and Politics in the Early American Republic* (Chapel Hill, 2006). For grand syntheses that contrast southern unionists' moderation with sectionalists' extreme defenses of slavery, see, for example, Elizabeth R. Varon, *Disunion! The Coming of the American Civil War, 1789–1859* (Chapel Hill, 2008); Ford, *"Deliver Us from Evil";* Daniel Walker Howe, *What Hath God Wrought: The Transformation of America, 1815–1848* (New York, 2007); William W. Freehling, *The Road to Disunion,* vol. I: *Secessionists at Bay, 1776–1854* (New York, 1990); and William W. Freehling, *The Road to Disunion,* vol. II: *Secessionists Triumphant, 1854–1861* (New York, 2007).

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Written within these historiographical conventions, celebrations of a unionist, nationalist, and even antislavery Monroe have come to dominate the literature on the Missouri crisis and the politics of slavery from the Revolution though the breakdown of the second party system in the 1850s. In the first scholarly study of the Missouri crisis, Glover Moore celebrated unionism but dismissed Monroe's role in forging a compromise due to the president's alleged ineptness. According to Moore, Monroe was "too undecided in his own mind about Missouri to bring pressure to bear on anybody else." Lacking the decisiveness of a George Washington or the intellect of a Thomas Jefferson, Monroe proved unable to guide competing interests to an equitable compromise. Yet even if Monroe lacked the qualities of a statesman, he redeemed himself by signing into law a compromise forged by others, despite the determination of hot-headed Virginians to strike for disunion. Writing in the early 1970s, Harry Ammon successfully restored Monroe's reputation from historians such as Moore who "portrayed Monroe as an ineffective and indecisive figure during the Missouri Crisis." Ammon's Monroe was a thoughtful statesman who, abiding by republican conventions on the role of the executive, "kept his activities on behalf of compromise deeply veiled." From the 1970s through the early 2000s, historians largely ignored Monroe's role in the Missouri crisis. That historiographical lull changed dramatically with the publication of Robert Forbes's *The Missouri Compromise and Its Aftermath: Slavery and the Meaning of America,* which has become the authoritative source on the Missouri crisis and Monroe's role in shaping its outcome. Forbes's Monroe is an antislavery unionist and statesman worthy of effusive praise. In Forbes's analysis, Monroe emerges as the secret leader of a group of "antislavery pragmatists" who recognized that slavery threatened to tear the Union asunder. Forbes's Monroe secured a compromise intended to set the nation on a decidedly antislavery path, but that antislavery promise was foiled by unprincipled doughfaces such as Martin Van Buren and proslavery southerners who forged a proslavery Democratic party in the 1820s.[2]

Over the past decade, Forbes's interpretation of Monroe has become standard in the literature on the Missouri Compromise and the politics of slavery. In a grand synthesis of the period between 1815 and 1848, Daniel Walker Howe borrows directly from Forbes, contending that Monroe supported the Missouri Compromise because he "favored" an antislavery "concession to northern sentiment." Howe's Monroe is a disinterested statesman who favored union-saving concessions: southern whites would receive Missouri without resections on slavery; northern voters and politicians would get slavery barred from most of the region encompassed by the 1803 Louisiana Purchase. In an equally grand synthesis of the abolition movement, Manisha Sinha builds on Forbes's portrait of Monroe, placing him at the head of "a large bisectional coalition of religious and political leaders" who "sought to solve the problem of slavery and race" at the time of the Missouri crisis "by promoting colonization of African Americans." Likewise, in a recent study on Monroe's involvement with colonization at the time of the Missouri crisis, Daniel Pres-

For a critical analysis of the paradigms that have shaped analyses of disunion and the Civil War, see Frank Towers, "Partisans, New History, and Modernization: The Historiography of the Civil War's Causes, 1861–2011," *Journal of the Civil War Era,* 1 (June 2011), 237–64. For criticism of historians' tendency to naturalize and celebrate union, compromise, and statesmanship rather than analyzing these concepts critically, see David Waldstreicher, *Slavery's Constitution: From Revolution to Ratification* (New York, 2009); and Van Cleve, *Slaveholders' Union.*

[2] Glover Moore, *The Missouri Controversy, 1819–1821* (Lexington, Ky., 1953), 196, 234–38; Harry Ammon, *James Monroe: The Quest for American Nationality* (1971; Charlottesville, 1990), 367–68. Forbes, *Missouri Compromise and Its Aftermath,* 6, 15–16, 62–68, 69.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.19 - John Marshall and the Commerce Clause of the Constitution

George L. Haskins

ARTICLE	John Marshall and the Commerce Clause of the Constitution
JOURNAL	University of Pennsylvania Law Review 104, no. 1 (1955)
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1955]

JOHN MARSHALL AND THE COMMERCE CLAUSE OF THE CONSTITUTION *

George L. Haskins †

No provision of the United States Constitution has been more vitally involved in the development of our national economic life and in the transitions through which our constitutional system has passed than has the commerce clause in article I. In the third paragraph of section 8 of that article, it is provided:

> "The Congress shall have Power . . . To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes; . . ."

It would be difficult to envisage a more vivid panorama of the course of our economic and constitutional development than that revealed in the succession of controversies arising out of its application to novel problems of commercial intercourse and economic activity. Yet so frequently, and in such varying contexts, has the commerce clause been construed by the courts that attention is drawn to the scope of activities to which it has been applied and diverted, perhaps, from the broad purposes for which it was originally designed and which it serves, and will continue to serve, in the ever-increasing complexities of modern economic life. Because those broad purposes were first enunciated in the Supreme Court by John Marshall, and because his classic exposition thereof has had so enduring an influence, the commerce clause, in certain aspects of its application, is a particularly appropriate subject for presentation in connection with the celebration of the two hundredth anniversary of his birth.

Of the forty-four cases that Marshall decided during his term on the Court, three of importance involved the commerce clause.[1] Of these three cases the first, and by far the most significant, was *Gibbons*

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* This paper was delivered as an address at the Conference on "John Marshall—Two Hundred Years Later," held at Williamsburg, Virginia, May 12-13, 1955, as part of the John Marshall Bicentennial Program of the College of William and Mary.

† Professor of Law, University of Pennsylvania Law School. A.B., Harvard College, 1935; LL.B., Harvard Law School, 1942.

1. Gibbons v. Ogden, 22 U.S. (9 Wheat.) 1 (1824); Brown v. Maryland, 25 U.S. (12 Wheat.) 419 (1827); Willson v. Black-bird Creek Marsh Co., 27 U.S. (2 Pet.) 245 (1829).

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v. Ogden, which ranks in importance with *Marbury v. Madison,*[2] *McCulloch v. Maryland,*[3] and *Cohens v. Virginia.*[4] *Gibbons v. Ogden,* otherwise known as the "Steamboat Case," was decided in the year 1824. The background of that case was the grant to Livingston and Fulton of an exclusive privilege to operate steamboats on the waters of the state of New York during a fixed number of years. Ogden was the assignee of that privilege. Gibbons operated a steamboat between a New Jersey port and New York, and he held a federal coasting license for his vessel under the act of Congress providing for the licensing of coastal vessels.[5] Ogden applied for and obtained an injunction against Gibbons in the New York courts,[6] and the case eventually came up on error to the Supreme Court. The question before the Court was whether the commerce clause invalidated the act of a state purporting to grant an exclusive right to navigate the waters of that state. The case was a critical one because several states—New Jersey, Connecticut, and Ohio—had passed retaliatory statutes excluding from their waters any vessel licensed under the Fulton-Livingston monopoly.[7] But the case presented a political aspect also in that it brought into sharp focus the contest between the upholders of states-rights and the believers in a strong federal government.[8]

Two important legal points were involved in *Gibbons v. Ogden.* The first was the meaning of the term "commerce" as used in the commerce clause, specifically whether it included "navigation." Although it was contended by counsel for Ogden that "commerce" meant merely "buying and selling," [9] Marshall held that the power to regulate navigation was "as expressly granted, as if that term had been added to the word 'commerce.' " [10] And he also stated that "commerce" not only comprehended every species of commercial intercourse among states and nation but the power to prescribe rules for carrying on that intercourse.[11] The second legal point was whether the power of Congress over commerce invalidated what had been done by the state of

2. 5 U.S. (1 Cranch) 137 (1803).
3. 17 U.S. (4 Wheat.) 316 (1819).
4. 19 U.S. (6 Wheat.) 264 (1821).
5. 1 STAT. 305 (1793).
6. Gibbons v. Ogden, 17 Johns. R. *488 (Ct. Err. N.Y. 1820). See also Livingston v. Van Ingen, 9 Johns. R. *507, *562 (Ct. Err. N.Y. 1812).
7. Conn. Sess. Laws 1822, c. 28; Act of Feb. 13, 1811, N.J. Acts 1811, at 298-99; Act of Feb. 18, 1822, Ohio Sess. Laws, c. 25; Act of May 23, 1822, Ohio Sess. Laws, c. 2.
8. 1 WARREN, THE SUPREME COURT IN UNITED STATES HISTORY 597 (rev. ed. 1947).
9. 22 U.S. (9 Wheat.) at 189.
10. *Id.* at 193.
11. *Id.* at 190.

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Bibliography entry

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.20 - The Evolution of the Imperial Idea and U.S. National Identity

Mary Ann Heiss

ARTICLE	The Evolution of the Imperial Idea and U.S. National Identity
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EXCERPT	Original journal pages 511-512
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MARY ANN HEISS

BERNATH LECTURE
The Evolution of the Imperial Idea and U.S. National Identity*

The supposed truisms of the U.S. position on empire and imperialism – what I have chosen to call here the "imperial idea" – are well known.[1] As a nation itself born through revolution against imperial control, the United States has purportedly disdained imperialism, both in the policies of other nations and in its own. The taking of colonies and the seeking of empire were considered to be the pursuits of other nations, not the United States. On the contrary, rather than attempting to control other nations or peoples in an imperialistic or colonial fashion, the United States, it has been asserted, fashioned itself as the liberator of the colonized, launching both a rhetorical assault on the practice of imperialism and a practical campaign to bring about its end. In the very few instances when the United States did take control of territory that was not destined to be incorporated into the union, it did so for clearly positive reasons, ruled in an enlightened and benevolent fashion, and granted self-government and independence as soon as practicable. And, of course, the United States was never truly "imperialistic" anyway. It was "expansionist." It practiced "benevolent assimilation." It took up the "white man's burden." It followed its "Manifest Destiny." But it never embraced imperialism on the European model. Ever.[2]

As the nation's history has played out, however, the reality has been much different. For far from being consistently anticolonial, the U.S. position on the

* Stuart L. Bernath Memorial Lecture delivered in Washington, DC, 13 April 2002. The author is grateful to David E. Settje and Clarence E. Wunderlin, Jr., for their helpful comments on earlier drafts of this essay.

1. A. P. Thornton uses this term in a peculiarly British sense in *The Imperial Idea and Its Enemies: A Study in British Power* (Garden City, NJ, 1968). Here it will be used more broadly to apply to imperial ventures in general.

2. For the persistence of these ideas see, among other sources, Whitney T. Perkins, *Denial of Empire: The United States and Its Dependencies* (Leyden, 1962), 343; Thomas A. Bailey, *The Man in the Street: The Impact of American Public Opinion on Foreign Policy* (Gloucester, MA, 1964), 276–77; A. E. Campbell, ed., *Expansion and Imperialism* (New York, 1970), 8; William Appleman Williams, *History as a Way of Learning: Articles, Excerpts, and Essays* (New York, 1973), 137; Charles L. Sanford, ed., *Manifest Destiny and the Imperialism Question* (New York, 1974), 8; Alexander DeConde, *This Affair of Louisiana* (New York, 1976), 241; Jim Hanson, *The Decline of the American Empire* (Westport, CT, 1993), 2; Amy Kaplan, "'Left Alone with America': The Absence of Empire in the Study of American Culture," and Walter Benn Michaels, "Anti-Imperial Americanism," in *Cultures of United States*

Diplomatic History, Vol. 26, No. 4 (Fall 2002). © 2002 The Society for Historians of American Foreign Relations (SHAFR). Published by Blackwell Publishing, Inc., 350 Main Street, Malden, MA, 02148, USA and 108 Cowley Road, Oxford, OX4 1JF, UK.

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imperial idea was not clear-cut, simple to determine, or even at all consistent. The nation in fact did not pursue an unchanging opposition to empire, either when it came to the empires of other nations or a potential empire of its own. It did not work consistently and in all cases for an end to empire and colonialism. And at times it even worked to perpetuate colonial institutions in the pursuit of what were perceived to be more pressing international goals.[3]

Quite clearly, the national stance on the imperial idea at any particular time reflected the nation's overall policy needs and concerns and could not and did not remain static as those needs and concerns changed. In other words, the historical record suggests that the noble ideals and lofty principles on which the nation was founded were not the sole determinants of its policy on empire. Calculated considerations of national need always came into play. If ideals dovetailed with concrete national need, then a happy confluence developed between the nation's stance on the imperial idea and its professed principles. If the two diverged, however, need routinely prevailed over ideals, so that the nation's empire/imperial stance did not directly square with the ideals for which it supposedly stood. What this meant for the nation was an often conflicted and inconsistent position on things imperial. What this has meant for historians has been a confusing historical record in which deeds did not always match words.

The purpose of this essay is to explore in a general way the changing U.S. thinking on the imperial idea and to relate that thinking to prevailing conceptions of U.S. national identity over time. To that end, it will employ a broad chronological sweep of U.S. history that draws on the published work of innumerable scholars in many fields. Be forewarned that my remarks are not conceived as the definitive last word on the subject. Far from it. I prefer to characterize them instead as a preliminary first step in exploring the nexus between empire and identity studies, one that might suggest further areas of research and stimulate future research on the relationship between the imperial idea and U.S. national identity.

Imperialism, ed. Kaplan and Donald E. Pease (Durham, 1993), 3–21, 365–91; William Earl Weeks, "American Nationalism, American Imperialism: An Interpretation of United States Political Economy, 1789–1861," *Journal of the Early Republic* 14 (Winter 1994): 485–95; Joseph A. Fry, "Imperialism, American Style, 1890–1916," in *American Foreign Relations Reconsidered, 1890–1993*, ed. Gordon Martel (London, 1994), 52–70; Dominic Lieven, *Empire: The Russian Empire and Its Rivals* (New Haven, CT, 2000), 112; Walter LaFeber, "The American View of Decolonization, 1776–1920: An Ironic Legacy," in *The United States and Decolonization: Power and Freedom*, ed. David Ryan and Victor Pungong (New York, 2000), 24–40; and, most recently, Paul A. Kramer, "Empires, Exceptions, and Anglo-Saxons: Race and Rule between the British and United States Empires, 1880–1910," *Journal of American History* 88 (March 2002): 1315–53. Kramer, in fact, notes the accepted wisdom among Americans that their nation has been not only a "nonempire" but an "antiempire."

3. The most complete explication of the imperial nature of the United States is William Appleman Williams, *Empire as a Way of Life: An Essay on the Causes and Character of America's Present Predicament, along with a Few Thoughts about an Alternative* (New York, 1980). For a focus on the twentieth century see Robert J. McMahon, "The Republic as Empire: American Foreign Policy in the 'American Century,'" in *Perspectives on Modern America: Making Sense of the Twentieth Century*, ed. Harvard Sitkoff (New York, 2001), 80–100.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.21 - Defining the Office: John Marshall as Chief Justice

Charles F. Hobson

ARTICLE	Defining the Office: John Marshall as Chief Justice
JOURNAL	University of Pennsylvania Law Review 154, no. 6 (2006)
EXCERPT	Original journal pages 1421-1422
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DEFINING THE OFFICE: JOHN MARSHALL AS CHIEF JUSTICE

CHARLES F. HOBSON[†]

Credit for making the United States Supreme Court a significant player in the American scheme of government has been attributed to the masterful leadership of John Marshall, Chief Justice of the United States from 1801 to 1835. By the latter year, the Supreme Court had acquired a kind of parity with Congress and the Executive that it did not possess in 1801. Central to this development was the Court's appropriation of the Constitution as its special preserve. Marshall and his brethren built up the Court's institutional strength by successfully asserting a claim to expound the Constitution and apply it as law in the ordinary course of adjudication. Although the Chief Justice's contribution to this enterprise far exceeded his proportional share as a single Justice, scholarship has long since exploded the myth of a heroic Marshall who dominated the Supreme Court by the sheer force of his individual genius and will. Such a myth ignores the historical reality that Marshall's success as Chief Justice resulted from the interplay between his exceptional leadership abilities and the peculiar circumstances of time and place that allowed those abilities to flourish and have effect. "A great man," Oliver Wendell Holmes famously said, "represents a great ganglion in the nerves of society, or, to vary the figure, a strategic point in the campaign of history, and part of his greatness consists in his being *there*."[1] Marshall, in short, was the right man in the right place at the right time.

I. MARSHALL'S BACKGROUND AND PERSONAL QUALITIES

Marshall brought with him a sterling résumé acquired as a soldier, state legislator, lawyer, diplomat, member of Congress, and secretary of state. Indeed, his life and career prior to 1801 seemed specially designed to prepare him for the office of Chief Justice of the United

---

[†] Editor, *The Papers of John Marshall*, and resident scholar, College of William and Mary School of Law.

[1] Oliver Wendell Holmes, *John Marshall, in* JAMES BRADLEY THAYER, OLIVER WENDELL HOLMES, AND FELIX FRANKFURTER ON JOHN MARSHALL 129, 131 (Philip B. Kurland ed., 1967) [hereinafter THAYER, HOLMES, AND FRANKFURTER ON MARSHALL].

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States. As a Continental Army officer who saw combat during the War of Independence, Marshall experienced firsthand the privations and sufferings of his fellow soldiers and gained a visceral understanding of the meaning of a weak central government. In the crucible of war, the future Chief Justice forged the nationalist principles and beliefs that he carried with him through life. The war also marked him for life as a member of the special fraternity of Revolutionary veterans, to which many of his fellow Justices also belonged. The camaraderie of a "band of brothers" formed no small part of the bond uniting the Chief Justice and his associates.[2]

After the war, as a legislator and lawyer, Marshall pursued what amounted to an advanced course in public and constitutional law. Most important was his service in the Virginia ratification convention of 1788, a brilliant assembly whose debates constituted the most exhaustive contemporary examination of the Constitution next to *The Federalist*. His presence in the company of such luminaries as James Madison, Patrick Henry, and George Mason at this defining and clarifying constitutional moment left an indelible mark. It impressed him with a deep conviction that the Constitution decisively broke with the past by establishing a national government to replace a league of sovereign states. At the same time he recognized that antifederalism was by no means a spent political force but would continue to pose a formidable challenge to his own understanding of the constitutional settlement of 1788.[3]

During the 1790s, Marshall emerged as an occasional but effective advocate for the Federalist administrations of George Washington and John Adams. Most notable in this regard was his defense of the constitutionality of the controversial commercial treaty with Great Britain (the Jay Treaty) while serving in the Virginia legislature in 1795.[4] Soon after, he made his only appearance as a lawyer in the Supreme Court, representing Virginia debtors in the "British debts" case of *Ware v. Hylton*.[5] He lost, but he acquitted himself well by demonstrating a mastery of the law of nations and skill in constitutional argumen-

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[2] R. KENT NEWMYER, SUPREME COURT JUSTICE JOSEPH STORY: STATESMAN OF THE OLD REPUBLIC 82 (1985); JEAN EDWARD SMITH, JOHN MARSHALL: DEFINER OF A NATION 395, 402-04 (1996).

[3] CHARLES F. HOBSON, THE GREAT CHIEF JUSTICE: JOHN MARSHALL AND THE RULE OF LAW 4 (Wilson Carey McWilliams & Lance Banning eds., 1996); SMITH, *supra* note 2, at 142-43.

[4] SMITH, *supra* note 2, at 180-81.

[5] 3 U.S. (3 Dall.) 199 (1796).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.22 - Corrupt Bargaining: Partisan Politics, the Election of 1824, and the Suppression of the African Slave Trade

Craig B. Hollander

ARTICLE	Corrupt Bargaining: Partisan Politics, the Election of 1824, and the Suppression of the African Slave Trade
JOURNAL	Journal of the Early Republic 42, no. 3 (2022)
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Corrupt Bargaining

Partisan Politics, the Election of 1824, and the Suppression of the African Slave Trade

CRAIG B. HOLLANDER

Historians long ago dismissed the notion that partisan conflict came to a standstill during the "Era of Good Feelings," the period between 1815 and 1825 when the Republican Party enjoyed virtually unopposed control over national affairs. On the contrary, there were several fierce political bouts during that period, including in 1824 when five prominent Republicans—John Quincy Adams, John C. Calhoun, Henry Clay, Andrew Jackson, and William H. Crawford—all competed for the presidency. After the election, Jackson accused Clay and Adams of having made a "corrupt bargain," which one newspaper defined as an offer "made, by a candidate for the presidency; in which for the sake of giving a number of votes, for one object, he engages, on his part, to transfer a given number of votes, in return for another object." According to Jackson, Adams had promised Clay that he would appoint him secretary of state if he would support his candidacy when the House of Representatives decided the election. Among

Craig B. Hollander is an associate professor of history at The College of New Jersey. The research for this article stems from the author's doctoral dissertation and his forthcoming book project, which is under contract with the University of Pennsylvania Press. The author is grateful to his colleagues at The College of New Jersey for providing both institutional and moral support for this research. He would also like to thank Andrew Fagal, Michael Johnson, Dael Norwood, and Sean Wilentz for their expert feedback on drafts of this article. In addition, he expresses his gratitude to The Johns Hopkins University Department of History for inviting him to present this work to its renowned Seminar. But the author is particularly appreciative of the *JER*'s three anonymous peer reviewers and editorial staff. Above all, the author is supremely thankful to Andrew Shankman for all his time, scholarly insights, and editorial advice. Finally, the author dedicates this article to his wonderful wife, Jenifer Hollander, and their two daughters, Lydia and Eliza.

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other lasting effects, this unsubstantiated allegation shattered the veneer of Republican Party unity, paved the way for Jackson's election in 1828, and contributed to the emergence of the Second Party System. But this article isn't about *the* corrupt bargain. It's about *a* corrupt bargain—a more verifiable one, which, despite its obscurity, also had widespread and enduring ramifications. Indeed, this corrupt bargain undermined the nation's ability to suppress the African slave trade for decades to come.[1]

Between 1794 and 1820, the United States transformed the African slave trade from a legitimate form of commerce into a capital crime, punishable by the death penalty. In recent years, scholars of the slave trade have largely agreed that Americans took seriously the abolition of the traffic for the first few decades of the nineteenth century. Yet, in April 1824, a geographically diverse group of Republican senators blocked President Monroe's reappointment of a customs collector named Barnabas Bates, who, as most of them knew, had been impeding merchants in Rhode Island from illegally trafficking Africans to Cuba. Then, a month later, this same group opposed the anti-slave-trade convention that the Monroe administration had made with Great Britain. The British rejected the Senate's changes to the convention, dashing an agreement that would have enabled the two nations to suppress the traffic more effectively. The question, then, is why did these lawmakers decide to weaken the nation's ability to suppress the slave trade?[2]

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1. Reprinted in "The Proposition to Mr. Adams Justified and Extended," *Republican Gazette and General Advertiser* (Fredericktown, MD), Feb. 21, 1824. The phrase "corrupt bargain" actually pre-dated the election of 1824, which took place between October and December of that year. Throughout 1824, in fact, newspapers alleged that politicians were making such deals to further their own interests at the expense of their constituents. For the most comprehensive account of the election of 1824, see Donald Ratcliffe, *The One-Party Presidential Contest: Adams, Jackson, and 1824's Five-Horse Race* (Lawrence, KS, 2015).

2. For an in-depth examination of this legislative progression, see Craig Hollander, "Against a Sea of Troubles: Slave-Trade 'Suppressionism' during the Early Republic," PhD diss., The Johns Hopkins University, 2013; Leonardo Marques, *The United States and the Transatlantic Slave Trade to the Americas, 1776–1867* (New Haven, CT, 2016); and Matthew Mason, *Slavery and Politics in the Early American Republic* (Chapel Hill, NC, 2006). For a more cogent analysis, see Paul Finkelman, "Regulating the African Slave Trade," *Civil War History* 54, no. 4 (2008), 379–405; and Matthew Mason, "Keeping Up Appearances: The International Politics of Slave Trade Abolition in the Nineteenth-Century Atlantic World," *William and Mary Quarterly* 66 (Winter 2009), 809–32. Scholars continue to

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.23 - The Consolidation of State Judicial Power: Spencer Roane, Virginia Legal Culture, and the Southern Judicial Tradition

Timothy S. Huebner

ARTICLE	The Consolidation of State Judicial Power: Spencer Roane, Virginia Legal Culture, and the Southern Judicial Tradition
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THE CONSOLIDATION OF STATE JUDICIAL POWER

Spencer Roane, Virginia Legal Culture, and the Southern Judicial Tradition

by TIMOTHY S. HUEBNER*

As a leading Virginia jurist from 1789 to 1822, Spencer Roane figured prominently in the major constitutional, legal, and political debates of his day. A renowned critic of the nationalism of the Marshall Court, he is best remembered for his political activities—for opposing the chief justice through a series of newspaper essays that championed the theory of state sovereignty. More often than not, historians, because they have focused on Roane's battle with John Marshall, have portrayed the Virginia judge as a state political boss—head of the so-called "Richmond Junto"—rather than as a member of one of the nation's most powerful judicial tribunals.[1] Yet Roane's record constituted more than the partisan sniping that filled the pages of the early nineteenth-century *Richmond Enquirer*. As a judge of the Virginia General Court for five years and the most prominent member of the state's Supreme Court of Appeals for twenty-seven, he played an important role in establishing the independence, power, and prestige of the state's judiciary by advancing the concept of judicial review, promoting unanimity among the judges, and deciding cases on the basis of settled legal precedents. Because his

* Timothy S. Huebner is a visiting assistant professor of history at the University of Miami at Coral Gables. The author wishes to thank Kermit L. Hall, Bertram Wyatt-Brown, Daniel Kilbride, and Nancy Slayden for their insightful comments on this essay. In addition, he especially wishes to extend his gratitude to the Virginia Historical Society for awarding him an Andrew W. Mellon Research Fellowship and to E. Lee Shepard of the Society for his helpful suggestions in researching and revising.

[1] Spencer Roane served as a judge of the Virginia General Court from 1789 to 1794 and a judge on the Virginia Court of Appeals from 1794 to 1822. For the traditional interpretation of Roane, see William E. Dodd, "Chief Justice Marshall and Virginia, 1813–1821," *American Historical Review* 12 (1906–7): 776–87; Albert J. Beveridge, *Life of John Marshall* (4 vols.; Boston and London, 1919), 1:210, 4:146–47; Charles Warren, *The Supreme Court in United States History* (2 vols.; Boston, 1922), 1:447–48, 516–18, 554–56; Rex Beach, "Spencer Roane and the Richmond Junto," *William and Mary Quarterly* (hereafter cited as *WMQ*), 2d ser., 22 (1942): 1–17; Harry Ammon, "The Richmond Junto, 1800–1824," *Virginia Magazine of History and Biography* (hereafter cited as *VMHB*) 61 (1953): 395–418; Joseph H. Harrison, Jr., "Oligarchs and Democrats: The Richmond Junto," *VMHB* 78 (1970): 184–98.

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famous contest with Marshall over the nature of federalism originated as a battle over judicial power and jurisdiction within Virginia, Roane's views as a political writer can only be understood within the context of his work as a state judge. Roane's legacy, therefore, stems from his experience on the state bench as well as from his foray into national politics.

An examination of Roane's public life offers insights into the tradition of judging that developed in the early nineteenth-century South. Scholars have long neglected southern legal history in general and the region's judiciary in particular. While lavishing attention on planters and politicians, historians of the South have continued to overlook its professional class, including judges and lawyers.[2] Legal historians, for their part, have devoted equally little attention to southern jurists. The most comprehensive historical analysis of American judges, G. Edward White's *American Judicial Tradition*, despite its title, really focuses on a northern tradition of jurisprudence associated with such men as Lemuel Shaw, James Kent, Joseph Story, Samuel Miller, and Joseph Bradley. The only southerners who appear in White's book are Supreme Court justices, and aside from John Marshall, the only nineteenth-century southern jurists who merit White's attention are Roger B. Taney and John Marshall Harlan I—both from border states and therefore unrepresentative of the region as a whole. At the state level, the lack of biographical studies is particularly apparent. Historians know almost nothing about how even the most prominent southern state jurists dealt with issues of paramount importance to the nation's legal development.[3] An analysis of the judicial career of Roane—the preeminent jurist of the South's most important state during the early nineteenth century—provides a first step in redressing this historiographical imbalance.

Born in 1762 in Essex County, Virginia, the second son of William Roane, Jr., and Elizabeth Ball Roane, Spencer Roane came from a wealthy, well-connected Tidewater family of Scottish origin and grew up

[2] For reviews of this body of literature, see Randolph B. Campbell, "Planters and Plain Folks: The Social Structure of the Antebellum South," pp. 48–77, Drew Gilpin Faust, "The Peculiar South Revisited: White Society, Culture and Politics in the Antebellum Period, 1800–1860," pp. 78–119, and Joe Gray Taylor, "The White South from Secession to Redemption," pp. 162–98, all in John B. Boles and Evelyn Thomas Nolen, eds., *Interpreting Southern History: Historiographical Essays in Honor of Sanford W. Higginbotham* (Baton Rouge and London, 1987).

[3] G. Edward White, *The American Judicial Tradition: Profiles of Leading American Judges* (1986; New York, 1988); Paul Finkelman, "Exploring Southern Legal History," *North Carolina Law Review* 64 (1985): 77–116, esp. p. 81.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.24 - The Jacksonian Integration of Parties into the Constitutional System

Douglas W. Jaenicke

ARTICLE	The Jacksonian Integration of Parties into the Constitutional System
JOURNAL	Political Science Quarterly 101, no. 1 (1986)
EXCERPT	Original journal pages 85-86
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The Jacksonian Integration of Parties into the Constitutional System

DOUGLAS W. JAENICKE

The United States has bequeathed two enduring political creations to the world: written constitutions and mass political parties. Students of American politics agree that mass political parties originated and gained acceptance and respectability in antebellum America and that the Jacksonian Democrats were primarily responsible for that innovation.[1] In creating their political organization, Jacksonian Democrats and especially Martin Van Buren and his New York State party known as the Albany Regency eschewed the old revolutionary model of a temporary political movement organized to respond to a particular crisis. Instead, under their aegis, political parties and regularized partisan competition were transformed into permanent constitutional establishments.

A daunting challenge confronted these political innovators. Not only were they engaged in the novel experiment of creating new political institutions, but also the Constitution's and the political culture's general antipartyism threatened to abort any attempt to legitimate political parties. Relying on the large territory and population of the United States and auxiliary institutional arrangements to prevent any one faction or party from controlling all branches of the government, the founders had created a Constitution against political parties.[2] A mass

[1] Richard Hofstadter, *The Idea of a Party System: The Rise of a Legitimate Opposition, 1780–1840* (Berkeley: University of California Press, 1970); Michael L. Wallace, *Ideologies of Party in the Antebellum Republic* (Ph.D. diss., Columbia University, 1973); and Michael L. Wallace, "Changing Concepts of Party in the United States: New York, 1815–1828," *American Historical Review 74* (December 1968): 453–491.

[2] Hofstadter, *Idea of a Party System*, chap. 2.

DOUGLAS W. JAENICKE teaches American politics in the government department at the University of Manchester. His article is part of a broader study of American ideas about political parties.

Political Science Quarterly Volume 101 Number 1 Centennial Year 1886–1986

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political party appears to be equivalent to the majority faction that the founders and *The Federalist* had feared and sought to prevent. In addition, the traditional republican ideal postulated a statesman who exercised independent judgment to determine the public interest and the best method for its attainment;[3] but an institutionalized political party imposes partisan discipline upon its members, who are required to subordinate personal judgment to the party's position.

Despite this antiparty tradition, Democratic politicians broke new ground and accepted political parties as constitutional establishments necessary for the proper working of the Constitution. Martin Van Buren and other Democratic party thinkers defended national political parties as solutions to two crises in presidential selection: the malfunctioning of the electoral college and the dangerous character of presidential campaigns.[4] Furthermore, for Van Buren and like-minded others, regular partisan competition for office checked governmental power more effectively than did the formal constitutional system of separate institutions sharing power.[5] Such ideas about the constitutional role of political parties were so contagious that by the end of the second party system in the 1850s, Senator Stephen Douglas—author of the 1854 Kansas-Nebraska Act and the 1860 Democratic presidential nominee—interpreted the endorsement of territorial popular sovereignty by both major parties as the authoritative final settlement of the perplexing slavery extension issue.[6]

As novel political phenomena apparently anathematized by the Constitution and political culture, mass political parties and a competitive party system required a defense of their constitutionality. Surpassing a minimalist defense that accepted parties as the unavoidable accompaniments of political liberty, the first exponents of mass parties claimed that they improved the political processes of the Constitution. To integrate parties successfully into the constitutional order, Jacksonian Democrats expounded a procedural understanding of political parties and partisan competition that complemented the Constitution's own proceduralism. The Jacksonian Democrats developed both the idea and reality of an institutionalized mass political party as a coalition of heterogeneous groups bound together by procedural norms. The emphasis on social heterogeneity, interest, decision-making procedures, expediency, and compromise found in *The Federalist*, especially numbers Ten and Fifty-one, echoed in the Democrats' twin ideas of an institutionalized political party and regularized partisan competition. Although neither *The Federalist* nor the Democrats' idea of a political party and

[3] Wallace, *Ideologies of Party*, chaps. 1, 2; and Edward L. Mayo, "Republicanism, Anti-Partyism and Jacksonian Party Politics: A View from the Nation's Capital," *American Quarterly* 31 (Spring 1979): 3–20.

[4] James Ceaser, *Presidential Selection: Theory and Development* (Princeton, N.J.: Princeton University Press, 1979), chap. 3.

[5] Martin Van Buren, *The Autobiography of Martin Van Buren* (Washington, D.C.: U.S. Government Printing Office, 1920), 125. Also see Wallace, *Ideologies of Party*, 348–358, and "Changing Concepts of Party," 486–488.

[6] Harry V. Jaffa, *Crisis of the House Divided: An Interpretation of the Lincoln-Douglas Debates* (Seattle: University of Washington Press, 1959), 165.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.25 - The Spatial Theory of Voting and the Presidential Election of 1824

Jeffery A. Jenkins and Brian R. Sala

ARTICLE	The Spatial Theory of Voting and the Presidential Election of 1824
JOURNAL	American Journal of Political Science 42, no. 4 (1998)
EXCERPT	Original journal pages 1157-1158
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The Spatial Theory of Voting and the Presidential Election of 1824

Jeffery A. Jenkins, *Michigan State University*
Brian R. Sala, *University of Illinois at Urbana-Champaign*

Theory: We extend research on the spatial theory of voting and the electoral connection by exploring how U.S. House members responded to Electoral College gridlock in the presidential election of 1824. We analyze whether John Quincy Adams's victory was consistent with a spatial-theoretic, ideological model of voting or more closely followed the standard historical account that emphasizes Adams's role in a vote-buying "corrupt bargain."
Hypotheses: The corrupt-bargain thesis predicts that several states won by Adams in the House ballot swung on votes cast by MCs closer to Andrew Jackson than to Adams. The sincere voting model predicts MCs to vote for the closest candidate. Prediction errors should be most frequent near the cutting line between Adams and his closest opponent.
Methods: We use a spatial model of sincere voting as a baseline against which to test the corrupt-bargain hypothesis. We use logistic regression to further test implications from the spatial model. Legislator and candidate preferences are based on transformed Nominate scores (Poole and Rosenthal 1997; Poole 1998), which locate ideal points for House members and the 1824 presidential candidates in a common space.
Results: Adams's victory and profile of support were consistent with the sincere voting model and did not support the corrupt-bargain hypothesis. Voting errors involving Adams lie systematically closer to the cutting line than did "correct" votes. Additional evidence from an examination of lame-duck MCs' subsequent careers and an analysis of the congressional elections of 1826 support our findings.

1. Introduction

In March 1825, the United States inaugurated John Quincy Adams, a plurality loser in both the popular and Electoral College votes held in late 1824, as its sixth president.[1] None of the candidates in 1824 had won the

Earlier versions of this paper were presented at the annual meeting of the Southern Political Science Association, November 5–8, 1997, Norfolk; the annual meeting of the American Political Science Association, August 28–31, 1997, Washington; and the annual meeting of the Public Choice Society, March 21–23, 1997, San Francisco. All data used in this analysis is available from the authors upon request. We thank Keith Poole for providing the common-space W-Nominate scores and commentary on earlier drafts. We also thank Bill Bianco, Michael Cobb, Douglas Dion, Evelyn Fink, Brian Gaines, Brian Humes, Pat Lynch, Michael Munger, Peter Nardulli, Howard Rosenthal, Charles Stewart, Terry Sullivan, the anonymous referees, and Ken Meier for their comments and suggestions.

[1]The 1824 election was one of only three times in American history in which the plurality winner in the popular vote failed to win the presidency, the others being the elections of 1876 and 1888 Some sources also count the election of 1960 in this category, due to a dispute over how to count votes cast in Alabama for unpledged electors (see Longley and Peirce, 1996, 44–57).

American Journal of Political Science, Vol. 42, No. 4, October 1998, Pp. 1157–1179 ©1998 by the Board of Regents of the University of Wisconsin System

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required majority of Electoral College votes; thus, the choice for president fell constitutionally to the House of Representatives, which was to select from among the top three candidates in the electoral vote. Standard historical interpretations of that election conclude that Adams's eventual victory was the result of corrupt maneuvering and vote buying within the House of Representatives (Livermore 1962; Hopkins 1971; McCormick 1982; Remini 1988, 1991; Gragg 1993; Longley and Peirce 1996). For example, Adams is believed to have promised Henry Clay the Secretary of State position in exchange for his influence over the votes of four key western states. Likewise, Adams is said to have promised Daniel Webster the ambassadorship to Great Britain in exchange for his efforts to secure the support of Maryland. In short, Adams is alleged to have outmaneuvered his opponents by cutting deals with those representatives who increased his probability of election.

A major difficulty in analyzing this "strategic" voting story involves assessing its validity: no theoretical alternative exists for comparison purposes. Based upon the spatial theory of voting, we present an appropriate "null" model against which we can then test the corrupt-bargain hypothesis. Using data on recorded votes in Congress and scaling techniques developed by Poole (1998) and Poole and Rosenthal (1985, 1991, 1997), we are able to place presidential candidates and House members in a common evaluative space and to analyze the election spatially.

Our results differ greatly from the strategic story—the spatial voting model provides a reasonable fit to the observed behaviors and predicts Adams to win a convincing victory under assumptions of complete information and sincere voting. These results are, furthermore, robust in the sense that the distribution of misclassified votes ("errors" in voting from our model's perspective) are consistent with a probabilistic voting model in which MCs most nearly indifferent between their top two choices are the most likely to vote against their sincere first preference. Our results strongly suggest that Adams did not steal the election by corrupting MCs whose ideological predilections were to vote for one of his opponents.

This paper proceeds as follows. In the next section, we review the historical literature on the 1824 election and set the stage for the 1825 House ballot. Next, we lay out the spatial model and briefly discuss the derivation of MC and presidential candidate ideal points. We then apply the spatial model to predict MC votes in the House balloting and discuss the results. Finally, we conclude our analysis and review our overall findings.

2. The Election of 1824 and the "Corrupt-Bargain" Thesis of Nonspatial Voting

The 1824 election was a watershed event in American history (Brown 1925; Dangerfield 1952; Hofstadter 1969). While it marked a break between the era of elite-driven politics and the modern era of mass electorates, the

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.26 - How Great Were the 'Great' Marshall Court Decisions?

Michael J. Klarman

ARTICLE	How Great Were the 'Great' Marshall Court Decisions?
JOURNAL	Virginia Law Review 87, no. 6 (2001)
EXCERPT	Original journal pages 1111-1112
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HOW GREAT WERE THE "GREAT" MARSHALL COURT DECISIONS?

Michael J. Klarman[*]

I. *MARBURY* AND JUDICIAL REVIEW 1113
II. THE SCOPE OF NATIONAL POWER 1126
III. CONTRACT CLAUSE DECISIONS 1144
IV. THE SUPREME COURT'S STATURE 1153
A. Conscious Design 1157
B. Fortuity 1164
CONCLUSION 1181

ON this two hundredth anniversary of the ascension of John Marshall to the Chief Justiceship of the United States Supreme Court, it is appropriate that we take a revisionist look at some of the landmark decisions of the Court that he presided over for thirty-four years. Political scientists and legal scholars have written a great deal in recent years questioning conventional assumptions about the importance of Supreme Court decisions such as *Brown v. Board of Education*,[1] *Roe v. Wade*,[2] and *Engel v.*

[*] James Monroe Professor of Law, Albert C. Tate, Jr., Research Professor, and Professor of History, University of Virginia. I am grateful to Howard Gillman, Mark Graber, Chuck Hobson, Reuel Schiller, and Ted White for helpful comments on an earlier draft, to Chuck McCurdy for valuable suggestions on sources, and to Barbie Selby for reference assistance above and beyond the call of duty. Special thanks to Barry Cushman. I also want to take this opportunity to thank Bob Scott, both for the extraordinary support he has provided for my research over the past ten years and for the exemplary leadership he has provided to the University of Virginia School of Law during his tenure as dean.

[1] 347 U.S. 483 (1954). On the contributions of *Brown* to the 1960s civil rights movement, compare Gerald N. Rosenberg, *Brown* Is Dead! Long Live *Brown*!: The Endless Attempt to Canonize a Case, 80 Va. L. Rev. 161 (1994) (giving *Brown* almost no credit) with David J. Garrow, Hopelessly Hollow History: Revisionist Devaluing of *Brown v. Board of Education*, 80 Va. L. Rev. 151 (1994) (tremendous credit) and Michael J. Klarman, *Brown v. Board of Education*: Facts and Political Correctness, 80 Va. L. Rev. 185 (1994) (indirect and moderate credit).

[2] 410 U.S. 113 (1973). On the importance of *Roe*, compare Gerald N. Rosenberg, The Hollow Hope: Can Courts Bring About Social Change? 178–84 (1991) (arguing that legislatures were liberalizing abortion rights independently of *Roe*) with David J. Garrow, Liberty and Sexuality: The Right to Privacy and the Making of *Roe* v. *Wade*

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Vitale.[3] Yet almost nothing has been written about the consequences of the "great" Marshall Court decisions.[4] Scholars continue, almost universally, to assume that the old Marshall Court chestnuts—decisions such as *Marbury v. Madison*,[5] *McCulloch v. Maryland*,[6] and *Dartmouth College v. Woodward*[7]—were of enormous significance to the history of the early republic. A closer look at these rulings in their historical context, however, suggests that such assumptions are in need of serious revision. While I do not mean to suggest that these famous Marshall Court decisions were completely inconsequential, the prevalent assumption that they fundamentally shaped the course of American national development is almost certainly wrong.

This Article will reconsider the consequences of three categories of Marshall Court decisions. Part I will examine the most famous Marshall opinion of all, *Marbury v. Madison*, and will question the importance of its proclamation of the judicial review power. Part II will reevaluate the importance of *McCulloch v. Maryland* and *Gibbons v. Ogden*[8]—decisions that approved extremely broad conceptions of national legislative power. Part III will turn to some of the famous Contract Clause decisions of the Marshall Court—specifically, *Dartmouth College v. Woodward*, *Sturges v. Crowninshield*,[9] and *Green v. Biddle*[10]—and will challenge the widespread assumption that they were instrumental to American economic development during the first half of the nineteenth century. Finally,

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482–93 (1994) (arguing that the abortion rights movement had stalled in the political arena by the early 1970s and that *Roe* rescued it).

[3] 370 U.S. 421 (1962). For widespread defiance of *Engel*, see Frank J. Sorauf, The Wall of Separation: The Constitutional Politics of Church and State 296–300 (1976); H. Frank Way, Jr., Survey Research on Judicial Decisions: The Prayer and Bible Reading Cases, 21 W. Pol. Q. 189 (1968). On the general subject of the consequences of Supreme Court decisions, see, e.g., Leveraging the Law: Using Courts to Achieve Social Change (David A. Shultz ed., 1998); Stephen L. Wasby, The Impact of the United States Supreme Court: Some Perspectives (1970).

[4] The leading exception to the statement in the text is the excellent doctoral dissertation of Dwight Wiley Jessup, Reaction and Accommodation: The United States Supreme Court and Political Conflict 1809–1835 (1987).

[5] 5 U.S. (1 Cranch) 137 (1803).

[6] 17 U.S. (4 Wheat.) 316 (1819).

[7] 17 U.S. (4 Wheat.) 518 (1819).

[8] 22 U.S. (9 Wheat.) 1 (1824).

[9] 17 U.S. (4 Wheat.) 122 (1819).

[10] 21 U.S. (8 Wheat.) 1 (1823).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.27 - Henry Clay's Constitutional Unionism

Peter B. Knupfer

ARTICLE	Henry Clay's Constitutional Unionism
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Henry Clay's Constitutional Unionism

by Peter B. Knupfer

I

"I go for honorable compromise whenever it can be made," Henry Clay declared during the heated Senate debate over slavery in 1850. Few historians would quarrel with Clay's commitment to compromise; indeed, the concept has become an essential theme for his biographers, for perhaps only "compromise" can explain the many reversals, inconsistencies, and contradictions that littered his controversial public life. To many Clay scholars, the Kentuckian was simply a gamester, a pragmatic compromiser who brilliantly manipulated the language and style of antebellum politics in his relentless quest for the presidency. Heading up a long line of Clay-watchers, John T. Morse wrote in 1889 that "his panacea, his watchword, his purpose was always Compromise," which fostered "the most shallow and transitory statesmanship" on sectional issues. Erratic and temperamental, he was "at once everywhere and nowhere" on the tariff, Morse argued, and "on slavery he was much worse." Apparently, Clay's only two firm, consistent opinions — his hatred of Andrew Jackson and his patriotism — intensified instead of sobered his ambitions. His constitutionalism was a jumble of contradictions, Robert Seager tells us, as Clay switched "from broad to narrow to various in-between interpretations of it with the ease of changing his vest." In the end, Clay's compromising betrayed his principles, unmasked his superficial intellect, and deflated his statesmanship.[1]

Dr. Knupfer is a visiting assistant professor of history at Arizona State University. His doctoral dissertation at the University of Wisconsin examined " 'The Union As It Was': The Civic Tradition of Compromise Before the Civil War."

[1]Senate speech, *Congressional Globe*, 31st Cong., 1st sess., July 22, 1850, Appendix: 1408 (hereafter *CG*, Congress: session); John T. Morse, Jr., in preface, Carl Schurz, *Henry Clay*, 2 vols. (Boston, [1877], 1889), 1:xxvii-xxviii; Robert Seager II, "Henry Clay and the Politics of Compromise and Non-Compromise," *Register of the Kentucky Historical Society* 85 (1987): 6. George Dangerfield's memorable portrait of Clay in *The Era of Good Feelings* (New York, 1952), 10-13, is a classic statement of this interpretation. Schurz, *Henry Clay*, 1:23-24, fixes Clay's profession as an "orator," describes him as an "arranger of measures," and notes how his superficial brilliance enabled him "to

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Unfortunately, this line of thinking distorts the relationship between Clay and compromise just as it obscures Clay's special legacy to us. Premised on the belief that Clay had few, if any, consistent opinions of lasting value, this image of Clay accords too much prominence to compromise and leaves Clay's ideas adrift. And its portrait of Clay assumes a backdrop of modern party politics and interest-group political activity that, according to recent research, comprises only a part of the larger set of political customs and conventions that shaped Clay's political world.[2] Everybody compromises, especially politicians. But unlike most politicians, Clay explained compromise and placed it within a historical, constitutional, and ethical context that goes far toward explaining his opinions on transient policy questions. If we set aside the standard biographical treatment of Clay's life as an episodic series of challenges to his soaring ambition, and instead treat him as a trenchant observer of the operation of the constitutional system, then a remarkably consistent, if conventional, body of political thought appears.

Henry Clay was a Constitutional Unionist who believed that the Constitution limited the power and scope of the Union by establishing a system partly federal, partly national. This equivocal legacy from the founding fathers dictated the statesman's true duty — to seek the domestic tranquility and a stronger Union by cultivating the people's willingness to make sacrifices over time. Certainly, compromise played a pivotal role in this scheme, but not as a theory. Compromise was both strategy and symbol — a necessary procedure in a pluralistic republic, and a continuing

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make little tell for much, and to outshine men of vastly greater learning." See also Glyndon G. Van Deusen, *Life of Henry Clay* (Boston, 1937), 425-26, and Clement Eaton, *Henry Clay and the Art of American Politics* (Boston, 1957), 89. Several recent revisions of Clay portend a long-overdue reconsideration of the Kentuckian. Daniel W. Howe, *The Political Culture of the American Whigs* (Chicago, 1979), 123-49, was the first historian to give serious attention to Clay's political ideas and their place in contemporary political culture; Thomas Brown, *Politics and Statesmanship: Essays on the American Whig Party* (Columbia, Mo., 1983), 119-53, offers a similar interpretation; and Merrill D. Peterson, *The Great Triumvirate: Webster, Clay, and Calhoun* (New York, 1987), is a fresh reassessment of Clay's statesmanship.

[2]For an example, see John Ashworth, *"Agrarians and Aristocrats": Party Political Ideology in the United States, 1837-1846* (Cambridge, 1983).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.28 - The Second American Party System and the Transformation of Revolutionary Republicanism

Marc W. Kruman

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THE SECOND AMERICAN PARTY SYSTEM AND THE TRANSFORMATION OF REVOLUTIONARY REPUBLICANISM

Marc W. Kruman

As George Washington prepared to retire from the presidency, he warned his countrymen against ''the baneful effects of the spirit of party.'' ''All combinations and associations,'' he explained, ''with the real design to direct, control, counteract, or awe the regular deliberation and action of the constituted authorities . . . serve to organize faction; to give it an artificial and extraordinary force; to put in the place of the delegated will of the nation the will of a party, often a small but artful and enterprising minority of the community.''[1] Washington's assault on factions as parasitic, divisive, and destructive entities pursuing the selfish interests of the few rather than the commonweal reflected the ubiquitous republican ideology of the revolutionary era. Yet in little more than a generation, political leaders formed the kinds of parties Washington despised. They also transformed republicanism from an ideology antagonistic to parties into one that embraced and even relied upon them.

Republican ideology prescribed that citizens pursue self-interest with one eye trained upon the good of the community. Drawing upon classical republicanism and English Real Whig modifications of it,

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Marc W. Kruman is a member of the department of history at Wayne State University, Detroit, Michigan. He wishes to thank the following for their helpful comments: Joyce Appleby, Jeffrey J. Crow, Daniel Walker Howe, Christopher H. Johnson, Richard L. McCormick, John Murrin, and Harry Watson. He extends special thanks to Sandra F. VanBurkleo for her incisive criticism of numerous earlier drafts of this essay.

[1] George Washington, ''Farewell Address,'' in *Messages and Papers of the Presidents*, ed. James D. Richardson (20 vols., Washington, D.C., 1897-1917), I, 209-210.

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revolutionaries insisted that the interests of the community ought to be homogeneous. They believed that the success of the republican experiment required self-sacrifice by an economically independent, virtuous citizenry engaged continually in discussions of the fundamentals of government. Discourse, in turn, ensured the perpetual regeneration of the body politic. Revolutionary republicans asserted further that the republic's survival depended upon severe limitations on the power of their rulers.[2] At its heart, therefore, revolutionary republicanism was profoundly hostile to modern partisan politics in the republicans' emphasis on consensus and the common good, in their assumption that conflict marked the republic's decline, and in their deep-seated fear of parties as the seedbeds both of demagoguery and of consolidationism.

But in the 1820s and 1830s, party politicians began inadvertently to turn revolutionary republicanism on its head. During those decades politicians formed political parties, but they did so not because they rejected the ideology of republicanism. Rather they hoped that their parties would halt the republic's decline, root out corruption, restore civic virtue, and provide a means for obtaining republican consensus. Indeed, politicians viewed their own parties as the embodiments of the common good and elections as a mechanical

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[2] Gordon S. Wood, *Creation of the American Republic, 1776-1787* (Chapel Hill 1969), esp. 46-75. Wood's mentor, Bernard Bailyn, who introduced American historians to republican ideology in his *The Ideological Origins of the American Revolution* (Cambridge, Mass. 1967), did not even include the words civic virtue or virtue in the index to his book. He stressed the persistence in the American colonies of the Real Whig emphasis on the interrelationship of power, corruption, and liberty. For a somewhat different view of virtue during the revolutionary era, see Robert H. Wiebe, *The Opening of American Society: From the Adoption of the Constitution to the Eve of Disunion* (New York 1984), 13. For excellent introductions to the many studies of republican ideology, see Robert E. Shalhope, "Toward a Republican Synthesis: The Emergence of an Understanding of Republicanism in American Historiography," *William and Mary Quarterly*, 29 (Jan. 1972), 49-80; Shalhope, "Republicanism and Early American Historiography," *ibid.*, 39 (Apr. 1982), 334-356; Linda K. Kerber, "The Republican Ideology of the Revolutionary Generation," *American Quarterly*, 37 (Fall 1985), 474-495; and Lance Banning, "Jeffersonian Ideology Revisited: Liberal and Classical Ideas in the New American Republic," *William and Mary Quarterly*, 43 (Jan. 1986), 3-19. The last decade's flood of studies of republicanism—especially those relating to nineteenth-century political economy, artisan republicanism, and party politics—require extended historiographical analysis. The present synthetic essay, which explores the interplay of party politics and republican ideology, makes no attempt to meet that pressing need.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.29 - Federalists, Federalism, and Federal Jurisdiction

Alison L. LaCroix

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FORUM: *AB INITIO*: LAW IN EARLY AMERICA

Federalists, Federalism, and Federal Jurisdiction

ALISON L. LACROIX

> We have no more right to decline the exercise of jurisdiction which is given, than to usurp that which is not given.
>
> – *Cohens v. Virginia* (1821)

> Ohio has begun with reprisals? God grant that some other state may not resort to arms!
>
> – Henry Wheaton, *The Dangers of the Union* (1821)

Alison L. LaCroix is professor of law at the University of Chicago Law School <lacroix@uchicago.edu>. She thanks William Birdthistle, John Carson, Andrew Coan, Kris Collins, Adam Cox, Nina Dayton, Rosalind Dixon, Jim Ely, Tom Gallanis, Tom Green, Philip Hamburger, Dan Hamilton, Aziz Huq, Linda Kerber, Chuck McCurdy, Henry Monaghan, Bill Nelson, R. Kent Newmyer, Bill Novak, Martha Nussbaum, Richard Primus, Gil Seinfeld, Jed Shugerman, Brad Snyder, David Strauss, Lea VanderVelde, and Ted White for helpful comments and discussion. Versions of this article were presented at the University of Michigan Law School, the University of Wisconsin Law School, the American Bar Foundation/Illinois Legal History Seminar, the University of Chicago Law School, Vanderbilt University Law School, the "Ab Initio: Law in Early America" conference, the University of Illinois College of Law, the University of Iowa College of Law, Columbia Law School, Northwestern Law School, the University of Connecticut, the University of Alabama School of Law, the University of Virginia School of Law, and George Washington University Law School. The author is grateful to the participants in those sessions for their comments. She thanks the Mayer Brown Faculty Research Fund for research support. Jeffrey Bergman, Evan Berkow, and Melissa Gworek provided excellent research assistance.

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Historians and legal scholars generally agree that during John Marshall's tenure as chief justice of the United States Supreme Court from 1801 to 1835, the federal judiciary expanded its power to interpret the Constitution and asserted with increasing force its authority to speak on behalf of the Union. This single story of judicial nationalism, however, contains two distinct and largely non-overlapping strands. Historians have tended to focus on the Supreme Court alone, to the exclusion of the lower federal courts, and have largely treated early national controversies over the lower federal courts as outgrowths of the political turmoil that accompanied the emergence of the first party system. Legal scholars in the fields of federal courts and constitutional law, meanwhile, have devoted significant attention to the lower federal courts but have largely neglected the history of how those courts developed beyond the key early moments of the Constitutional Convention and the First Congress.

This article returns the lower, or inferior, federal courts to their central place in the story of early national law and politics. The actual work of the lower federal courts occupied the attention of Federalist and Jeffersonian Republican commentators alike, and technical issues of the courts' jurisdiction proved divisive because they were widely seen as the practical, institutional workings-out of fundamental questions of federal structure left incompletely settled after the founding. The extension of federal judicial power to the lower federal courts was a crucial element of the Federalists' project of completing and cementing what they viewed as the essential federal nature of the Republic.

Marshall and his fellow federalists/Federalists, most notably Justice Joseph Story,[1] shared a substantive commitment to a particular kind of structure: a judiciary-centric federalism. Marshall and Story were deeply committed to the belief that the inferior federal courts were and ought to be the principal physical embodiment of the national government, reaching into the otherwise highly localized space of the cities, towns, and countryside of the United States.[2] In an era in which Congress's power to oversee internal improvements such as canals and turnpikes remained highly contested, and before the issue of slavery in the territories had galvanized antislavery arguments for expanding the reach of congressional regulation, the federal legislative power was largely confined to the regulation of international treaties and trade, military affairs, and the post office. Marshall

1. Story was appointed to the Court in 1811 by a Republican president, James Madison.
2. On the gradual replacement of "polycentric localism" with a more unitary nationalism in the early national period, see Christopher Tomlins, "Republican Law, 1770–1820," in *The Oxford Handbook of the American Revolution*, ed. Ed Gray and Jane Kamensky (forthcoming, 2012).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.30 - A New Look at Jacksonian Politics

Richard B. Latner

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A New Look at Jacksonian Politics

RICHARD B. LATNER

SIXTEEN years ago, Charles G. Sellers concluded his excellent survey of Jacksonian historiography by observing the "wealth in hypotheses about the Jackson period. . . ."[1] Today the situation remains unchanged. Among the prevalent views, one sees Jacksonian Democracy as a movement of enterprising capitalists eager to overthrow a previously established economic élite in order to inaugurate a reign of laissez faire capitalism.[2] Another portrays Jacksonianism as a futile and nostalgic attempt to restore the Jeffersonian Arcadia in the bustling world of nineteenth-century America.[3] Yet another finds the key to Jacksonian politics in the contention between John C. Calhoun and Martin Van Buren for control of the Democratic party.[4] Finally, a recent and influential essay emphasizes the connection between the Jackson Democratic party and the protection of slavery. According to this view, the union of Jacksonianism and slavery was sanctioned in the 1820s by Van Buren, who revitalized Thomas Jefferson's New York-Virginia alliance on its original strict construction basis, made it the controlling element in the Democratic party, and ensured southern domination of national politics until secession shattered the Union.[5]

Richard B. Latner is associate editor of *Michigan History*.

[1] Charles Grier Sellers, Jr., "Andrew Jackson versus the Historians," *Mississippi Valley Historical Review*, XLIV (March 1958), 634.

[2] Bray Hammond, *Banks and Politics in America from the Revolution to the Civil War* (Princeton, 1957); Richard Hofstadter, *The American Political Tradition and the Men Who Made It* (New York, 1948); Thomas Perkins Abernethy, *From Frontier to Plantation in Tennessee: A Study in Frontier Democracy* (Chapel Hill, 1932).

[3] Marvin Meyers, *The Jacksonian Persuasion: Politics and Belief* (Stanford, 1957).

[4] Charles M. Wiltse, *John C. Calhoun: Nullifier, 1829-1839* (Indianapolis, 1949).

[5] Richard H. Brown, "The Missouri Crisis, Slavery, and the Politics of Jacksonianism," *South Atlantic Quarterly*, LXV (Winter 1966), 55-72. See also Robert V. Remini's *The Election of Andrew Jackson* (Philadelphia, 1963). This is by no means an exhaustive survey of significant interpretations of Jacksonianism. Other influential works include Arthur M. Schlesinger, Jr., *The Age of Jackson* (Boston, 1945); Lee Benson, *The Concept of Jacksonian Democracy: New York as a Test Case* (Princeton, 1961); John William Ward, *Andrew Jackson: Symbol for an Age* (New York, 1955); Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill, 1966);

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Despite the appeal of these theories, there is much to be said for another point of view, one which harks back to the writings of Frederick Jackson Turner by affirming western domination of the Democratic party during Andrew Jackson's presidency. Of course, the West was not a monolithic section; it had many political tendencies. But one indigenous strand of western politics particularly influenced the Democratic party in its early years. Neither entrepreneurial nor nostalgic, it was the chief rival of Van Buren's in forming party policy.

Evidence for this contention arises from a study of the executive office, where the President and his advisers largely shaped the contours of the Democratic party's program and style. When Jacksonian politics is probed in this light, the special importance of Jackson himself and two western advisers, Kentucky's Amos Kendall and Francis Blair, becomes evident. Loyal first and foremost to the President, these men shared a basic agreement on political principles and practice. All three men were slaveholders who considered themselves westerners rather than southerners, and one of their primary objectives was to ensure the Democratic party's permanent supremacy by tying the West to it. This is not to say that Van Buren was without influence. He held considerable power, but it was not decisive; and Van Buren was often put on the defensive by the actions of the Jackson-Kendall-Blair axis.

The economic and social turmoil of the Panic of 1819 catapulted Kendall and Blair into political prominence and etched in their minds a set of attitudes that influenced their future activity. As newspapermen and officeholders, both became leaders of the New Court, or relief, party which espoused a program of currency inflation and stay and replevin laws and which vilified the Bank of the United States (BUS) for its part in causing the depression. Many men of substance joined the relief party, but most of its followers came from the debtor farming and mechanic population of Kentucky. Finding their opposition centered in the landed and commercial wealth of Lexington and the older Blue Grass region, relief leaders quickly realized the need to take their case to the people through dramatic appeals and grass roots organization. They seized the standard of democracy by attacking BUS as a monument of special privilege and by blasting Kentucky's established political leadership for refusing to aid the common man. Their egalitarian rhetoric and their aptitude for political organization made the Kentucky New Court party a leading example of the new style

Ronald P. Formisano, *The Birth of Mass Political Parties: Michigan, 1827-1861* (Princeton, 1971).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.31 - Thomas Jefferson and the Missouri Crisis: An Alternative Interpretation

Stuart Leibiger

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RESEARCH NOTE

THOMAS JEFFERSON AND THE MISSOURI CRISIS: AN ALTERNATIVE INTERPRETATION

Stuart Leibiger

It is an article of faith among historians that Thomas Jefferson became alarmed over the Missouri Crisis of 1819-1821, fearing that it adumbrated the Union's dissolution. A complete examination of his writings in their original context leaves room for an alternative interpretation. Although the Virginian did become alarmed for his country's future, that alarm was perhaps not as intense or as long-lived as has been suggested. The hand-wringing apparent in Jefferson's shrillest letters, moreover, may have been calculated for effect and possibly should not be taken at full face value. Much of what he wrote was solicited by northern "dough faces" (supporters of Missouri slavery) seeking vindication for their votes in Congress. The ex-president, who knew his responses would be publicized, may have sought to take advantage of what he recognized as an opportunity to help put a dangerous issue to rest. He may have endeavored to scare Yankees into fearing for the Union, causing them to abandon attempts to restrict slavery. In short, there is reason to believe Jefferson tailored his statements about the Missouri Crisis to suit specific audiences. If this is

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Stuart Leibiger is a lecturer in the department of history at Princeton University. He is currently completing a book entitled *The George Washington-James Madison Collaboration and the Creation of the American Republic*. An earlier version of this essay was delivered at the Eighteenth Annual SHEAR Conference, Nashville, Tennessee, July 18, 1996. He wishes to thank Stephen Aron, Robert Forbes, Don Higginbotham, John L. Larson, Jan Lewis, Peter Onuf, and the late Eugene R. Sheridan.

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the case, then we need to reassess both the substance of Jefferson's comments and his political habit of sometimes using hysterical language to influence public opinion.

The standard interpretation maintains that the Missouri controversy caught Jefferson completely by surprise, filled him with anxiety, and left him despondent about the republic's fate. According to Merrill Peterson, ''The Missouri Compromise threw Jefferson into the deepest political malaise of his entire life.'' Dumas Malone writes that the episode ''terrified'' and ''depressed'' the Sage of Monticello. And John Chester Miller concludes that the dispute helped send ''shock waves through Thomas Jefferson,'' convincing him ''that the future of American republicanism and the fate of the American Union hung in the balance.'' Consequently, the Virginian, in desperation, confronted ''the anti-Missourians with a set of nonnegotiable demands.''[1]

In reality, the Missouri Crisis did not attract Jefferson's immediate attention. In February 1819, when the House of Representatives considered a bill authorizing the Missouri territory to draft a constitution and establish a state government, James Tallmadge, Jr., of New York, offered an amendment prohibiting the admittance of new slaves to the territory and gradually emancipating those already there. The House approved the Tallmadge amendment, but the Senate refused to go along. In March, the Fifteenth Congress adjourned before the

[1] Merrill D. Peterson, *Thomas Jefferson and the New Nation* (New York, 1970), 997; Dumas Malone, *The Sage of Monticello* (Boston, 1981), 328; John Chester Miller, *The Wolf by the Ears: Thomas Jefferson and Slavery* (1977; rep., New York, 1980), 230, 233, 243. See also Robert Forbes, *The Missouri Crisis and its Aftermath* (Chapel Hill, forthcoming); Glover Moore, *The Missouri Controversy, 1819-1821* (Lexington, KY, 1953), 253-55; William W. Freehling, *The Road to Disunion: Secessionists at Bay, 1776-1854* (New York, 1990), 144, 155; and Harry Watson, *Liberty and Power: The Politics of Jacksonian America* (New York, 1990), 71-72. Virtually every college textbook follows this interpretation. See for example, Gary B. Nash *et al.*, *The American People: Creating a Nation and a Society* (New York, 1986), 330; John M. Blum *et al.*, *The National Experience: A History of the United States*, 8th ed. (Forth Worth, 1993), 219-20; and John M. Murrin *et al.*, *Liberty, Equality, Power: A History of the American People* (Fort Worth, 1996), 369. The following works allow Jefferson to speak for himself, but quote only his shrillest rhetoric: Norman K. Risjord, *Thomas Jefferson* (Madison, 1994), 192; Noble E. Cunningham, Jr., *The Presidency of James Monroe* (Lawrence, 1996), 104; Robert A. Divine *et al.*, *America Past and Present*, 3rd ed. (New York, 1991), 275; and James A. Henretta *et al.*, *America's History*, 2nd ed. (New York, 1993), 245.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.32 - 'The Fire-Brand of Discord': The North, the South, and the Savannah Fire of 1820

Matthew Mason

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"The Fire-Brand of Discord": The North, the South, and the Savannah Fire of 1820

By Matthew Mason

On January 11, 1820, a fire broke out in Savannah, Georgia. It began at two in the morning in a livery stable in the most densely populated part of the city. Several factors combined to make it a massive conflagration. Savannah's weather had been dry for the preceding four months and a stiff wind blew that night. Furthermore, in short order the blaze spread to the town's Baptist church square, where for some reason several of the shops contained large amounts of gunpowder. One report stated that the explosion of this powder, together with the wind (made more powerful by the fire) created an inferno that "bid defiance to all human controul. . . . The heat was so intense," continued the account, "that several large buildings considered as fireproof, went with the rest. Many of the houses were cleared of their contents, but these were generally burnt in the streets, from the impossibility of removing them out of the reach of the element!" The whirlwind also "added confusion to the other terrors of the conflagration," as it carried burning shingles and other wooden objects to great distances.[1]

[1] *Niles' Weekly Register* [Baltimore] 17 (January 22, 1820): 352; 17 (January 29, 1820): 375-76; *Providence Patriot, Columbian Phenix* [Providence, R.I.], January 29, 1820; *National Intelligencer* [Washington, D.C.], January 22, 1820. For other secondary accounts of the fire and its aftermath, see John V. Morris, *Fires and Firefighters* (Boston and Toronto, 1953), 85; Glover Moore, *The Missouri Controversy, 1819-1821* (Lexington, Ky., 1953), 293-94; and especially E. Merton Coulter, "The Great Savannah Fire of 1820," *Georgia Historical Quarterly* 23 (March 1939): 1-27.

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This disaster devastated Savannah more than psychologically. Because residents quickly abandoned their fruitless efforts to douse the flames, and especially because inhabitants of the market square area fled, only two of Savannah's seven thousand people died and just two were injured. But the fire wiped out whole industries; one observer noted there was "not a barbers nor apothecaries shop, a hardware, dry goods, stationary, crockery or clothing store left!" Besides these businesses, the blaze destroyed 463 houses and their outbuildings. Cold and rainy weather in the following weeks only exacerbated the suffering of the people rendered homeless. Residents estimated the direct property damage at four million dollars and the indirect losses at six million more. They calculated that the powder explosion alone ruined one million dollars' worth. Perhaps the best measure of the catastrophe was that almost half of the city lay in ashes.[2]

This calamity claimed nationwide attention. At first glance it seemed to do so at a propitious time, as a debate raged in Congress and throughout the nation over whether to restrict slavery in the prospective state of Missouri. Given that this already months-long dispute had threatened national unity, many Northerners embraced calls for aid to Savannah as an opportunity to show goodwill to their southern countrymen. But in the end the Savannah fire, far from the hoped-for balm for the Union's wounds, became yet another sectional irritant, since other Northerners were not prepared to set aside their antagonism toward the South. The conditions that some northern philanthropists attached to their donations set off a chain of recriminations that proved the nation could not come together in the face of disaster.

Neither was it surprising that citizens of the Mid-Atlantic states led both columns in the North's divided response. The Mid-Atlantic supplied not only the largest donors and the most prominent voices for attaching stipulations to relief for this slave-state city, but also leadership of the northern fight against extending slavery to Missouri. Thus, the particulars of this sectional flare-up over aid to Savannah illustrate the spin-off effects of the Missouri crisis specifically and of sectionalism more generally.

[2] *Niles' Weekly Register* 17 (January 22, 1820): 352; 17 (January 29, 1820): 375-76; *Providence Patriot, Columbian Phenix*, January 29, 1820; *National Intelligencer*, January 22, 1820.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.33 - The Maine and Missouri Crisis: Competing Priorities and Northern Slavery Politics in the Early Republic

Matthew Mason

ARTICLE	The Maine and Missouri Crisis: Competing Priorities and Northern Slavery Politics in the Early Republic
JOURNAL	Journal of the Early Republic 33, no. 4 (2013)
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The Maine and Missouri Crisis

Competing Priorities and Northern Slavery Politics in the Early Republic

MATTHEW MASON

Historians' standard rendering of sectional politics from the Missouri Crisis of 1819–1821 through the Civil War is a tale of recurring and increasingly polarizing sectional conflicts. This is obviously a significant part of the story of the coming of the Civil War. The logical consequence of this prevailing wisdom, however, is that sectionalist purists now garner the preponderance of scholarly attention. Even historians who attend to sectional moderates ultimately focus on the question of how Republicans and fire-eaters took control of the two antagonistic sections. This narrative arc encourages a uniform picture of the political impact in the North of debates centered on slavery. Understanding that the northern electorate opposed slavery for a myriad of reasons, the assumption follows that northern politicians who voted for compromise during slavery debates—"doughfaces"—suffered at the polls if they even dared to run for reelection. Being at least functionally proslavery, doughfaces were in a no-win situation whenever slavery formed the subject of national debates. The standard interpretation of the North during the Missouri Crisis itself centers on the fact that only five of the House of

Matthew Mason is associate professor of history at Brigham Young University in Provo, Utah. For helpful comments on earlier versions of this essay, thanks go to Nic Wood, Michael Morrison, Michael McManus, John Craig Hammond, David Waldstreicher, the anonymous *JER* readers, participants in the BYU History Department writing group, and participants in the University of Virginia's Early American Seminar, especially Peter Onuf and Max Edelson. Generous funding from Brigham Young University and a Senior Research Fellowship in American History from the Gilder Lehrman Center enabled the research for this article.

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Representatives' eighteen doughfaces returned to the next Congress. Given how the threat of slavery's expansion aroused the northern public, go these accounts, it should be no surprise that voters spurned their doughfaced representatives.[1]

But another way of looking at the antebellum politics of slavery would be to ask why those five Congressmen persisted in their doughfaced course and were able to secure reelection. Dismissing the doughfaces as craven lap dogs of the South—or as proponents of slavery and thus out of touch with their constituents—overlooks the fact that some of their voting records did resonate with voters. Understanding when, where, and why doughfaces prospered in the midst of polarizing slavery controversies will refine scholars' understanding of the complex workings of

1. Most telling amidst the vast literature are the instances of this narrative arc in works that take moderates seriously, including Michael A. Morrison, *Slavery and the American West: The Eclipse of Manifest Destiny and the Coming of the Civil War* (Chapel Hill, NC, 1997); Jean H. Baker, *Affairs of Party: The Political Culture of Northern Democrats in the Mid-Nineteenth Century* (1983; repr. New York, 1998), 325–27; Peter B. Knupfer, *The Union As It Is: Constitutional Unionism and Sectional Compromise, 1787–1861* (Chapel Hill, NC, 1991); John Ashworth, *Slavery, Capitalism, and Politics in the Antebellum Republic, Volume 1: Commerce and Compromise, 1820–1850* (Cambridge, UK, 1995); Ashworth, *Slavery, Capitalism, and Politics in the Antebellum Republic, Volume 2: The Coming of the Civil War, 1850–1861* (Cambridge, UK, 2007); Elizabeth Varon, *Disunion! The Coming of the American Civil War, 1789–1859* (Chapel Hill, NC, 2008). For the standard tale of doughface haplessness during Missouri, see Robert Pierce Forbes, *The Missouri Compromise and Its Aftermath: Slavery and the Meaning of America* (Chapel Hill, NC, 2007), esp. 99–103; Glover Moore, *The Missouri Controversy, 1819–1821* (Lexington, KY, 1953), 201–17. I am fully aware that employing the term "doughface" is problematic for reasons including that it was always a term of abuse after John Randolph coined the term in a Congressional debate in March 1820. Doughfaces talked of themselves as anti-restrictionists, statesmen, and moderates, but using some of these terms would raise other problems. Everyone in the debate thought of themselves as "statesmen," of course. And "moderates" is even more problematic, for as David M. Potter pointed out, "those who were 'moderate' about slavery were 'extreme' about the Union, quite as much as those who were 'moderate' about the Union were 'extreme' about slavery. When there are two reference points—the Union and slavery—it is purely arbitrary to make one, rather than the other, the measure of extremism"; Potter, in *The Impending Crisis, 1848–1861*, ed. Don E. Fehrenbacher (New York, 1976), 43–45, quote 45n31. Like the doughfaces themselves, then, I am left to seek the least of evils, and thus preserve "doughfaces" and "anti-restrictionists" as shorthand.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.34 - Response to Harry Ammon

Ernest R. May

ARTICLE	Response to Harry Ammon
JOURNAL	Diplomatic History 5, no. 1 (1981)
EXCERPT	Original journal pages 71-72
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Response to Harry Ammon

ERNEST R. MAY

In Jean Kerr's "Mary, Mary," a playwright is indignant about a bad review. His wife quotes her mother's maxim: "If you have a boil on your bottom, no one will notice unless you say something." He retorts: "This boil is not on my bottom. It is on page 42 of the *New York Times!*"

Although generally of the belief that books should speak for themselves without authors' rejoinders to reviewers, I have been unable to resist Warren Cohen's invitation to comment briefly on Harry Ammon's article-length critique of my book on the Monroe Doctrine. I do so partly because Professor Ammon has invested so much care, time, and thought that he seems to me to deserve a response, and partly because I feel that he has misunderstood some of the book's argument and that the misunderstanding may not be his alone.

For those who have not read the book it first should be said that it attempts to answer a question. In 1823–24 the young and comparatively weak United States rejected an alliance offered by the much more powerful British government. It also declined to extend more than verbal support to the Greek movement for independence. It thus adopted the posture subsequently to be identified as isolationism. Such evidence as we have regarding the policy debates in Washington—chiefly in John Quincy Adams's diary and letters—demonstrates that the adoption of this posture was not a foregone conclusion. Indeed, it appears that both President Monroe and Secretary of War Calhoun were inclined toward the contrary posture—acceptance of the British alliance and, by means of diplomatic recognition, an active role in support of Greek independence. Even after the president issued his famous message and formally withheld recognition of Greece, he showed signs of continuing to believe that his original inclinations had been right. The same was true of Calhoun. The question arises: Why then the actual outcome? Why did Adams's views prevail?

In the book I pursue three alternative hypotheses. One is that the outcome was mainly a function of conceptions of national interest in the minds of key American policymakers. In one lengthy chapter I try to review what is known about the basic beliefs of Monroe, Adams, Calhoun, and

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certain others prior to the decisive debates of October–December 1823. Had one possessed this knowledge at the time, I ask, would he have had a reliable basis for predicting what was to take place? The answer is no. As events proved, not only did the principles of Monroe and Calhoun not preclude following Adams's line concerning Britain and Greece but also Adams's principle had not prevented him at other times and in other circumstances from endorsing alliance with Britain and overt support of the Greeks.

A second hypothesis is that the actions of the United States can be explained more as functions of external circumstances. Choices were forced upon Monroe and others by events and the actions of other governments. In still another chapter I trace the actual policies of Britain and European states. Differences between my reconstruction and those in Dexter Perkins's justly famous history of the doctrine are inconsequential. It seems clear that there existed almost no real possibility of an effective European effort to restore the Spanish empire in America or even to set monarchs of European lineage on Western Hemisphere thrones. Asking again whether such knowledge, if possessed in October 1823, would have permitted a confident prediction, I conclude that the answer once more has to be no. In fact, conditions existing in the external world allowed the United States comparative freedom of action; they did not explain why the particular choice was as it was.

It is here that Professor Ammon takes particular exception to my reasoning. He says that regardless of what was actually the case Monroe and Calhoun *believed* the danger of European action to be real. Adams, he continues, "guessed out the truth—he had no reliable information." On neither point is he quarreling with anything I have written, for I do not disagree. The difference between us stems from Professor Ammon's holding that Monroe and Calhoun could not have held any other beliefs and that their policy stands followed inevitably from those beliefs. It is on this point that I disagree. First, it seems to me that Monroe or Calhoun or others in Washington were as well equipped as Adams to guess out the truth. None of them had accurate or up-to-date information. In a paragraph that Professor Ammon quotes, I suggest merely that the store of information not clearly pointing to one conclusion or another was almost certainly larger than what we can now retrieve. I did not say nor intend to imply that evidence of actual conditions in Europe was staring Monroe and Calhoun in the face, only that evidence surely existed that would have permitted them, if they had been so disposed, to hold the same view of reality that Adams held. Second and probably most important, I hold that the beliefs of people in public life are shaped only in small part by evidence. Research in several different periods, reinforced by a little actual observation, continually has brought home to me the general applicability of the language used by Richard E. Neustadt in *Alliance Politics* to explain why different people in London and Washington had varying conceptions of what was happening in the Middle East in the Suez crisis of 1956. "These

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.35 - Republicanism, Antipartyism, and Jacksonian Party Politics: A View from the Nation's Capital

Edward L. Mayo

ARTICLE	Republicanism, Antipartyism, and Jacksonian Party Politics: A View from the Nation's Capital
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REPUBLICANISM, ANTIPARTYISM, AND JACKSONIAN PARTY POLITICS: A VIEW FROM THE NATION'S CAPITAL

EDWARD L. MAYO

California Polytechnic State University, San Luis Obispo

ANTIPARTYISM WAS A FAMILIAR TENET OF REPUBLICAN THOUGHT IN the eighteenth and early nineteenth centuries.[1] When bold efforts were made to form a party around Andrew Jackson, Joseph Gales, Jr., and William Winston Seaton, the editors of the Washington newspaper the *National Intelligencer* revitalized republican antiparty rhetoric. The editors sought both to discredit Jacksonian political practices and to preserve antiparty republicanism. This essay focuses on their crusade against modern party politics, explaining why the editors portrayed and opposed Jacksonian politics in the manner they did.

Gales and Seaton formed their ideas of proper politics during the republican years of the Virginia presidents, whose own politics reflected the non-partisan political ideals of an even earlier republican period. The editors carried the torch of republican antipartyism through the Jackso-

[1] For attitudes toward parties see: Richard Hofstadter, *The Idea of a Party System: Legitimate Opposition in the United States, 1780–1840* (Berkeley: Univ. of California Press, 1969); Daniel Sisson, *The American Revolution of 1800* (New York: Knopf, 1974); James S. Young, *The Washington Community, 1800–1828* (New York: Columbia Univ. Press, 1966); Richard Buel, Jr., *Securing the Revolution: Ideology in American Politics, 1789–1815* (Ithaca: Cornell Univ. Press, 1972); Michael Wallace, "Changing Concepts of Party in the United States: New York, 1815–1828," *American Historical Review,* 74 (Dec. 1968), 458–82; Ronald Formisano, "Political Character, Antipartyism and the Second Party System," *American Quarterly,* 21 (Winter 1969), 683–709; Formisano, *The Birth of Mass Political Parties: Michigan, 1827–1861* (Princeton: Princeton Univ. Press, 1971); and Formisano, "Deferential-Participant Politics: The Early Republic's Political Culture, 1789–1840," *American Political Science Review,* 57 (June 1974), 473–87.

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nian years, measuring, analyzing, and ultimately condemning the modern party of the "democracy" in light of the earlier standard.[2] Their struggle against party offers insights into the nature of Jacksonian politics. Not only were the two contemporaries astute and reputable observers, but their adherence to traditional politics gave them a unique perspective. Looking at the new politics through the lens of an older political ethos, the editors were quick to notice and record the important changes occurring in American political culture during the 1820s and 1830s.

Gales and Seaton opposed the Jacksonians for reasons other than their republican values. The editors' personal fortunes suffered at the hands of the Jacksonian party, and they strongly supported a nationalistic public policy that was obstructed by the negative orientation of the Jacksonians. These factors in themselves were enough to turn the editors against Jackson's followers, but they reinforced the newspapermen's antiparty notions because to their way of thinking party organization was responsible for their troubles and frustrations.

The editors' ideological attachment to republican antipartyism is also evident when viewed in relation to other motives. Gales and Seaton unquestionably promoted their own self-interest in opposing Jackson. Congressional printing contracts were important to their financial welfare, and after 1827 these contracts were assigned on a political basis. While the editors no longer monopolized the printing after that date, they did share periodically in the lucrative business. This probably did not come about without effort on their part, and their antiparty rhetoric can be seen as an attempt to embarrass the Jacksonians and to bolster their own supporters in Congress. But the argument of self-interest must be seen in light of the editors' approach to the contracts and to their business. They tended to neglect this bread and butter area to spend time reporting the grave and lengthy Congressional debates, which they took seriously but which did

[2] The modern party is defined as a durable, formalized national political association intentionally organized, led, and nurtured by professional politicians to obtain and retain public office. Modern partisans believe that parties are permanent and are ends in themselves; that politics is an institutionalized process rather than a struggle over basic principles; and that opposing parties are loyal and will compete peacefully for office. Partisans expect and accept, in other words, a party system of politics. They also use patronage, party discipline, party organization, and public opinion to attain their goals. Behaviorally speaking, partisans willingly, persistently, and self-consciously identify with the party because of personal loyalty, personal ideological or symbolic attachment, ambition, and/or submission to group pressure. Republicanism was the major political paradigm of eighteenth and early nineteenth century America. When the two republican editors began to explain their experiences with the new political world, they did so according to the community's primary political paradigm. For a guide to the study of republicanism see Robert Shalhope, "Toward a Republican Synthesis: The Emergence of an Understanding of Republicanism in American Historiography," *William and Mary Quarterly,* 3rd ser. 29 (Jan. 1972), 49–80.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.36 - New Perspectives on Jacksonian Politics

Richard P. McCormick

ARTICLE	New Perspectives on Jacksonian Politics
JOURNAL	The American Historical Review 65, no. 2 (1960)
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New Perspectives on Jacksonian Politics

Richard P. McCormick*

THE historical phenomenon that we have come to call Jacksonian democracy has long engaged the attention of American political historians, and never more insistently than in the past decade. From the time of Parton and Bancroft to the present day scholars have recognized that a profoundly significant change took place in the climate of politics simultaneously with the appearance of Andrew Jackson on the presidential scene. They have sensed that a full understanding of the nature of that change might enable them to dissolve some of the mysteries that envelop the operation of the American democratic process. With such a challenging goal before them, they have pursued their investigations with uncommon intensity and with a keen awareness of the contemporary relevance of their findings.

A cursory view of the vast body of historical writing on this subject suggests that scholars in the field have been largely preoccupied with attempts to define the content of Jacksonian democracy and identify the influences that shaped it.[1] What did Jacksonian democracy represent, and what groups, classes, or sections gave it its distinctive character? The answers that have been given to these central questions have been—to put it succinctly—bewildering in their variety. The discriminating student, seeking the essential core of Jacksonianism, may make a choice among urban workingmen, southern planters, venturous conservatives, farm-bred *nouveaux riches,* western frontiersmen, frustrated entrepreneurs, or yeoman farmers. Various as are these interpretations of the motivating elements that constituted the true Jacksonians, the characterizations of the programmatic features of Jacksonian democracy are correspondingly diverse. Probably the reasonable observer will content himself with the conclusion that many influences were at work and that latitudinarianism prevailed among the Jacksonian faithful.

In contrast with the controversy that persists over these aspects of Jack-

* Mr. McCormick, professor of history at Rutgers University and author of *The History of Voting in New Jersey: A Study of the Development of Election Machinery, 1664–1911* (New Brunswick, N. J., 1953), is interested primarily in American political history. The present study was made possible by a grant from the Social Science Research Council.

[1] For a concise survey of the literature on the topic, see Charles G. Sellers, Jr., *Jacksonian Democracy* (Washington, D. C., 1958) or his "Andrew Jackson versus the Historians," *Mississippi Valley Historical Review,* XLIV (Mar. 1958), 615–34. For the most recent treatment of the period, see Glyndon G. Van Deusen, *The Jacksonian Era, 1828–1848,* The New American Nation Series, ed. Henry Steele Commager and Richard B. Morris (New York, 1959).

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sonian democracy, there has been little dissent from the judgment that "the 1830's saw the triumph in American politics of that democracy which has remained pre-eminently the distinguishing feature of our society."[2] The consensus would seem to be that with the emergence of Jackson, the political pulse of the nation quickened. The electorate, long dormant or excluded from the polls by suffrage barriers, now became fired with unprecedented political excitement. The result was a bursting forth of democratic energies, evidenced by a marked upward surge in voting.[3] Beard in his colorful fashion gave expression to the common viewpoint when he asserted that "the roaring flood of the new democracy was . . . [by 1824] foaming perilously near the crest. . . ."[4] Schlesinger, with his allusion to the "immense popular vote"[5] received by Jackson in 1824, creates a similar image. The Old Hero's victory in 1828 has been hailed as the consequence of a "mighty democratic uprising."[6]

That a "new democracy, ignorant, impulsive, irrational"[7] entered the arena of politics in the Jackson era has become one of the few unchallenged "facts" in an otherwise controversial field. Differences of opinion occur only when attempts are made to account for the remarkable increase in the size of the active electorate. The commonest explanations have emphasized the assertion by the common man of his newly won political privileges, the democratic influences that arose out of the western frontier, or the magnetic attractiveness of Jackson as a candidate capable of appealing with singular effectiveness to the backwoods hunter, the plain farmer, the urban workingman, and the southern planter.

Probably because the image of a "mighty democratic uprising" has been so universally agreed upon, there has been virtually no effort made to describe precisely the dimensions of the "uprising." Inquiry into this aspect of Jacksonian democracy has been discouraged by a common misconception

[2] Sellers, *Jacksonian Democracy*, 1.

[3] For representative examples of this viewpoint, see Charles A. and Mary R. Beard, *The Rise of American Civilization* (new ed., 2 vols. in 1, New York, 1933), 540, 546, 550; Wilfred E. Binkley, *American Political Parties: Their Natural History* (New York, 1943), 101, 108, 111, 115, 121; John D. Hicks, *The Federal Union* (2d ed., Cambridge, Mass., 1952), 351, 363–64; William MacDonald, *Jacksonian Democracy, 1829–1837* (New York, 1906), 3, 42, 311; Richard Hofstadter, *The American Political Tradition* (Vintage ed., New York, 1954), 50–52; John Bach McMasters, *A History of the People of the United States* (8 vols., New York, 1883–1913), V, 518; Marvin Meyers, *The Jacksonian Persuasion: Politics and Belief* (Stanford, Calif., 1957), 4, 11; E. E. Robinson, *The Evolution of American Political Parties* (New York, 1924), 101; E. H. Roseboom, *A History of Presidential Elections* (New York, 1957), 91; Arthur M. Schlesinger, Jr., *The Age of Jackson* (Boston, 1947), 12–15, 36.

[4] Beard, *American Civilization*, 550.

[5] Schlesinger, *Age of Jackson*, 36.

[6] Frederick A. Ogg, *The Reign of Andrew Jackson* (New Haven, Conn., 1919), 114.

[7] Roseboom, *Presidential Elections*, 91.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.37 - The Monroe Doctrine—A Stopgap Measure

Gale W. McGee

ARTICLE	The Monroe Doctrine—A Stopgap Measure
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The Monroe Doctrine---A Stopgap Measure

By Gale W. McGee

The Monroe Doctrine has generally been looked upon as a unilateral policy, deliberately accepted by the United States in preference to an "entangling" British suggestion of a joint manifesto. The doctrine of the two spheres, moreover, has commonly been associated with the principles of isolationism. But both the determination of the Americans to "go it alone" and the attributes of isolation become apparent only when certain utterances of the principal statesmen involved are lifted from the context of the diplomatic conditions which produced them.

If those statements are left in their context it is possible to see that while the early spokesmen often voiced a desire to remain unfettered, they seldom permitted their ideals to blind them to realities. With a sagacity rarely equaled since then, they stood ever ready to compromise ideals with the exigencies of reality in order to obtain what was to them more fundamental than any theories of nonentanglement — the security of the nation. In the discussions which evoked the Monroe Doctrine this is clearly illustrated.

Long before George Canning became alarmed over the designs of the Holy Alliance in the New World, the Americans were concerning themselves with the threat. After turning down the repeated invitations of the Czar to accede to his European concert, the United States served notice that it would have nothing to do with any scheme for restoring Spanish control in South America.[1] As early as December, 1815, Secretary of State James Monroe instructed John Quincy Adams, then minister to Britain, to sound the London government on the question of recognizing the inde-

[1] See John Q. Adams to Albert Gallatin, May 19, 1818, Worthington C. Ford (ed.), *Writings of John Quincy Adams*, 7 vols. (New York, 1913-1917), VI, 318. Note also Adams to Richard Rush, May 20, 1818, *ibid.*, 325-26.

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pendence of the Latin-American nations.[2] Although nothing came of the gesture, Monroe as president made it the business of a cabinet session three years later, in May, 1818. From his official family he sought advice as to whether measures ought to be taken to ascertain Britain's attitude toward a concert of policies in which any project affecting the Latin Americans should receive no support unless the end result would be independence.[3] The upshot of the cabinet session was an instruction to Richard Rush, minister to London, which Secretary of State Adams drafted:

> It may be an interesting object of your attention to watch the moment when this idea [cooperation with Britain in recognizing the independence of Latin America] will become prevalent in the British councils, and to encourage any disposition which may consequently be manifested to a more perfect concert of measures between the United States and Great Britain towards that end — the total independence of the Spanish South American provinces.[4]

Nor was this informal proposal permitted to lapse. Two months later Monroe "very abruptly" asked Adams to propose to the British minister, Charles Bagot, joint action to aid the ambitions of the Spanish colonies for independence. Although the Secretary thought the English were not yet ready to assume such an advanced position in American affairs, the proposal was not abandoned.[5] It was translated into a formal proposition and transmitted to the Court of London in August, 1818. As it read, the proposal was "for a concerted and contemporary recognition of the independence of Buenos Ayres." In refusing the offer, the British said only that it did not then suit their policy.[6]

The Americans, however, were not to be easily discouraged. In

[2] James Monroe to Adams, December 10, 1815, Instructions to Ministers, VII, Department of State Archives (Washington).

[3] Charles H. Sherrill, *Modernizing the Monroe Doctrine* (Boston, 1916), 81-82.

[4] Adams to Rush, May 20, 1818, Ford (ed.), *Writings of John Quincy Adams*, VI, 326.

[5] This conference took place on July 23, 1818; its substance was recorded by Adams on July 25. Charles F. Adams (ed.), *Memoirs of John Quincy Adams*, 12 vols. (Philadelphia, 1874-1877), IV, 118.

[6] These exchanges were recounted for Richard C. Anderson, newly appointed envoy to Latin America, by Adams on May 27, 1823, Ford (ed.), *Writings of John Quincy Adams*, VII, 446-47. From Madrid George W. Erving reported that the French government expected "a dangerous concert of measures" between the Anglo-Americans in the event of a rupture with Spain. Erving to Adams (private), October 22, 1818, Despatches (the contemporary spelling has been retained), Spain, XVI, Department of State Archives.

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Bibliography entry

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.38 - John Marshall versus Spencer Roane: A Reevaluation of Martin v. Hunter's Lessee

F. Thornton Miller

ARTICLE	John Marshall versus Spencer Roane: A Reevaluation of Martin v. Hunter's Lessee
JOURNAL	The Virginia Magazine of History and Biography 96, no. 3 (1988)
EXCERPT	Original journal pages 297-298
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JOHN MARSHALL VERSUS SPENCER ROANE
A Reevaluation of *Martin* v. *Hunter's Lessee*

by F. THORNTON MILLER*

THE federalists won in 1787–88, but the antifederalists' vision of the country was more fully realized because, for much of the nineteenth century, America remained more a mixture of regions and states than a nation. Even the proper way to interpret the great federalist creation, the Constitution, heralded as the bond of the nation, was open to debate, and there was no consensus that the Supreme Court had the final word. Despite federalist warnings about the need for uniformity, an opposition emerged in different places, at different times, that would ignore, check, undermine, and nullify the federal law of the land. A states' rights movement developed by the 1820s—led in Virginia by Spencer Roane, of the Court of Appeals—that John Marshall believed was nothing more than antifederalism revived. By the Jacksonian period it appeared that the nationalism of the Marshall Court was defeated.

The failure of the Court to establish a uniformity in the law was evident much earlier, however, at the dawn of the high Marshall Court era. On closer examination even the apparent nationalist victory of *Martin* v. *Hunter's Lessee*, a case arising from a dispute over the title to the Fairfax lands in Virginia, had mixed results. This case not only demonstrated the ability of Virginia's Court of Appeals to reject the appellate authority of the Supreme Court but also gave another example of how a legal principle established by the highest court could be thwarted and made practically null and void through lack of enforcement at the lowest level. This circumvention was troublesome to Marshall because he was personally involved in the litigation that climaxed in, but continued long after, *Martin* v. *Hunter's Lessee*. The antagonism that developed between him and Roane during this litigation compounded his problems, and the two men's differences eventually took them beyond the courtroom to a duel in the press.

*F. Thornton Miller is an instructor at the University of Alabama. This paper was presented at the 1987 meeting, in Philadelphia, of the Society for Historians of the Early American Republic.

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The principal issue raised in the Fairfax cases concerned federal appellate jurisdiction over state judiciaries. The Constitution allowed Congress to give state courts concurrent jurisdiction over issues arising under federal law. The federal judiciary would be smaller, and less expensive, if state courts were used in this way. The First Congress established this mixed legal system with the Judiciary Act of 1789. If, however, there was no system of appeals to a single court, there would be as many federal laws of the land as there were states. Section Twenty-five of the act, therefore, allowed appeals from the highest court of each state to the Supreme Court when the questions in a case involved the Constitution, treaties, or federal law. This process of appeal was carried out only a few times before the appeals in the Fairfax litigation (1813–16), when its validity was challenged because it was seen as a threat to state sovereignty.

The issue over which the litigation began concerned the status of British and Tory property after the Revolution. In the treaty of 1783 ending the war, the British secured a promise from Congress that confiscations would end and that the states would respect British property rights. Those who became antifederalists in the 1780s opposed giving the British the legal basis to press their claims in spite of the treaty and, after 1788, the Constitution, which made treaties the supreme law of the land. In the Fairfax cases the antifederalists continued to argue that Virginia had acted, during and after the Revolution, as a sovereign nation and that its actions could not then or later be challenged by the federal government.

Another issue in the litigation involved republicanism versus feudalism, or democracy versus elitism. About a third of the populated area of Virginia—including the Northern Neck, the area between the Rappahannock and Potomac Rivers, and the Upper Valley—had been practically a proprietary colony within a royal colony. Virginians believed that this feudal remnant had ended with the Revolution. Yet a federal treaty, the ratification of the Constitution, and the establishment of a federal judiciary assured that, years after independence was won, this proprietary domain could be reestablished through the Fairfax litigation.

The cause of the suits was the ambiguity of the legal status of the proprietary land after the Revolution and after the death of Thomas, Lord Fairfax. The litigation followed several tracks related to Fairfax's own division of his property. He had distinguished between his plantations, the land he developed for his own personal use; the land he sold but upon which he collected a permanent annual amount called a quitrent; and the

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.39 - The Monroe Doctrine and Russia: American Views of Czar Alexander I and Their Influence upon Early Russian-American Relations

Hiroo Nakajima

ARTICLE	The Monroe Doctrine and Russia: American Views of Czar Alexander I and Their Influence upon Early Russian-American Relations
JOURNAL	Diplomatic History 31, no. 3 (2007)
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HIROO NAKAJIMA

The Monroe Doctrine and Russia: American Views of Czar Alexander I and Their Influence upon Early Russian-American Relations*

The history of early Russian-American relations has often been presented in a contradictory and conflicting fashion. This has occurred partly because the historical literature tended to have political or ideological biases after the 1917 Bolshevik Revolution and especially during the Cold War. The differing historical interpretations also have arisen because of the mysterious character of Czar Alexander I (r. 1801–1825). Historians have labeled him as an "enigmatic tsar," "paternalistic reformer," or "the sphinx."[1]

At the beginning of his reign, Alexander was considered to be a liberal ruler. But as revolutions broke out in Spain, Portugal, Naples, and Piedmont during the early 1820s, he became increasingly conservative, even reactionary. Late in 1821, former U.S. President James Madison, an erstwhile admirer of the czar, wrote that he had "seen, not without some little disappointment, the latter developments of character in the Emperor Alexander."[2] In addition, it was not always easy for outside observers to trace Russian foreign-policy initiatives to Alexander, even though he was the most absolute monarch of the time in Europe. Contemporary and later scholars have often been unable to determine whether Russian diplomacy was propelled by the czar, his ministers, or the directors of the semi-official Russian-American Company, which had considerable economic interests in North America.[3]

*I would like to thank *Diplomatic History*'s anonymous readers for their valuable comments. Special thanks are due to Ed Crapol and Daniel Preston. I also would like to express my gratitude to Makoto Saito, Tadashi Aruga, Fumiko Nishizaki, Izumi Hirobe, and Tosh Minohara, who inspired me to write this essay.

1. Maurice Paléologue, *The Enigmatic Czar: The Life of Alexander I of Russia*, trans. Edwin Muir and Willa Muir (New York, 1938); Allen McConnell, *Tsar Alexander I: Paternalistic Reformer* (New York, 1970); Henri Troyat, *Alexander of Russia: Napoleon's Conqueror*, trans. Joan Pinkham (New York, 1982).

2. James Madison to Richard Rush, 20 November 1821, *Letters and Other Writings of James Madison*, 4 vols. (Philadelphia, 1865), III: 235.

3. Patricia Kennedy Grimsted, *The Foreign Ministers of Alexander I: Political Attitudes and the Conduct of Russian Diplomacy, 1801–1815* (Berkeley, CA, 1969) puts emphasis on the importance of the interaction between the czar and his ministers in the making of Russian foreign policy.

Diplomatic History, Vol. 31, No. 3 (June 2007). © 2007 The Society for Historians of American Foreign Relations (SHAFR). Published by Blackwell Publishing, Inc., 350 Main Street, Malden, MA, 02148, USA and 9600 Garsington Road, Oxford OX4 2DQ, UK.

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It was against this background that the noted American scholar Foster Rhea Dulles published *The Road to Teheran* during World War II. With the strengthening of the Grand Alliance against Nazi Germany in mind, Dulles attempted to "discover enduring basis for understanding and good will between Russia and America." According to Dulles, the precedent for improved Russian-American relations had been set by Alexander, who "created the Holy Alliance to establish peace throughout the world." Countering this view, the prominent diplomatic historian Thomas Bailey wrote in the early years of the Cold War that an increase in Alexander's power after the Napoleonic Wars had been "roughly analogous to that of Stalin in 1945." In that same period, the revisionist historian and Cold War critic William Appleman Williams titled the first chapter of his 1952 book on the history of Russian-American relations a "realistic romance."[4]

In the aftermath of détente, the English translation of N. N. Bolkhovitinov's definitive study of early Russian-American relations appeared, as did an account by the leading post-revisionist John Lewis Gaddis.[5] When the Cold War ended during the period of 1989–1991, Norman Saul published a book on Russian-American relations up to the 1867 purchase of Alaska. He has just finished his trilogy on the history of Russian-American relations.[6] Now the time seems ripe for a new essay on American attitudes toward Russia during Alexander's reign.

No subject is more appropriate for such an essay than the Monroe Doctrine, a pillar of American diplomacy. President James Monroe announced the doctrine in his annual message to Congress in 1823. The Monroe Doctrine asserted that the Americas comprised a different "hemisphere" that was and had to remain independent of European domination. Monroe enthusiastically welcomed the sovereignty of Latin American states, the former colonies of the Spanish empire. The Monroe Doctrine insisted that the newly independent Latin American states had to be protected from interference from the monar-

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4. Foster Rhea Dulles, *The Road to Teheran: The Story of Russia and America, 1781–1943* (Princeton, NJ, 1944), v, 4; Thomas A. Bailey, *America Faces Russia: American-Russian Relations from Early Times to Our Day* (Ithaca, NY, 1950), 22; William Appleman Williams, *American-Russian Relations, 1781–1947* (New York, 1952). The frontispiece of Bailey's book is taken from an influential book, *Siberia and the Exile System* (New York, 1891) by George Kennan (George F. Kennan's distant relative), which gave impetus to growing concern in the United States about infringement upon human rights in Russia in the late nineteenth century. That concern would eventually culminate in the denunciation of the commercial treaty of 1832 in 1912, the campaign for which was led by Jacob Schiff, who had helped Japan finance its war against Russia owing to the latter's anti-Semitism, for example the pogroms. See Norman E. Saul, *Concord and Conflict: The United States and Russia, 1867–1914* (Lawrence, KS, 1996), chap. 7.

5. N. N. Bolkhovitinov, *The Beginnings of Russian-American Relations, 1775–1815*, trans. Elena Levin (Cambridge, MA, 1975); John Lewis Gaddis, *Russia, the Soviet Union, and the United States: An Interpretive History* (New York, 1978).

6. Norman E. Saul, *Distant Friends: The United States and Russia, 1763–1867* (Lawrence, KS, 1991); Saul, *Concord and Conflict*; Norman E. Saul, *War and Revolution: The United States and Russia, 1914–1921* (Lawrence, KS, 2001). The latter two were recently reviewed in David Mayers, "History of Russian-U.S. Relations, 1867–1921," *Diplomatic History* 27 (June 2003): 409–14.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.40 - The Many Panics of 1819

Scott Reynolds Nelson

ARTICLE	The Many Panics of 1819
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The Many Panics of 1819

SCOTT REYNOLDS NELSON

What is a panic? In the nineteenth century a panic referred to a rapid rise in the price of short-term credit. In the financial capital of London, interest rates for first-rate creditors ranged from 2 to 5 percent. When the rate reached 6 percent or more, it was a panic. In the nineteenth- century United States 7 to 9 percent was the standard rate, and a panic rate was anywhere from 11 to 99 percent. Because of the distance and time lag across the Atlantic, any European panic could be magnified in the U.S. If there was no American context to a panic in Britain, then the spike in interest rates would quickly drop again in the U.S., as it did in the British panics of 1793, 1825, 1848, 1860, and 1890.[1]

A panic, though, is often accompanied by what people started calling—almost two hundred years ago—a depression in trade, manufactures, or commerce. Eventually depression became a singular noun, meaning an overall downturn in what we now call the economy. What I would call a

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Scott Reynolds Nelson teaches history at the University of Georgia, and is at work on a project for Basic Books about how cheap American wheat contributed to the collapse of the Ottoman, Russian, and Qing Empires. This article draws on his previous book, *Nation of Deadbeats: An Uncommon History of America's Financial Disasters* (New York, 2012). He thanks Jess Lepler and the other panelists for inviting him to join the panel.

1. I borrowed my title from Jessica M. Lepler, *The Many Panics of 1837: People, Politics, and the Creation of a Transatlantic Financial Crisis* (New York, 2013). This calculation was usually based on the rate demanded for first-rate 60- or 90-day bills of exchange. See "Fall in the World's Money Markets," *Commercial and Financial Chronicle* 86 (Jan. 18, 1908), 136–37. Bank of England discount rates can be found in John Harold Clapham, *The Bank of England, a History* (New York, 1945), Appendix B. Discount rates in New York can be found in Joseph Gregory Martin, *A Century of Finance: Martin's History of the Boston Stock and Money Markets* (Boston, 1898), 28.

Journal of the Early Republic, 40 (Winter 2020)
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depression involved an increase in the number of personal bankruptcies, then a panic, and finally a large number of bank and industrial failures. Nowadays, a depression as officially recognized by the National Bureau of Economic Research can be judged only in retrospect. I'd like to bring back the term *depression*, by which I mean a yearly decline in output of more than 20 percent and lasting more than five years. The Panic of 1819 qualifies.[2]

Interestingly, and unlike the other nineteenth-century American panics, the panic of 1819 was *not* connected to a spike in the British interest rate, although British bankers noticed a drop in the price of long-term U.S. government bonds and United States Bank stock. As Clyde Haulman and others have argued, historians' emphasis on the Bank of the United States as the key cause of the panic is probably a mistake. A larger downturn in America's international trade preceded the panic. The panic then led to a classic debt–deflation spiral.[3]

Unlike all the other American panics and depressions, there was something particularly American about the 1819 downturn, but it can be understood only in the international context of the U.S.'s relationship to the British Caribbean and Canada. I wrote this in *Nation of Deadbeats* but it hasn't reached any early Americanist monographs I have found about this period between now and then.[4]

If we count the ships coming into the port of Boston, for example, British Canada and the Caribbean made up two-thirds of the U.S.'s exter-

2. "depression, n.5," OED Online, June 2019, Oxford University Press. https://www-oed-com.proxy.wm.edu/view/Entry/50451?redirectedFrom=depression, accessed July 12, 2019. The National Bureau of Economic Research's "Business Cycle Dating Committee" uses the more polite term *recession* by measuring hundreds of things including GDP, housing starts, and prices. An NBER *depression* is now a term retrospectively applied, and the things measured have been redefined multiple times. See https://www.nber.org/cycles.html, accessed Oct. 14, 2019. Clyde A. Haulman, *Virginia and the Panic of 1819: The First Great Depression and the Commonwealth* (London, 2008), 25–37.

3. Martin, *A Century of Finance*, 17. Haulman, *Virginia and the Panic of 1819*. Scores of businesses closed because of 1) falling prices for the goods they produced, and 2) inability to pay off debts at panic-level interest rates. On the debt–deflation spiral, a term associated with Irving Fisher, see Haulman, *Virginia and the Panic of 1819*, 29.

4. Scott Reynolds Nelson, *A Nation of Deadbeats: An Uncommon History of America's Financial Disasters* (New York, 2012).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.41 - The Political Background of the Dartmouth College Case

William Gwyer North

ARTICLE	The Political Background of the Dartmouth College Case
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THE POLITICAL BACKGROUND OF THE DARTMOUTH COLLEGE CASE

WILLIAM GWYER NORTH

THE Dartmouth College Case originated as a local squabble between two factions in the Hanover church as to whether or not Roswell Shurtleff, newly appointed to a theological professorship, should also serve as pastor of the Church of Christ at Dartmouth College. The duties of pastor had formerly always been coupled with the duties of the professorship, and the Board of Trustees felt that this arrangement should be continued. However, during the interval before Professor Shurtleff's appointment, the church had been supplied on a temporary basis by Professor John Smith, and President John Wheelock now insisted that Smith remain as pastor.[1] The Hanover congregation was pardonably willing to be freed from the overpoweringly dull ministrations of Professor Smith, and Professor Smith himself thought that Shurtleff's appointment carried with it the duties of pastor to the church. The President, however, was adamant, and as far as anyone can now tell, adamant only because he was determined that "his will in Hanover must prevail."[2] After various attempts to compromise matters, the Hanover group, supporting Professor Shurtleff and the Trustees, formed themselves into "The Church in the Vicinity of Dartmouth College" while the congregation at Dothan, Vermont, a part of the Hanover ecclesiastical community, continued under President Wheelock's guidance with the original style. Since Wheelock himself had always held to the forms of Presbyterianism, the Dothan congregation maintained those forms. But since Presbyterianism was all but extinct in the Connecticut Valley, the new church at Hanover attached itself to the Congregational Association.[3] The differ-

[1] Leon Burr Richardson, *History of Dartmouth College* (Hanover, N. H., 1932), I, 290.
[2] Richardson, I, 291.
[3] Richardson, I, 292 *et seq.*

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ences were slight and in themselves unimportant, but in view of later developments this public attachment of the Trustees and their church to the dominant religious sect is significant; it lent color to their opponents' charges of a plot to assume control of the state and "move the springs of government."[4]

This schism occurred in 1810, and thus matters rested for a time. But the seed of dissension between President and Trustees had been sown and it was not many years before it grew into a rank tangle of accusations and counter-accusations, the fierce jungle growth of a bitter political campaign, and finally into a forest of facts, charges, and laws which required the genius of John Marshall himself to cut through in his celebrated decision when the Dartmouth College Case came before the Supreme Court of the United States in 1818 and 1819.

This opinion of Marshall's, which seems to have little enough to do with the original dispute, extended the principles laid down by the decision in the case of Fletcher *v.* Peck in 1810. Then the Court had declared that the clause of the Constitution guaranteeing the sanctity of contracts was applicable to contracts entered into by a state as well as those between individuals. Now, in 1819, the Court went a step further and affirmed that a charter "is a contract, the obligation of which cannot be impaired without violating the Constitution of the United States."[5] Ample recognition has been given to the importance of this decision. Sir Henry Maine called it "the bulwark of American individualism against Democratic impatience and Socialistic fantasy."[6] Another writer has more recently declared that it was "a victory for the forces of political and religious bigotry and intolerance."[7] But in between these divergent points of view there is plenty of room for the conclusion that the decision was one of the six or seven opinions of John Marshall which profoundly determined the direction of our constitutional development and economic growth.

[4] John Wheelock, *Memorial* (n.p., 1816), 6.
[5] 4 Wheaton (1819), 650.
[6] *Popular Government* (Boston, 1893), 248.
[7] Horace H. Hagan, "The Dartmouth College Case," *Georgetown Law Journal* (May, 1931), XIX, 421.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.42 - A Convergence of Crises: The Expansion of Slavery, Geopolitical Realignment, and Economic Depression in the Post-Napoleonic World

Martin Öhman

ARTICLE	A Convergence of Crises: The Expansion of Slavery, Geopolitical Realignment, and Economic Depression in the Post-Napoleonic World
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MARTIN ÖHMAN

A Convergence of Crises: The Expansion of Slavery, Geopolitical Realignment, and Economic Depression in the Post-Napoleonic World*

The Missouri Controversy, 1819–1821—the first major conflict in the United States over slavery's westward expansion—coincided, and was inextricable bound up, with the international economic recession and the great geopolitical uncertainties following the end of the Napoleonic Wars. To understand the causes, timing, and meaning of this protracted congressional deadlock that produced an unprecedented public debate over the future of the peculiar institution and sectional tensions threatening to break up the union, it is necessary to examine how contemporaries understood the impact of extending slavery's domain on vital national interests. This essay argues that the move for restriction was principally motivated by ambitions to curtail the effects of the expanding system of forced labor at a time when the export-driven monocrop economy booming in the southwest seemed to undermine long-term American security and the United States' position in the international trading system. In 1819, in light of persistent tensions with foreign powers, international markets glutted, and every branch of the economy paralyzed, halting slavery's expansion had become tantamount to saving the federal republic.

While anxieties about geopolitical developments and economic uncertainty triggered and shaped the Missouri Crisis, divisions among reformers over how to meet these challenges prevented restrictionism from prevailing. The effort to restrict slavery's western expansion formed part of a larger reform movement aimed at restructuring the American economy. Not all reformers, however, believed that the creation of a more integrated and robust domestic economy was predicated on banning the further geographical growth of slavery. By the time of the statehood controversy, prominent exponents of a new order, including economic nationalists and publicists such as Mathew Carey, Hezekiah Niles, and Tench Coxe along with anti-restrictionist congressional leaders like Henry Clay may have lamented the peculiar institution, but they continued to argue that

* The author thanks Peter Onuf, Max Edelson, Patrick Griffin, Max Edling, Lawrence Hatter, Rachel Pierce, the participants of the transatlantic seminar (a cooperation between the University of Virginia, the University of Edinburgh, and University of Glasgow), *DH*'s editors, and the two anonymous reviewers for their helpful comments and suggestions.

Diplomatic History, Vol. 37, No. 3 (2013). © The Author 2013. Published by Oxford University Press on behalf of the Society for Historians of American Foreign Relations. All rights reserved. For permissions, please e-mail: journals.permissions@oup.com. doi:10.1093/dh/dht018
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structural forces was rendering unprofitable the production of raw materials for foreign markets. Self-sufficiency and security, then, they insisted, could be achieved without federal restrictions on slavery.

In retrospect it seems evident that the architects of the Vienna Congress system achieved their main objective. The settlement inaugurated an era of relative stability in great power relations after more than a century of chronic imperial struggle for commerce and dominion. No conflict would prove serious enough to overthrow the new security arrangement until the shots fired in Sarajevo in 1914. At a sideshow in Ghent, in present-day Belgium, American and British negotiators reached an agreement on December 24, 1814, bringing the War of 1812 to an end and establishing the foundation for a lasting Anglo-American rapprochement. With the wisdom of hindsight, scholars have described the end of the Napoleonic Wars as the beginning of an era of "free security" for the United States. Enjoying international peace and subsiding factional strife at home, Americans, then, could turn to realizing the objective of continental empire, launching a market revolution, democratizing politics, and finally confronting the moral conundrum of slavery.[1]

But while we now know that the Congress system indeed stabilized European politics and that the Ghent settlement proved successful in providing mechanisms for durable reconciliation, American leaders had plenty of reason for concern as they faced the challenges of the post-Napoleonic world. Turmoil in Naples, Spain, the Danubian (Romanian) Principalities of Moldavia and Wallachia, Greece, and, not least, South America continued to test the new great power arrangement. At home, the great influx of cheap British wares threatened to destroy the fledgling manufacturing establishments that had sprung up during the years of the restrictive system and the war. Grain exports declined as agriculture in continental Europe revived and Britain, recognizing the uncertainty of the peace and intent on increasing self-sufficiency in food, passed the 1815 Corn Law. The eastern shipping interest suffered as a result of growing competition from former belligerents and peacetime commercial restrictions. Along the Atlantic seaboard, widespread soil exhaustion and deforestation in combination with rapid westward migration signaled the need to rethink basic tenets of sustainable growth. Sectional tensions together with the military and financial shortcomings evidenced during the recent conflict, moreover, seemed to give the lie to Thomas Jefferson's confident assertion that government by consent guaranteed the United States "the strongest Government on earth." Popular patriotism had not emerged spontaneously in

1. On "free security," C. Van Woodward, "The Age of Reinterpretation," *The American Historical Review* 66, no. 1 (1960): 2; see also Charles G. Sellers, *The Market Revolution; Jacksonian America, 1815-1846* (New York, 1991), 93; George C. Herring, *From Colony to Superpower: U. S. Foreign Relations since 1776* (New York, 2008), chap. 4. On democratization, see Sean Wilentz, *The Rise of American Democracy: Jefferson to Lincoln* (New York, 2005).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.43 - From Disestablishment to Dartmouth College v. Woodward: How Virginia's Fight over Religious Freedom Shaped the History of American Corporations

Alyssa Penick

ARTICLE	From Disestablishment to Dartmouth College v. Woodward: How Virginia's Fight over Religious Freedom Shaped the History of American Corporations
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From Disestablishment to *Dartmouth College v. Woodward*: How Virginia's Fight over Religious Freedom Shaped the History of American Corporations

ALYSSA PENICK

Dartmouth College v. Woodward (1819) has long been hailed as a landmark Supreme Court decision and a significant step in the rise of the American commercial economy. In 1817, the college sued to prevent the state of New Hampshire from modifying its colonial charter and turning the school into a public university. The Supreme Court's 1819 decision limited the power of a state legislature to invalidate a royal charter, or indeed to alter any corporate contract.[1] Scholars have emphasized that "the legal structure of

1. For more on the importance of *Dartmouth College*, see Gregory A. Mark, "The Personification of the Business Corporation in American Law," *University of Chicago Law Review* 54 (1987): 1441–83; Mark D. McGarvie, "Creating Roles for Religion and Philanthropy in a Secular Nation: The Dartmouth College Case and the Design of Civil Society in the Early Republic," *Journal of College and University Law* 25 (1999): 527–68; Francis N. Stites, *Private Interest and Public Gain: The Dartmouth College Case, 1819* (Amherst: University of Massachusetts Press, 1971); and Rodney A. Smolla, *The*

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the modern U.S. business corporation had its genesis" in *Dartmouth College* and called the case "an epochal moment in the history of American corporations."[2] Chief Justice John Marshall's definition of the corporation in *Dartmouth College* remains a touchstone for scholars and the courts today.[3]

However, when Daniel Webster appeared before the Court, he cast *Dartmouth College* as an already-settled matter of law, not a potential milestone. The famed orator maintained that *Dartmouth College* closely resembled a case from 4 years earlier, *Terrett v. Taylor* (1815). *Terrett* was a stinging federal rebuke of a Virginia Supreme Court decision, *Turpin v. Lockett* (1804), which had allowed the Virginia legislature to seize lands belonging to Episcopal parishes as part of religious disestablishment.[4] Webster argued that the Court had already ruled in *Terrett* that a state legislature could not "repeal statutes creating private corporations," nor could it "repeal any part of them, or impair them, or essentially alter them, without the consent of the corporators."[5] He insisted that *Terrett* left "little to be argued or decided" in *Dartmouth College.*[6]

Despite the importance that Webster afforded to the case while arguing *Dartmouth*, *Terrett* remains little known today.[7] The existing literature on *Terrett* primarily falls into two camps. Constitutional scholars most often discuss the case as a forerunner to *Dartmouth College,* but a few have found Story's opinion in *Terrett* "puzzling" or "gratuitous."[8] One

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Constitution Goes to College: Five Constitutional Ideas that Have Shaped the American University (New York: New York University Press, 2011).

2. "*Trustees of Dartmouth College v. Woodward*," in *Gale Encyclopedia of American Law*, 3rd ed., Vol. 10, ed. Donna Batten (Detroit: Gale, 2010), 128; Shirelle Phelps and Jeffrey Lehman, eds., *West's Encyclopedia of American Law*, 2nd ed., Vol. 10 (Detroit: Gale: 2000), 122–24; and William M. Wicek, *Liberty under Law: The Supreme Court in American Life* (Baltimore: The Johns Hopkins University Press, 1998), 44–45.

3. See Naomi R. Lamoreaux and William J. Novak, "Corporations and American Democracy: An Introduction," in *Corporations and American Democracy,* ed. Lamoreaux and Novak (Cambridge, MA: Harvard University Press, 2017), 3, 9; Justice Ruth Bader Ginsburg quoted from Marshall's decision in *Dartmouth College* in her dissent in *Burwell v. Hobby Lobby*, 573 U.S. 682 (2014).

4. *Turpin v. Locket,* 6 Call 113 (1804).

5. *Trustees of Dartmouth College v. Woodward,* 17 U.S. 518 (1819), 591–92; *Terrett v. Taylor,* 13 U.S. (9 Cranch) (1815), 52.

6. *Trustees of Dartmouth College v. Woodward*, 17 U.S. 518 (1819), 591.

7. One exception is R. Kent Newmeyer, who called Justice Joseph Story's decision in *Terrett* "pioneering." However, Newmeyer's brief summary of the case does not clarify its circumstances or its connection to *Dartmouth*. See Newmeyer, *Supreme Court Justice Joseph Story: Statesman of the Old Republic* (Chapel Hill: University of North Carolina Press, 1985), 131–33.

8. James W. Ely Jr., "The Marshall Court and Property Rights: A Reappraisal," *The John Marshall Law Review* 33 (2000): 1049–50; Benjamin F. Wright, Jr., *The Contract Clause of*

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.44 - Langdon Cheves and the Panic of 1819: A Reassessment

Edwin J. Perkins

ARTICLE	Langdon Cheves and the Panic of 1819: A Reassessment
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Langdon Cheves and the Panic of 1819: A Reassessment

EDWIN J. PERKINS

Langdon Cheves's role as president of the Second Bank of the United States (1819–1822) warrants reassessment. First, he did not save the bank from threatened failure, since it was, in truth, already sound. Second, he was irresponsible in accumulating huge excess reserves during the depression year of 1820; reserves estimated here as sufficient to support an increase of up to 17 percent in the volume of notes and deposits in the U.S. money supply.

LANGDON Cheves, when judged by his contemporaries for his performance as president of the Second Bank of the United States from 1819 to 1822, received only mixed reviews, but early twentieth–century historians significantly upgraded his rating and accorded him generally high marks for instituting sound management practices where they were allegedly lacking.[1] Cheves was summoned to Philadelphia to assume leadership of the bank when his predecessor, William Jones, resigned under a cloud soon after a special congressional committee, formed in 1818, released a lengthy report on its findings.[2]

Cheves's administration was free of scandal, but not totally exempt from criticism. Some charged that he was too conservative, even for a banker. The most serious accusation was that in his effort to build up the bank's reserves of specie, Cheves had precipitated a panic but then done little to relieve the distress associated with the depression that lasted until 1823. His most vocal critic was William Gouge, an ally of President Andrew Jackson, who asserted that under Cheves's administration, "the bank was saved and the people were ruined."[3]

The modern judgment of Cheves's performance has stressed the positive and largely ignored his contemporary critics. Ralph Catterall, the first professional historian to study the bank in depth, wrote in 1903 that "Cheves's management of the bank, on the whole, was excellent."[4]

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[1] Ralph Catterall, *The Second Bank of the United States* (Chicago, 1903), and Bray Hammond, *Banks and Politics in America: From the Revolution to the Civil War* (Princeton, 1957). Most textbooks currently give a favorable view of Cheves.

[2] House of Representatives, "Report on the Bank of the United States," 15 Cong., 2 Ses. (January 16, 1819), in *American State Papers: Finance* (Washington, D.C., 1834), III, pp. 306–15.

[3] William Gouge, *A Short History of Paper Money and Banking in the United States* (Philadelphia, 1833), II, p. 110.

[4] Catterall, *Second Bank*, p. 82.

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That view was later echoed by Bray Hammond, who gave Cheves credit for saving the institution in a time of great crisis.[5]

Meanwhile, other explanations for the underlying causes of the Panic of 1819 have tended to absolve Cheves of any blame for its occurrence. The traditional interpretation points mainly to Jones as the prepetrator of the panic because of his allegedly inflationary lending policies in 1817 and 1818. Recently, Richard Timberlake has stressed the culpability of the Treasury Department in placing the bank and economy in an extremely tenuous position in 1817 and 1819.[6] Other accounts focused on changes in the international economy, particularly the sharp drop in prices for American exports.[7] In all of these scenarios, Cheves has not been held accountable for the outcome. Instead, he has been portrayed as a man who carried out effectively a series of unpopular, but absolutely necessary, policies which were required to support the bank and eliminate the excesses that had crept into the American financial system.

It is not surprising that Cheves has received such good press in historical accounts, since a close inspection of primary sources reveals that the present favorable assessment can be traced back largely to his own pen. Most of our knowledge of his presidency is found in a long, retrospective narrative covering his years in office, which Cheves presented to the bank's stockholders upon announcing his retirement in the fall of 1822.[8] A lawyer by training, Cheves drafted a masterful brief in his own behalf. Taken as gospel by modern historians of the bank, who had high regard for conservatism, the myth of Cheves's heroics has been reinforced by constant repetition.[9]

The time for a reassessment is long overdue. The more equivocal judgment of nineteenth-century observers was closer to the mark. In truth, Cheves did not save the bank, despite the remarks in his self-serving narrative. An analysis of the bank's financial condition and a more critical reading of his narrative reveal that the Second Bank was not in any serious danger by the time he assumed office in March 1819. The only genuine crisis had passed six to nine months earlier in the summer and fall of 1818.

Although Cheves can be spared the blame for precipitating the panic, the monetary policies he pursued after the crisis had materialized were

[5] Hammond, *Banks and Politics*, pp. 239, 276.

[6] Richard Timberlake, Jr., *The Origins of Central Banking in the United States* (Cambridge, Massachusetts, 1978), pp. 12–26.

[7] Douglass North, *The Economic Growth of the United States, 1790–1860* (New York, 1961), pp. 182–88, and Murray Rothbard, *The Panic of 1819: Reactions and Politics* (New York, 1962), pp. 1–23. Rothbard does not focus extensively on the origins of the panic, but rather on its consequences.

[8] Langdon Cheves, "Exposition of the President of the Bank to Stockholders," published in *Niles Weekly Register*, 23 (Oct. 12, 1822), 89–96.

[9] The story is repeated in a recent biography; see Archie Huff, Jr., *Langdon Cheves of South Carolina* (Columbia, South Carolina, 1977), pp. 96–127.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.45 - How the Republicans Learned to Love Manufacturing: The First Parties and the 'New Economy'

Lawrence A. Peskin

ARTICLE	How the Republicans Learned to Love Manufacturing: The First Parties and the 'New Economy'
JOURNAL	Journal of the Early Republic 22, no. 2 (2002)
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HOW THE REPUBLICANS LEARNED TO LOVE MANUFACTURING: THE FIRST PARTIES AND THE "NEW ECONOMY"

Lawrence A. Peskin

In 1809 Adam Seybert made an odd request. Speaking on the floor of the House of Representatives, the Republican congressman from Pennsylvania asked that Alexander Hamilton's famed Report on Manufactures be reprinted for Congress. Hamilton's report, which had been tabled by the House eighteen years earlier, was, according to Seybert, "a document which contained much important matter, and did honor to its author." Seybert added that it could serve as "the basis on which an important superstructure might be raised."[1] Historians long have described Hamilton's three reports—on credit, the national bank, and manufactures—as the bedrock of Federalist economy and the catalysts in the split between the first American parties, the Federalists and Democratic-Republicans. Yet, here Seybert, a Republican, was suggesting that the Federalist Report on Manufactures might serve as the blueprint for a new American economy. By embracing the ideas of his party's old archenemy, Seybert illustrated an important shift in the economic discourse within the first party system during the events leading up to the War of 1812. During this period, a time of very heated rhetoric, the parties appeared almost to switch positions on the issue of manufacturing and the role of the federal government in the economy.

Two aspects of Hamilton's report, according to common wisdom, should have troubled Seybert and his fellow Republicans. The first was the treasury secretary's support for manufacturing. In the report's introduction,

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[1] *The Debates and Proceedings in the United States 11th Congress First and Second Sessions* (Washington, DC, 1853), 702; *Aurora* (Philadelphia), Dec. 12, 1809.

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Hamilton acknowledged that, although manufacturing had gained support in the new nation, there were still some skeptics who were critical of it, particularly those who viewed agriculture as "the most beneficial and productive object of human industry." Much of the first section of the report aimed to prove that these skeptics were wrong and to show that manufacturing could, in fact, be just as productive as agriculture. Historians generally have placed Republicans in the camp of the skeptical agrarians. Although the simplistic Beardian dualism of Republican rural agrarianism versus Federalist urban capitalism has been replaced with a more nuanced vision of Republicans who, often reluctantly, supported limited forms of manufacturing, most historians still do not describe Republicans as enthusiastic promoters of manufacturing.[2]

The second potentially troubling aspect of the report for Republicans was Hamilton's insistence that the power of the federal government be used to encourage manufacturing. His critics, Hamilton predicted, would argue that "to endeavor, by the extraordinary patronage of government, to accelerate the growth of manufactures, is, in fact, to endeavor by force and art, to transfer the natural current of industry from a more to a less beneficial channel." Referring to the recent formulation of the French physiocrats and Adam Smith, Hamilton explained that such critics would conclude that "to leave industry to itself, therefore, is, in almost every case, the soundest as well as the simplest policy." Hamilton's analysis of his opponents' logic has often been accepted by modern historians, most of whom agree that Republicans were indeed antimercantilist, although not always, as Joyce Appleby has argued, proponents of "economic freedom" and Adam Smith's invisible hand.[3]

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[2] Drew R. McCoy, *The Elusive Republic: Political Economy in Jeffersonian America* (New York, 1980); Joyce Appleby, *Capitalism and a New Social Order: The Republican Vision of the 1790s* (New York, 1984). On urban Republicans' reluctance to support large-scale manufacturing, see Ronald Schultz, *The Republic of Labor: Philadelphia Artisans and the Politics of Class, 1720-1830* (New York, 1993). For two historians who argue that Republicans were more strongly in favor of manufacturing, see John R. Nelson, *Liberty and Property: Political Economy and Policymaking in the New Nation, 1789-1812* (Baltimore, 1987), 37-51; and Steven Watts, *The Republic Reborn: War and the Making of Liberal America, 1790-1820* (Baltimore, 1987), 217-74.

[3] Arthur Harrison Cole, ed., *Industrial and Commercial Correspondence of Alexander Hamilton* (Chicago, 1928), 247-48; Jacob E. Cooke, "Tench Coxe, Alexander Hamilton, and the Encouragement of Manufactures," *William and Mary Quarterly,* 32 (July 1975), 375; Appleby, *Capitalism and a New Social Order*, 88. Nelson, *Liberty and Property*, argues that both Republicans and Federalists fit into a "liberal" consensus; see also, McCoy, *The Elusive Republic*, 36-165ff. Schultz and Sean Wilentz discount the urban Jeffersonians' alleged economic liberalism while focusing on their more radical, proto-socialist tendencies.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.46 - 'Bolder Attitude': James Monroe, the French Revolution, and the Making of the Monroe Doctrine

Brook Poston

ARTICLE	'Bolder Attitude': James Monroe, the French Revolution, and the Making of the Monroe Doctrine
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BROOK POSTON

"Bolder Attitude"

James Monroe, the French Revolution, and the Making of the Monroe Doctrine

John Quincy Adams pointed to the paper in front of him and warned the president that it would "serve as a summons to arms, to arms against all of Europe." President James Monroe listened, surely disappointed but perhaps not surprised by the reaction. His secretary of state did not understand. Monroe had, in one way or another, been "at arms" against European monarchism his entire life. The document Adams referred to, which would later become known as the Monroe Doctrine, was only Monroe's latest, and he hoped greatest, counterstrike against the European monarchies in defense of republicanism.[1]

It started for the president almost fifty years before when Monroe was nearly killed by a Hessian bullet at the battle of Trenton on the day after Christmas in 1776.[2] The wound troubled the future president throughout his life, and the pain may even have reminded him of the struggle that November morning in 1823 as he and John Quincy Adams debated the language of the Monroe Doctrine.[3] Adams, his most valued cabinet member, accused Monroe of "throwing down the gauntlet" against the monarchies of Europe.[4] The proposed doctrine terrified the secretary of state. Eight years younger than the president, he had not served in the War of Independence, but it was more than that. John Quincy Adams had once shared his father's Federalist convictions. Unlike Monroe, he had not spent a lifetime defending the republican movement against European monarchists. It is difficult to exaggerate how important republicanism was to James Monroe. In his one

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James Monroe (1758–1831) suffered a wound at the battle of Trenton on 26 December 1776. He is shown here on the ground to the left of George Washington (1732–1799). Pain from the wound may have served as a constant reminder to Monroe of the struggle between republicanism and monarchy. (*Library of Congress*)

major work of political philosophy, Monroe called the American Revolution the "most important epoch in the history of mankind" because it created a style of republican government "better calculated to secure to the people the blessings of liberty" than any that had come before.[5] Because of his passion for republicanism, Monroe dedicated his life to promoting the cause.[6]

Monroe must have considered the course the republican cause had taken over the past half century as he listened to Quincy Adams rail against his first draft of the Monroe Doctrine. He might even have agreed with Adams's argument that the United States should remain "safe in their distance" from the "convulsions" of Europe if it had not been for the French Revolution. But events in France in 1789 seemed to auger a worldwide flowering of republicanism. Monroe believed deeply that it was therefore every American's duty to support France's Revolution in much the same way the

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.47 - Antimasonry and Partisanship in Greater New England, 1826-1836

Donald J. Ratcliffe

ARTICLE	Antimasonry and Partisanship in Greater New England, 1826-1836
JOURNAL	Journal of the Early Republic 15, no. 2 (1995)
EXCERPT	Original journal pages 199-200
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ANTIMASONRY AND PARTISANSHIP IN GREATER NEW ENGLAND, 1826-1836

by Donald J. Ratcliffe

In recent years historians have made far too much of political Antimasonry. This extraordinary third party, so they claim, roused ordinary people to a new awareness of politics and thus broadened popular involvement in the electoral process. Since most of these Antimasonic voters ultimately supported the Whig party, Antimasonry is credited with creating a newly vigorous opposition to Jacksonian Democrats and imbuing the Whig party with an evangelical, moralistic, antiparty character.[1] Yet such an interpretation rests on unsub-

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Mr. Ratcliffe is a professor in the department of history at the University of Durham, England. He is the author of numerous books on Ohio politics including two forthcoming volumes, *Politics of Long Division* and *Party Spirit on the Old Frontier: Democratic Politics in Ohio, 1793-1820.* This article is a revised version of papers previously given to the American History Seminar at the Institute of Historical Research, University of London, to the Seminar in Social and Political History at the American Antiquarian Society, Worcester, Massachusetts, and to the annual conference of the British Association for American Studies, University of Manchester. The author is grateful to the participants in those discussions, to the anonymous reviewers who have commented on various versions of the paper, and especially to Steven C. Bullock, Richard Carwardine, Paul Goodman, Howell John Harris, and Daniel Walker Howe. The research upon which it is based was made possible by awards from the British Academy, the University of Durham, and the American Antiquarian Society, to each of whom the author wishes to express his gratitude.

[1] Lee Benson, *The Concept of Jacksonian Democracy: New York as a Test Case* (Princeton, 1961), 20, 11-63, 125-31, 306-09; Ronald P. Formisano, *The Birth of Mass Political Parties: Michigan, 1827-1861* (Princeton, 1971), 60-67, 136; Michael F. Holt, "The Antimasonic and Know-Nothing Parties," in *History of U.S. Political Parties*, ed. Arthur M. Schlesinger, Jr. (4 vols., New York, 1973), I, 575-620; Ronald P. Formisano, *The Transformation of Political Culture: Massachusetts Parties, 1790s-1840s* (New York, 1983), esp. 197-221; William Preston Vaughn, *The Antimasonic Party in the United States, 1826-1843* (Lexington, 1983); Kathleen Smith Kutolowski, "Antimasonry Reexamined: Social Bases of the Grass-Roots Party," *Journal of American His-*

JOURNAL OF THE EARLY REPUBLIC, 15 (Summer 1995). © 1995 Society for Historians of the Early American Republic.

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stantiated assumptions, in particular about the degree of popular involvement in national politics before the appearance of the Antimasonic party. If we assume for a moment that perhaps voters were not interested solely in local politics, that Washington did not appear ''at a distance and out of sight,'' then a decent case appears for arguing that the process of building two popularly based, nationally focused constituencies was well under way in the northern states by 1828, even though state politics did not generally operate according to that division. If so, most Antimasons were probably part of the anti-Jackson political community even before the Antimasonic party was founded. Far from the Antimasons helping to establish the framework of the Second Party System, the progress and development of their own party, it may be argued, was always hedged in by structures of national partisan loyalties that already existed.[2]

Any discussion of Antimasonry, we are rightly told, should make a clear distinction between the social movement and the political

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tory, 71 (Sept. 1984), 269-93; Robert O. Rupp, ''Parties and the Public Good: Political Antimasonry in New York Reconsidered,'' *Journal of the Early Republic*, 8 (Fall 1988), 253-79; Paul Goodman, *Towards a Christian Republic: Antimasonry and the Great Transition in New England, 1826-1836* (New York, 1988). Brief statements of this general view include Daniel Walker Howe, *The Political Culture of the American Whigs* (Chicago, 1979), esp. 54-58; Thomas Brown, *Politics and Statesmanship: Essays on the American Whig Party* (New York, 1985), 13-48; Harry L. Watson, *Liberty and Power: The Politics of Jacksonian America* (New York, 1990), 177-87; and Richard J. Carwardine, *Evangelicals and Politics in Antebellum America* (New Haven, 1993), 7-8, 50-51, 58, 64, 109, 320-21.

[2] James Sterling Young, *The Washington Community, 1800-1828* (New York, 1966), chap. 1 (quotation taken from chapter title). Young's widely accepted assertion that there was little popular interest in national politics in these years remains an unproven assumption. For evidence that voters often turned out in the largest numbers for congressional elections, see Donald J. Ratcliffe, ''Voter Turnout in Early Ohio,'' *Journal of the Early Republic*, 7 (Fall 1987), 223-51, esp. 242-45, 246, 251. Many historians also assume that real national ''parties'' cannot have existed in 1828 because they did not structure competition at the state level and that therefore party loyalties could not have been created by that time. For example, see Goodman, *Towards a Christian Republic*, 106, 114, 139, 151-52, 219. For examples of interpretations that ignore the national contests of the 1820s, see Formisano, *Transformation of Political Culture;* and John L. Brooke, *The Heart of the Commonwealth: Society and Political Culture in Worcester County, Massachusetts, 1713-1861* (New York, 1989). For the development of party divisions at national and state level, see Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill, 1966). For the development of national organizations, see James S. Chase, *Emergence of the Presidential Nominating Convention, 1789-1832* (Urbana, 1973).

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.48 - The Right to Vote and the Rise of Democracy, 1787-1828

Donald Ratcliffe

ARTICLE	The Right to Vote and the Rise of Democracy, 1787-1828
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The Right to Vote and the Rise of Democracy, 1787–1828

DONALD RATCLIFFE

A long tradition in American political history associates the presidency of Andrew Jackson with the achievement of universal suffrage and the coming of democracy, at least for adult white males. There is some justification for this view, but only in limited senses; for the most part this interpretation has had a deleterious effect on our understanding of political development in the early republic. In particular it has created the belief that relatively few people possessed the right to vote in the early republic, and that therefore mass participation was postponed to the years after 1815. As recently as September 2008 the distinguished historian Jill Lepore could write in the *New Yorker* that during Washington's presidency only 6 percent of Americans could vote—which admittedly translates into about 15 percent of the free adult population. Sean Wilentz's prize-winning *Rise of American Democracy* (2005) recognizes that the suffrage was much more widely spread before 1815, but he still builds his interpretation around the assumption that politics did not involve the public at large until the Age of Jackson. Even Alexander Keyssar's illuminating *The Right to Vote* (2000) and Daniel Walker Howe's excellent *What Hath God Wrought* (2007) assume that the

Donald Ratcliffe is Supernumerary Teaching and Research Fellow at the Rothermere American Institute in the University of Oxford. He wishes to acknowledge the support of staff of the Institute and the Vere Harmsworth Library, as well as the constructive advice and criticism he has received from John Brooke, Philip Lampi, Daniel Peart, Andrew Robertson, and David Waldstreicher. The author dedicates this essay to the late J. R. Pole, the distinguished British (and Oxford) historian who told us all this over fifty years ago, and yet his teaching has been curiously ignored by most American historians.

Journal of the Early Republic, 33 (Summer 2013)
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practice of politics became more democratic in the 1820s because of recent fundamental changes in electoral rules. Such views are explicitly contradicted by the voting data that Philip Lampi has gathered that are now available on the A New Nation Votes website, which confirm the huge expansion of popular participation within two decades or so of the adoption of the United States Constitution.[1]

This expansion was possible because the right to vote had always been extraordinarily widespread—at least among adult white males—even before the country gained its independence. During the colonial period, the right to vote for the lower house of colonial legislatures had been defined in traditional British terms: Only people who had freehold landed property sufficient to ensure that they were personally independent and had a vested interest in the welfare of their communities could vote. That qualification normally applied to men who were heads of households, since women were almost by definition dependent, but the right could extend to widows who had become responsible for the family property. Some colonies excluded propertied people whose civic commitment they suspected—recent arrivals, members of minority religious sects, and racial groups deemed unacceptable. But those most generally excluded were laborers, tenant farmers, unskilled workers, and indentured servants, all of whom were considered to lack a "stake in society," a permanent interest in the community, and the wherewithal to withstand corruption.[2]

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1. Jill Lepore, "Rock, Paper, Scissors: How We Used to Vote," *The New Yorker*, Oct. 13, 2008, 2, consulted at http://www.newyorker.com/reporting/2008/10/13/081013fa_fact_lepore?currentPage=2; Sean Wilentz, *The Rise of American Democracy: Jefferson to Lincoln* (New York, 2005); Alexander Keyssar, *The Right to Vote: The Contested History of Democracy in the United States* (New York, 2000); Daniel Walker Howe, *What Hath God Wrought: The Transformation of America, 1815–1848* (New York, 2007). See also Charles Sellers, *The Market Revolution: Jacksonian America, 1815–1846* (New York, 1991). The A New Nation Votes: American Election Returns 1787–1825 website may be found at http://elections.lib.tufts.edu/aas_portal/index.xq.

2. The best overall study of the evolution of the suffrage before the Civil War remains Chilton Williamson, *American Suffrage from Property to Democracy, 1760–1860* (Princeton, NJ, 1960). For colonial attitudes, see ibid, 1–61; Jack P. Greene, *All Men Are Created Equal: Some Reflections on the Character of the American Revolution* (Oxford, UK, 1976), reprinted in his *Imperatives, Behaviors, and Identities: Essays in Early American Cultural History* (Charlottesville, VA, 1992),

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.49 - 'The Cause of the Greeks': Philadelphia and the Greek War for Independence, 1821-1828

Angelo Repousis

ARTICLE	'The Cause of the Greeks': Philadelphia and the Greek War for Independence, 1821-1828
JOURNAL	The Pennsylvania Magazine of History and Biography 123, no. 4 (1999)
EXCERPT	Original journal pages 333-334
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"The Cause of the Greeks": Philadelphia and the Greek War for Independence, 1821–1828

IN THE SPRING OF 1821, after nearly four hundred years of Turkish rule, the Greeks of the Morea (Peloponessus) rose in rebellion. In the United States the drama of the Greek revolution evoked strong emotions. Americans were drawn to the Greeks for a number of reasons. For one, the Greeks were fellow Christians engaged in a veritable "holy war" of survival against their Moslem oppressors. National pride—which fueled a burgeoning commitment to the dissemination of republican ideology—formed another source of pro-Greek thought. Having themselves risen from tyranny, Americans were not indifferent to another people striving to achieve the same liberties they had fought for and maintained. Prior to 1821, no revolution captured the public imagination or aroused U.S. sympathy and benevolence more than the Greek uprising of 1821–28. Since their own revolutionary struggle a half century earlier, Americans had seen their own example emulated by the French, the South Americans, and even the Serbs, all with varying degrees of success. Only the Greeks, however, were able to elicit widespread humanitarian assistance from the United States. For instance, few Americans seemed to care about the Serbian Revolution of 1807–17, even though the Serbs, like the Greeks, were Christians fighting for similar principles. Unlike the Serbs, however, the Greeks were perceived as the heirs to the classical culture of antiquity.[1]

The author wishes to thank Richard H. Immerman and Herbert Ershkowitz of Temple University, and Marc Gallicchio of Villanova University, for their help and support in preparing this article.

[1] James A. Field Jr., *From Gibraltar to the Middle East: America and the Mediterranean World, 1776–1882* (Chicago, 1991), 121; and Edward Mead Earle, "American Interest in the Greek Cause, 1821–1827," *American Historical Review* 33 (1927), 44–45. In general, Americans welcomed antimonarchical revolutions, such as those in France and South America, but recoiled when those uprisings lapsed into

THE PENNSYLVANIA MAGAZINE OF HISTORY AND BIOGRAPHY
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That many Americans, especially the classically educated elite, would manifest such deep concern for Hellenic independence should not be surprising given their reverence for classical Greece. The romantic idealization of the Greek roots of Western civilization comprised an important element in pro-Greek sentiment. By the time of the Greek revolution, Greece had become the center of attention for classical studies as scholars began to reinterpret ancient literature and the arts. Americans in these years designed their homes and public buildings to resemble Greek temples and named their towns and cities after those of antiquity. This veneration for all things Greek in turn fostered a passionate anticipation for the regeneration of ancient Hellas, seen by many intellectuals as the "real cradle of liberty in which the earliest republics were rocked."[2]

Nowhere was this sentiment more evident than in Philadelphia, which was at the time in the midst of its own Hellenic renaissance with the building of the Second Bank of the United States betwen 1818 and 1824. Modeled on the Parthenon in Athens, the Second Bank was regarded as the first truly Greek Revival building in the United States. Often styled the "Athens of America," the City of Brotherly Love might well have been expected to lend its moral and material support to the embattled Greeks. As in a number of other U.S. cities, the friends of Greece in Philadelphia organized an ad hoc committee to raise money and supplies to meet the Greek crisis.[3]

But a growing rift soon developed between those who favored aid to expedite the Greek war effort and those who wanted to confine the effort

"repression, Bonapartism, and deep social change." In the case of the South Americans, most commentators, while sympathetic, did not believe that the southern rebels possessed the qualities necessary for self-government. In any event, few Americans proposed that the nation extend military or financial support to them. See Bradford Perkins, *The Cambridge History of American Foreign Relations. Volume 1: The Creation of a Republican Empire, 1776–1865* (Cambridge, Mass., 1993), 12–14, 155–56.

[2] Cited in Parke Godwin, *A Biography of William Cullen Bryant* (2 vols., New York, 1883), 1:187. For more information on this nascent American Hellenism, see Meyer Reinhold, *Classica Americana: The Greek and Roman Heritage in the United States* (Detroit, 1984), 184–85, 214–19; and Stephen A. Larrabee, *Hellas Observed: The American Experience of Greece, 1775–1865* (New York, 1957), especially chap. 1.

[3] For a more detailed account of Philadelphia's architectural Hellenism see Roger G. Kennedy, *Greek Revival America* (New York, 1989), 167–74; Talbot Hamlin, *Greek Revival Architecture in America* (New York, 1944), 75–80; and William H. Pierson Jr., *American Buildings and their Architects: The Colonial and Neoclassical Styles* (Garden City, N.Y., 1970), 434–38. Among the most notable structures in Philadelphia, besides the Second Bank, were the Naval Hospital (or Naval Asylum), the Philadelphia Exchange, and the principal building of Girard College, now Founder's Hall.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.50 - The 'Great Depression,' the People's Bank, and Jacksonian Fiscal Populism in North Carolina, 1819-1833

Robert Richard

ARTICLE	The 'Great Depression,' the People's Bank, and Jacksonian Fiscal Populism in North Carolina, 1819-1833
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THE TENNESSEE HISTORICAL QUARTERLY

The "Great Depression," the People's Bank, and Jacksonian Fiscal Populism in North Carolina, 1819–1833

BY ROBERT RICHARD

Passing through rural Chatham County, North Carolina, in the early summer of 1820, the former Federalist editor and cotton planter William Boylan found himself in a public dispute with an obscure candidate for local office named "Luther." Boylan overheard Luther speaking to a crowd about the misconduct of the state's three chartered banks on account of their suspension of specie payments during the Panic of 1819. As president of one of those banks, Boylan took the charge personally. He reminded Luther that "it was easy to find fault with measures—but not so easy to remedy them—and if he got Elected, what was his plan to relieve the people?" Luther "confessed he had none," but then the candidate "said something of the aristocracy of the Directors & Stockholders" while refusing to "explain what he meant by the expression." Clearly annoyed by this response, Boylan launched into a technical discourse on banking, finally assuring Luther and his audience that "the Banks were just as bad off as the people… and until the people could pay the Banks, the latter could not pay specie or loan any more money." In other words, the well-heeled planter defended the *banks* by accusing the *people*, and he ignored Luther's vague but genuine contempt for a corporate "aristocracy." Predictably, he failed to make a favorable impression on the farmers of Chatham County, and Luther complained afterward that Boylan "had not treated him politely by exposing him before the people."[1]

Based on this brief encounter, most historians would place Luther within an agrarian, Jeffersonian/Jacksonian tradition fiercely opposed to banks, internal improvements, and other trappings of the market revolution so well personified by William Boylan. But what if Luther's loathing for the bank "aristocracy" actually steered him down the same path as the Reverend Josiah Crudup, another political aspirant from nearby Wake County? Boylan criticized Crudup in the same letter in which he lambasted Luther, noting contemptuously to a fellow bank director that Crudup hoped "to obtain a popularity on the subject of the Banks" while running for a seat in the state Senate. Unlike his naïve counterpart Luther, the shrewd reverend had a real

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In North Carolina, the crusade for a People's Bank began in 1820. The movement over the next decade reflected the rise of Jacksonian fiscal populism as a political force to be reckoned with. (Benjamin Latrobe drawing, 2nd Bank of the United States, Library of Congress)

strategy for mitigating the economic crisis. Crudup initially toyed with "several very silly plans," Boylan sneered to his correspondent, but "now he propose[d] to take from the State Bank, the state's portion of capital & establish with it a new Bank & then loan it out to the people." In the years ahead, the Reverend Crudup's incipient proposal for a state-owned bank with populist principles would catch fire among farmers, laborers, and small planters throughout North Carolina. Boylan instinctively dismissed this scheme as one of "the miserable and silly expedients of these jacobins"—but the conservative banker sorely miscalculated. Josiah Crudup won his state senate election with 62% of the vote, and the following summer he was elected by a decisive majority to the U.S. House of Representatives. In hindsight, the evident popularity of Crudup's radical platform marks the beginning of a new movement in North Carolina politics and the rise of a complex national phenomenon best described as Jacksonian fiscal populism.[2]

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.51 - 'Vox Populi, Vox Dei': The Compensation Act of 1816 and the Rise of Popular Politics

C. Edward Skeen

ARTICLE	'Vox Populi, Vox Dei': The Compensation Act of 1816 and the Rise of Popular Politics
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VOX POPULI, VOX DEI: THE COMPENSATION ACT OF 1816 AND THE RISE OF POPULAR POLITICS

C. Edward Skeen

One of the most neglected aspects of early American political history is the transition from the deferential politics of the first party system to the emergence of the popular politics of the second party system.[1]

Mr. Skeen is a member of the Department of History at Memphis State University.

[1] The literature on the development of the first party system is extensive, but most of the analysis has been on the causes of the rise of political parties. See, for example, Joseph Charles, *The Origins of the American Party System* (Williamsburg, Va. 1956); William Nisbet Chambers, *Political Parties in a New Nation: The American Experience, 1776-1809* (New York 1963); and Noble E. Cunningham, Jr., *The Jeffersonian Republicans: The Formation of Party Organization, 1789-1801* (Chapel Hill 1957). The only work that deals more than tangentially with the decline of the first party system is Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill 1966), ch. 2. George Dangerfield's two books, *The Era of Good Feelings* (New York 1952), and *The Awakening of American Nationalism, 1815-1828* (New York 1965), scarcely notice the details of the transition of politics during this period. More pertinent are Paul Goodman, "The First American Party System," in *The American Party Systems: Stages of Political Development*, ed. William Nisbet Chambers and Walter Dean Burnham (New York 1967), 56-89; Norman K. Risjord, *The Old Republicans: Southern Conservativism in the Age of Jefferson* (New York 1965); Shaw Livermore, Jr., *The Twilight of Federalism: The Disintegration of the Federalist Party, 1815-1830* (Princeton 1962), and to some extent, David Hackett Fischer, *The Revolution of American Conservativism: The Federalist Party in the Era of Jeffersonian Democracy* (New York 1965). It is generally agreed the Age of Jackson was ushered in by a more vulgar, but nevertheless more democratic brand of politics, and that Andrew Jackson was the beneficiary and not the creator of this "new politics." The best statement of this viewpoint is Edward Pessen, *Jacksonian America: Society, Personality, and Politics* (Homewood, Ill. 1969). See also Robert V. Remini, *The Election of Andrew Jackson* (Philadelphia 1963) and, by the same author, *Martin Van Buren and the Making of the Democratic Party* (New York 1951).

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While we know that the second party system began to take form sometime after the War of 1812 and before the election of Andrew Jackson, and that it was characterized by being more democratic than deferential in orientation, historical treatments have lacked precision as to when this shift occurred. William Nisbet Chambers, for example, wrote that the first party system fell into decline, and "sometime around 1817 or 1819, it was no more." Richard P. McCormick stated vaguely that the first party system "deteriorated after 1815, and in a loose sense came to an end in 1824." Walter Dean Burnham arbitrarily set the end of the first party system as 1820, and Ronald P. Formisano simply concluded, "the matter of timing remains as a source of confusion."[2]

An event little noticed by historians, however, greatly accelerated the shift from deferential to popular politics—the Compensation Act of 1816. In the congressional elections of 1816, widespread public outrage resulted in the ouster of an unprecedented number of incumbents, and served as dramatic evidence of declining deference to public officials.

The popular reaction against the Compensation Act forced Congress to beat a humiliating retreat and repeal the law in the second session of the Fourteenth Congress. In doing so, however, they engaged in one of the most remarkable debates in the history of Congress. At issue, literally, was the question of *vox populi*, *vox Dei*—whether the voice of the people is the voice of God. It involved a wide-ranging and soul-searching discussion of the right of instruction and the nature of a representative of the people. Clearly, this event taught politicians that a new era was dawning, that those who would survive politically must pay keen attention to popular sentiment.

Obviously, the democratization of American politics began almost as soon as political parties first formed. As Lynn Marshall has pointed out, both the Federalist and Republican parties shared fundamentally the same precepts of Lockean liberalism, but with one important difference. "The Jeffersonians," he observed, "envisioned a locally established intellectual elite handing down great humane theories from on high, a conception that differed from the Hamiltonian only in the

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[2] William Nisbet Chambers, ed., *The First Party System: Federalists and Republicans* (New York 1972), preface; Richard P. McCormick, "Political Development and the Second Party System," in Chambers and Burnham, eds., *American Party Systems*, 91; Walter Dean Burnham, "Party Systems and the Political Process," *ibid.*, 289-292; Ronald P. Formisano, "Deferential-Participant Politics: The Early Republic's Political Culture, 1789-1840," *American Political Science Review*, 68 (June 1974), 484.

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Bibliography entry

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.52 - The Souring of Good Feelings: John W. Taylor and the Speakership Election of 1821

Edward K. Spann

ARTICLE	The Souring of Good Feelings: John W. Taylor and the Speakership Election of 1821
JOURNAL	New York History 41, no. 4 (1960)
EXCERPT	Original journal pages 379-380
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THE SOURING OF GOOD FEELINGS: JOHN W. TAYLOR AND THE SPEAKERSHIP ELECTION OF 1821

EDWARD K. SPANN*

MARCH 5, 1821, the date of James Monroe's second inauguration, was wet and gloomy. A gray mist hung low over Capitol Hill, and its dankness penetrated even into the hall of the House of Representatives where the President was then delivering his inaugural address. In contrast to the grimness of the weather, the address, given in the mild and unemotional manner so typical of the man, was optimistic. The dark clouds produced by the panic of 1819 and by the slavery controversy were rapidly drifting away, and the future, the President predicted, would be one of political peace and prosperity:

> No serious conflict has arisen, nor any conduct but such as are managed by argument and by fair appeal to the good sense of the people, and many of the defects which experience has clearly demonstrated in both governments [state and federal] have been remedied. By steadily pursuing this course in this spirit there is every reason to believe that our system will soon attain the highest degree of perfection of which human institutions are capable and that movement in all its branches will exhibit such a degree of order and harmony as to command the admiration . . . of the civilized world.

"Order and harmony," [1] this was the hope of idealism in the "Era of Good Feelings." Monroe had some reason for his hope, since in 1820 he had been elected with only one electoral vote cast against him. But this was misleading. His election indicated not unanimous support but unanimous

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indifference. The people and politicians of America were already looking past his presidency to 1824 when a new executive would be chosen. In the states, in the counties, in the towns, men were building the parties and formulating the issues of the future. Even as Monroe spoke, the rising tides of factionalism were undermining both the substance and the facade of good feelings. If he had cared to glance behind him, to the row of dignitaries who shared the podium, the President would have seen, in the person of Speaker John W. Taylor, a focal point of those forces which he attempted to ignore.[2]

Taylor, like Monroe, had believed that the demise of the Federalist party after the War of 1812 had permanently removed the one excrescence on the body politic. Federalism had been the major obstacle to the triumph of Republican principles; with Lucifer defeated, the world would again resume its blissful progress toward its heavenly goal. It was a rude shock, then, to discover that the instrument of party, the weapon of the devil, had also tempted the followers of Thomas Jefferson. The Republicans, themselves, had broken up into factions on the local and state level, and it was Taylor's misfortune that New York, his home state, should become one of the busiest proving grounds for the new two-party system.

In the Empire State, the Republican party had split into factions, the Clintonians and the Bucktails, squabbling over twin issues: Governor De Witt Clinton and the distribution of public offices. When in 1820 the two groups decisively split, Taylor, in lofty distain, had sought "to mingle as little as possible in the asperities and denunciations of politics at home." [3] For him, the followers of Clinton and Martin Van Buren, the Bucktail chief, in their struggle for a place at the public feeding trough, had sold the soul of the State for a mess of pottage: "How miserably mistaken is the policy of our State," he wrote on learning that Van Buren was about to oust Nathan Sanford from his seat in the United States Senate. "She sacrifices her best men to gratify a ferocious spirit of party, thus degrading herself; while she complains

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.53 - Changing Concepts of Party in the United States: New York, 1815-1828

Michael Wallace

ARTICLE	Changing Concepts of Party in the United States: New York, 1815-1828
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EXCERPT	Original journal pages 453-454
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Changing Concepts of Party in the United States: New York, 1815–1828

Michael Wallace

DURING the first thirty years of its existence the United States developed, quite unintentionally, a party system. Organized popular parties regularly contested for power; Federalists and Republicans fought passionately and acrimoniously in Congress and cabinet, in town squares and county courthouses throughout the nation. The evidences of party spirit alarmed many Americans, for the existence of parties and their constant contention violated powerful and ancient traditions of proper political behavior. According to canons inherited from British and colonial thought and practice, parties were evil: they were associations of factious men bent on self-aggrandizement. Political competition was evil: the ideal society was one where unity and consensus prevailed, where the national interest was peacefully determined by national leaders. Because partisan behavior violated normal ethical standards, many men, politicians among them, saw in the rise of parties a sign of moral decline. Not until a new generation of politicians emerged—men who had been raised in parties and had grown to maturity in a world that included party competition as a fixture of political life—were Americans able to re-evaluate the ancient traditions and establish new ones that justified their political activities.

Much of this re-evaluation and development of new ideals took place in New York State in the 1820's.[1] There a group of professional politicians, leaders of the Republican party known as the Albany Regency, developed the modern concept of a political party and declared party associations to be eminently desirable. They adhered to a set of values that insisted on preserving, not destroying, political parties. They denounced and derided the consensus ideal and praised permanent political competition as being beneficial to society.

► *Mr. Wallace is working toward his doctorate at Columbia University under Richard Hofstadter. He received his master's degree from that institution in 1966.*

[1] I do not claim that only New Yorkers advanced the ideas I am about to discuss, but only that they present us with certain archetypal positions. Investigations of the reflections of politicians in other states during this period, particularly Pennsylvania, Massachusetts, and North Carolina, might uncover similar configurations of ideas. For some New Jersey attitudes, primarily concerning the caucus, see Carl Prince, *New Jersey's Jeffersonian Republicans: The Genesis of a Party Machine, 1789–1817* (Chapel Hill, N.C., 1967).

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This essay will examine the ideas of these politicians. It will begin with their new definition of a political party, move to the new code of political morality that declared loyalty to party to be of the highest value, and conclude with their gradual rejection of the consensus tradition.

The regency politicians justified their political party by distinguishing it from the parties characteristic of English and colonial American politics. They asserted that while the old type of party had been a personal clique satisfying nothing but the greed and whims of its aristocratic leaders—thus meriting the odium it had received—the new type of party was a popular, democratically run organization that enabled the people to participate in government; it was, therefore, praiseworthy. By distinguishing between old and new parties, and by applying the epithets of the antiparty tradition only to the former, they freed their own association from condemnation. They were able to make this distinction because in fact the parties they were familiar with were quite different from their eighteenth-century forebears: the regency ratified a change that had already occurred.

In eighteenth-century England, "parties," "factions," or "connections" were cliques of parliamentary notables, organized about one or more prominent leaders. They were held together primarily by hopes of obtaining office. As Sir Lewis Namier tells us, "whoever in the eighteenth century had the 'attractive power' of office, received an accession of followers, and whoever retained it for some time was able to form a party." In addition to patronage, kinship and friendship were the basic ligaments of these primary political units. Lacking an organizational basis, however, these connections were quite unstable: "Such parties . . . were bound to melt, . . . for the basis of the various groups was eminently personal."[2] Several such groups would merge to form the coalitions that made up ministries, but these coalitions were themselves highly unstable and in a crisis tended to dissolve into their constituent elements. Denominations such as Whig and Tory were often meaningful designations, but they denoted broad stylistic and ideological characteristics, not cohesive structures. "There were no proper party organizations . . . though party names and cant were current."[3]

[2] Lewis B. Namier, *England in the Age of the American Revolution* (London, 1930), 242–43.

[3] *Id., The Structure of Politics at the Accession of George III* (New York, 1961), x. On the personal, nonorganizational quality of politics in this period, see also Richard Pares, *King George III and the Politicians* (Oxford, Eng., 1953), 74–82; Ivor Bulmer-Thomas, *Growth of the British Party System* (2 vols., London, 1967), I, 8; Archibald S. Foord, *His Majesty's Opposition, 1714–1830* (Oxford, Eng., 1964), 23. For the earlier part of the eighteenth century, see Robert Walcott, Jr., *English Politics in the Early Eighteenth Century* (Cambridge, Mass., 1956); and J. H. Plumb, *The Origins of Political Stability in England, 1675–1725* (Boston, 1967).

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Bibliography entry

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.54 - Andrew Jackson as a 'Military Chieftain' in the 1824 and 1828 Presidential Elections

Matthew Warshauer

ARTICLE	Andrew Jackson as a 'Military Chieftain' in the 1824 and 1828 Presidential Elections
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Andrew Jackson as a "Military Chieftain" in the 1824 and 1828 Presidential Elections: The Ramifications of Martial Law on American Republicanism

by Matthew Warshauer

The Battle of New Orleans revealed at least two things about Andrew Jackson. Not only could he act heroically in defense of the nation, but he could also act with little regard for civilian authority. For under the guise of military necessity, the general declared martial law, canceled civil liberties, arrested numerous civilians—along with state senator Louis Louaillier for writing a newspaper article critical of the military's conduct—then refused to honor a writ of habeas corpus issued for the senator's release by Federal District Judge Dominick Hall. Moreover, brooking no interference with his authority, Jackson promptly arrested the judge and then banished him from New Orleans for aiding insurrection within a military camp.[1] Fortunately for the general, his most controversial act was connected to his most spectacular military victory. Even though critics in Louisiana complained of Jackson's conduct, President Madison refused to issue a formal reprimand. The splendor of the New Orleans military campaign overshadowed the general's actions and as time slowly passed the turmoil surrounding martial law diminished. Jackson's behavior, however, was not laid to rest. Politics has a way of digging up the past and placing it under the intense light of electoral competition. Thus, when the general's name appeared on the roll for the office of president, opponents got out their shovels and exhumed Old Hickory's record.

The different way that anti- and pro-Jackson forces argued his military record invites one to rethink the historical interpretation of Revolutionary republicanism. Based on the premise that Americans were especially sensitive about their liberties, the "republican paradigm" or "synthesis," as it is often called, stemmed from Bernard Bailyn's study of radical Revolutionary ideology. According to Bailyn, the American colonists' understanding of the words liberty and power were heavily influenced by eighteenth-century English commonwealth writers, who warned of conspiracies perpetrated by the British government for the purpose of expanding its own power and enslaving the people. Power was an aggressive, compulsive force that expanded beyond legitimate boundaries and trespassed on the citizens' liberties. Viewing the taxes and standing armies sent by the mother country as attempts to rob them of their natural rights, Americans fought a war to maintain their liberty. Succeeding generations of Americans, argued historians who followed Bailyn's work, inevitably adopted the founders' compulsion over the delicate balance between liberty and power. Thus, Americans of Jackson's day remained concerned over the fragility of liberty.[2]

Martial law in New Orleans raises questions regarding the "republican paradigm." For what could pose a greater threat to the citizens' rights than a military commander who declared martial law and canceled all civilian authority? Indeed, the founding fathers constantly warned against military power in the form of standing armies.[3] And, revealing that they had learned well the concerns of the Revolutionary era, anti-Jacksonians of the 1820s heralded the watchwords of liberty and power during Jackson's bids for the presidency. Partisanship kept his opponents' republicanism alive in this instance, but little had been said about the curtailment of civil liberties in New Orleans prior to the general's run for the presidency. Even when he entered the 1824 election, serious criticism of martial law did not come until it seemed possible he

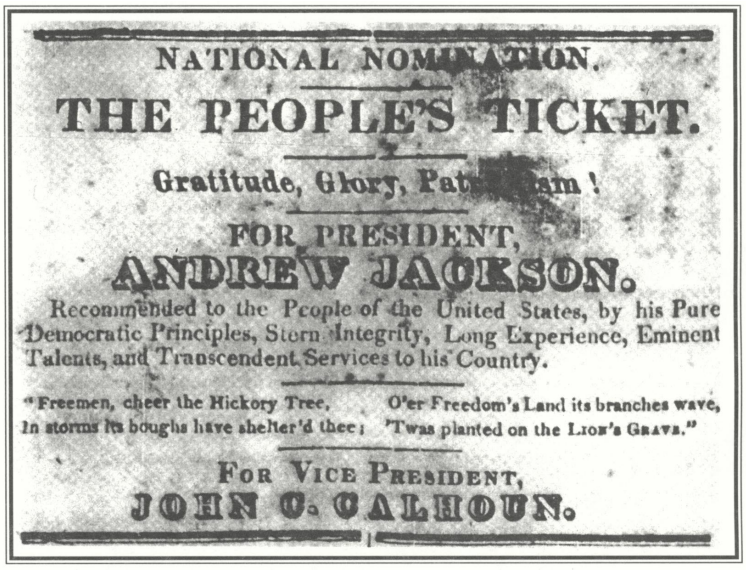
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could win. Thus charges that Jackson was a "military chieftain" who threatened the nation's liberty may have been prompted as much by increased competition within a quickly evolving American political system as by any ideological legacy from the founding fathers. True, the language of republicanism was present — the cries of liberty and power — but what did it signify?

Anti-Jackson forces were not alone when manipulating martial law for electoral advantage. The general's supporters also latched on to the issue and in doing so revealed the extent to which the Revolutionary conception of the balance between liberty and power had changed by the 1820s. For rather than down-playing the general's military career supporters embraced the charges of "military chieftain," averring that the boldness and decisive action shown by Jackson as a military commander were essential qualities for a president. Jacksonians asserted further that liberty could best be protected by military power and pointed to martial law as proof. Such an argument would have been unthinkable under the political assumptions of the Revolutionary era and its assertion reveals the extent to which politicians of the 1820s modified fundamental notions concerning American republicanism.

Additionally, although the Jacksonians' argument that military power protected liberty, and thus modified republican ideology, they possessed no deeply thought-out theoretical design. Rather, the campaign tracts defending the general's use of martial law had a shallow, ad hoc quality, since Jacksonians were often responding to a laundry list of charges posed by opponents. And the list revealed that anti-Jacksonians were equally superficial in their discussion of martial law. It was merely one stone among many thrown in an attempt to knock Jackson from the presidential race.

Indeed, other episodes in Jackson's military career were equally scrutinized. Most notedly, his invasion of Florida on two separate occasions, once in 1814 and again in 1818, sparked controversy within the United States and created tense relations with Spain. The first instance could be justified rather easily: America was at war with Great Britain and English troops occupied Pensacola. The general's second foray was more questionable. Not only did no official war exist, but Jackson, revealing his impulsive personality and tendency to overstep military authority, captured, tried, and summarily executed two English citizens for allegedly aiding the Seminole Indians. Old Hickory's precipitate action generated a political firestorm in Washington


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In storms its boughs have shelter'd thee; 'Twas planted on the Lion's Grave."

FOR VICE PRESIDENT,

JOHN C. CALHOUN.

PRO-JACKSON HANDBILL FROM THE CAMPAIGN OF 1824.
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CHAPTER 9 | SCHOLARLY ARTICLE

A9.55 - Andrew Jackson's Populism

Harry L. Watson

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of persuasion," and "more an impulse than an ideology."[3]

Scholars who prefer what I call more substantive definitions seek instead what they see as authentic populist *actions*, or at the very least, authentically populist methods of attracting support. Using the concept of "movement culture," Lawrence Goodwyn pioneered this approach in 1976 in his *Democratic Promise: The Populist Movement in America.* More recently, Ronald P. Formisano likewise focuses on political practice rather than language or style, in order to distinguish what he calls genuine "movements mobilizing masses of ordinary people… and invoking the name of 'the people' against established corrupt elites." He adopts this approach to exclude what he calls "pretenders and free riders" who "have used populist rhetoric or adopted a populist style as a political strategy."[4]

Without attempting to make any final choice between the stylistic and substantive approach to populism, I will lean to the stylistic here, for Andrew Jackson's specific programs have rightly lost favor today, but his style and slogans form a much more permanent legacy. For my purposes, in other words, it seems reasonable to sidestep the legitimate but separate question of whether the owner of 150 slaves or the head of a well-oiled and well-connected political machine could ever be a "genuine" populist, in order to focus instead on the origins and implications of his movement's pervasive and obviously influential rhetoric. More specifically, I would like to examine the development of three central values within mature Jacksonian ideology that seem particularly salient to modern political movements—majority rule, white male equality, and limited government. I will conclude with a brief discussion of how Jacksonians applied these principles to the business of party-building, and how their principles have changed over time.

By addressing Jacksonian ideology, I do not mean to malign Old Hickory as a closet intellectual or political philosopher, labels he would surely despise. The seventh president was never an original or rigorous thinker. At most, he repeated and reinforced the clichés of his era in ways that made them resonate more powerfully than ever. He was the most conspicuous of a whole generation of American political leaders and activists who transmitted a kind of vernacular republicanism from the revolutionary era to the rough-and-tumble politics of antebellum America, and from there to an enduring American political idiom. Because Jackson's political opinions do not survive in treatises but in policy papers and a few private letters, it is also necessary to search out details and connective tissue in the writings of some of Jackson's most important supporters, such as his nephew and adviser Andrew Jackson Donelson, and journalists William Leggett and John L. O'Sullivan. At least as much as the president himself, party ideologues drew on Jackson's specific policy pronouncements to formulate larger theoretical principles.

Jacksonian political values emerged in a context of profound racial and gender discrimination. Scholars of populism have cor-

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rectly observed that champions of "the great body of the people" have often seen them as exclusively white and male. The assumption is part of a larger tendency to contrast the "real" people with the undeserving rich and poor who bracket them on the social scale. Populists frequently denounce those at the top as corrupt exploiters; those below they condemn as weak dependents or dangerous freeloaders. In the American populist imagination, the latter group are frequently more than poor; they are often nonwhite. As Kazin puts it, "the rising of the 'people' was an avowedly white affair; the democratic vision rarely extended across the color line."[5]

Andrew Jackson certainly fits this model. He was not only a major slaveholder but he despised abolitionism and explicitly condemned it.[6] Racial scapegoating likewise appeared in the relationship between white workers and slaves and freed people in the nineteenth century, and also in the conservative populism of more recent American history. As is well known, it was likewise central to Jacksonian Indian policy, which featured the seizure of Native American lands, ostensibly to benefit white yeomen.[7]

With obvious adjustments, the same was true for gender. The Jacksonians assumed that the "people" were male. Men did the fighting, voting, and governing, and claimed the rights that came with them. Jackson himself tendered elaborate gallantry to "ladies" he saw as victimized, ranging from the much-maligned Margaret Eaton to a variety of lesser-known women who sought his aid.[8] He likewise practiced a grandiose machismo in his personal life and career and expected the same from other men. Perhaps it was no accident that his Whig opponents actively sought female support in their campaigns while Jacksonian Democrats belittled it.[9] Indeed, the linkage between racial and gender discrimination and the glorification of the white male people in less obviously toxic ways may be a source of racism's and sexism's lethality in the contemporary world. To get to the root of Jackson's legacy for the modern world, therefore, it may be useful to take note of his racial and gender policies and then look further, to qualities that link his "mode of persuasion" less obviously to others today.



In February 1829, General Jackson composed a draft reply to the committee who formally notified him of his election as President of the United States. In it, Jackson vented some of the bitterness engendered by a long, nasty campaign that began with the allegedly stolen election of 1824 and eventually saw the death of his wife and innumerable attacks on his integrity. The draft was far too pungent for release, so advisers apparently suppressed it in favor of an anodyne public substitute. For that very reason, the original text is a good place to begin examining the multiple meanings that Jackson placed upon his election:

> The people of their own mere will brought my name before the nation for

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.56 - John Quincy Adams's 'Great Gun' and the Rhetoric of American Empire

William Earl Weeks

ARTICLE	John Quincy Adams's 'Great Gun' and the Rhetoric of American Empire
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John Quincy Adams's "Great Gun" and the Rhetoric of American Empire

WILLIAM EARL WEEKS*

John Quincy Adams's stirring defense of Andrew Jackson's Seminole War campaign has long been recognized as one of the most important state papers in the history of American foreign relations. The defense, formulated in a letter dated 28 November 1818 to Minister to Spain George Erving, was described by Thomas Jefferson as being "among the ablest I have ever seen, both as to logic and style."[1] Historians have concurred in this view. In 1906 Hubert Bruce Fuller wrote that the letter was "one of the most wonderful state papers ever conceived." More recently, George Dangerfield described it as "a classic among American state papers" that deserved consideration as literature. Samuel Flagg Bemis made the most notable tribute to the importance of the letter. He termed it Adams's "great gun" and claimed that the note was "the greatest state paper" of his career.[2]

The "greatness" of Adams's letter to Erving lay in its effectiveness in quieting both the domestic and international uproar created by Jackson's conquest of Florida. The self-righteous, uncompromising tone of the letter, combined with the voluminous mass of documents purporting to support its claims, made it an imposing reply to Jackson's and the administration's critics both at home and abroad. The letter served as a powerful answer to those in the House who accused Jackson of Bonapartism and the administration of violating the Constitution by waging war on Spain. Bemis described its effects in this regard as "prodigious." Abroad, the note made clear to both Spain and Great Britain the U.S. determination to take

*The author would like to thank Professor John S. Galbraith and Deborah Small for their assistance in the preparation of this article.

[1]Jefferson to James Monroe, 18 January 1819, quoted in Samuel Flagg Bemis, *John Quincy Adams and the Foundations of American Foreign Policy* (New York, 1949), 327.

[2]Hubert B. Fuller, *The Purchase of Florida* (Cleveland, 1906), 286; George Dangerfield, *The Awakening of American Nationalism, 1815–1828* (New York, 1965), 62; Bemis, *Foundations*, 326–29.

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possession of Florida by any means necessary.[3] The letter contributed to the making of the Transcontinental Treaty with Spain insofar as it defended Jackson's actions, which Adams termed "among the most immediate and prominent causes that produced the treaty."[4]

Adams's letter to Erving also might be considered "great" because it exemplifies, both in form and content, the distinctive rhetoric of the American empire. Adams, perhaps without recognizing them as such, articulated many of the myths which have been essential to salving the conscience of a righteous-minded nation that expanded first across a continent and then throughout the world. In this way Adams's letter to Erving stands both as a testament to the power of language to shape our perception of the world and as an indication of the willingness of the American public and Congress to accept myths as truths in spite of evidence to the contrary.

Adams's letter to Erving was necessitated by an American policy aimed at removing or eliminating Native Americans from the southeast, of which Jackson's invasion of Florida in 1818 was only one part. The removal process began during the Creek War of 1813–1815. The Treaty of Fort Jackson imposed by Jackson near the end of the war resulted, in the words of Robert Remini, in the "virtual annihilation" of the Creek nation. Under the terms of the treaty twenty-three million acres were taken from the tribes. Ironically, the treaty was negotiated with those Creeks who had been allied with Jackson during the war. The Creeks who had resisted Jackson fled into Florida.[5] Between 1816 and 1818, Jackson negotiated five more cessions of land from the Cherokee, Choctaw, and Chickasaw tribes of the southeast, making the deep South (with the exception of Florida) safe for cotton cultivation and the slavery that went with it.[6]

Florida remained beyond the grasp of Americans. For years Spain had resisted American diplomatic and military efforts to acquire the province. During the War of 1812 the British had used the peninsula as a base from which to attack the southern frontier. Even more outrageous, from the American perspective, was the use of Florida as a haven by Indians and runaway slaves. In 1815 several hundred blacks and mestizos had occupied an abandoned British garrison at Prospect Bluff on the Appalachicola River. The "Negro Fort" (as the abandoned British post was known) was the largest slave refuge in the history of North America until it was destroyed by an

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[3]Bemis, *Foundations*, 327, 328.

[4]John Quincy Adams (JQA) diary, 24 February 1819, Adams Papers, Massachusetts Historical Society, Boston.

[5]On the Treaty of Fort Jackson see Robert V. Remini, *Andrew Jackson and the Course of American Empire* (New York, 1977), 225–33; Edwin C. McReynolds, *The Seminoles* (Norman, OK, 1957), 61; J. Leitch Wright, Jr., *Creeks and Seminoles: The Destruction and Regeneration of the Muscogulge People* (Lincoln, NE, 1986), 177–80; and Michael P. Rogin, *Fathers and Children: Andrew Jackson and the Subjugation of the American Indian* (New York, 1975), 157–59.

[6]Remini, *Andrew Jackson*, chap. 21. The treaties are in the *American State Papers: Indian Affairs* (Washington, 1834), 2:1–150.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.57 - The Working Life of the Marshall Court, 1815-1835

G. Edward White

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VIRGINIA LAW REVIEW

VOLUME 70 FEBRUARY 1984 NUMBER 1

THE WORKING LIFE OF THE MARSHALL COURT, 1815-1835*

*G. Edward White***

TO recreate the working life of the Supreme Court of the United States between 1815 and 1835 is to confront the remarkable capacities of change. Imagine a Court in session for as little as six weeks instead of the current nine months,[1] composed of seven justices rather than nine, conducting its business not in a massive marble building but in a basement room of an unfinished Capitol, and rendering less than a third the number of opinions per year as the modern Court.[2] Imagine Supreme Court justices living and working together in a boardinghouse; sitting during arguments not behind a long single bench but at individual desks; announcing the decisions of cases sometimes within days, and nearly always within two to three weeks, after they were argued; often not knowing when the official reports of their decisions would appear. Imagine a Court with no library, no secretaries or law clerks, no typewriters, no duplicating machines, no office space, no published docket, and no time limit for oral arguments. Imagine the duties of a Supreme Court justice as not only consist-

* Copyright © 1984 by G. Edward White. This article is a preliminary version of a chapter that will appear in the author's forthcoming volume of *History of the Supreme Court of the United States* (Oliver Wendell Holmes Devise Series, vol. 3). That volume will discuss the Marshall Court between 1815 and 1835.

** Professor of Law, University of Virginia. My thanks to Gerald Gunther, Charles Hobson, Stanley Katz, Paul Mishkin, Kent Newmyer, John Noonan, and David Sharpe for their help with various inquiries and their reading of earlier drafts, and to Joanne Schehl and Wendy Wysong for their research assistance.

[1] See infra note 11 and accompanying text.

[2] See infra notes 12-13 and accompanying text.

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ing of deciding cases in Washington, but also of traveling on horseback, in a stagecoach, or by steamboat from one United States Circuit Court to another to hear an additional set of cases. To summon up these images is to enter another world, but such a suspension of time and of belief is necessary to understand the Marshall Court. It was a Court of a different century, with a character fundamentally different from its modern counterpart.

This article details some of the features of the Marshall Court's working life that give it an aura of "differentness" to a modern observer. It considers only peripherally the most fundamental way in which the Marshall Court was different—the set of implicit starting assumptions about human nature and social organization from which its justices constructed their views of the world. My focus, for the most part, is on more tangible items: the routine of the Court's work; the justices' lodgings and working conditions; the manner by which cases came to the Court; and the process by which they were heard, decided, published, and disseminated. Such items may seem trivial or devoid of intellectual significance, but they assist the modern observer, perhaps more than do the "weightier" matters of doctrine and intellectual discourse, in recreating what it was like to hold the office of Supreme Court justice between 1815 and 1835. They also help remind us that the mundane and prosaic features of an age reveal that age's sensibility as fully as its grander achievements. My general purpose in this article is to shift attention, in characterizations of the Marshall Court, from constitutional doctrine (in the traditional sense of that phrase) to internal practice, and ultimately to the ideological atmosphere of which that practice was a part.[3]

I. The Setting

When the 1815 term began, the Supreme Court had no courtroom in which to conduct its business. L'Enfant's original plan for Washington had included a site, approximately equidistant be-

[3] Readers with a taste for metatheory, historiography, or just good old mainline epistemology may find much of the presentation here alarmingly "narrative" and "straightforward." I beg their indulgence. The technique employed throughout the first two parts of this article is to present textural evidence relatively unaccompanied by ruminations about the epistemological issue of what evidence "really means" in the interpretation of history. I will get to that issue, and related methodological and epistemological issues, before the volume of which this is a part is completed.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.58 - How to Think about the Dartmouth College Case

John S. Whitehead and Jurgen Herbst

ARTICLE	How to Think about the Dartmouth College Case
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Forum

How to Think about the Dartmouth College Case

Editor's note: The essays below are the product of an exchange between two scholars who have studied the impact of the Dartmouth College case on American higher education. The first essay is by John S. Whitehead, professor of history at the University of Alaska, Fairbanks; the second by Jurgen Herbst, professor of history and educational policy studies at the University of Wisconsin, Madison.

John S. Whitehead

When I wrote *The Separation of College and State* almost fifteen years ago my goal was to trace the origins of the distinction between "public" and "private" higher education in the United States. In the 1960s the terms were well recognized; no historian of education argued with that. But when did the distinction first become well recognized by educators and the general public alike? I was suspicious of the claims sometimes bandied about at private institutions like my own Yale that the distinction dated to the very origins of American higher education. Even a cursory review of the existing literature revealed that in the colonial and early postrevolutionary periods there was at least a quasi-public relationship in terms of support and control between such institutions as Yale, Harvard, and Columbia and the colonial and early state governments of Connecticut, Massachusetts, and New York.

I concluded in *The Separation* that "a distinction between private and public or state institutions was not commonly recognized before the Civil War." After the war, particularly in the 1870s, people such as Harvard's Charles Eliot advocated that "private" colleges should be totally separate from any connection with state government. Dependence

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on the state, Eliot asserted, was "a most insidious and irresistible enemy of republicanism." About the same time university presidents in states such as Wisconsin and Michigan finally convinced their legislatures to make annual appropriations to the "state university" and accept some type of permanent responsibility for these institutions.

To make my case that the public/private distinction was a *postwar* phenomenon, I had a major obstacle to overcome—the Dartmouth College case of 1819. Almost every previous historian of higher education from Merle Curti to Frederick Rudolph to Lawrence Cremin had asserted in one form or another that the Supreme Court's decision in that case encouraged the development of "private" colleges by protecting them from state encroachment. Private donors were thus stimulated to found colleges. Public universities would have to be direct creations of the state, not state transformations of existing colleges. Most historians saw the spread of "private" or denominational colleges after 1819 as proof of the encouraging effects of the Dartmouth decision. They were, however, somewhat undecided whether or not public or state universities were retarded by the decision. These institutions did not appear to spring up with the same vigor as their private counterparts. The traditional interpretation portrayed the Dartmouth College case as a major watershed in educational history; it clearly affirmed the existence of the public/private distinction by 1819.

After a close observation of the available documents on the case, I revised the traditional interpretation. The case, I concluded, was not a watershed; it did not affirm a widely accepted public/private distinction. In fact, I could find few people except Justices Joseph Story and John Marshall who were particularly interested in such a distinction. Shortly after winning the case the Dartmouth trustees asked the New Hampshire legislature to pay for the legal fees they incurred in fighting the state. Throughout the 1820s Dartmouth continued to seek an alliance with New Hampshire, offering state representation on its board of trustees in exchange for financial support.

Looking beyond Dartmouth, I observed that the Supreme Court decision received scant attention after it was issued. I discovered no private college promoters who cited the case in sponsoring new institutions. In fact, some denominational colleges quite eagerly sought state aid and often received it. There was little evidence that the states paid any more attention or accepted any greater responsibility for the so-called state universities than for the denominational colleges in their boundaries. In many states, particularly in the West, the state legislature performed no other function in the prewar period than to transfer federal land grants designated for higher education to a group of state university trustees. Only in South Carolina and Virginia did I find a continuous

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.59 - Slavery and Abolition Before the United States Supreme Court, 1820-1860

William M. Wiecek

ARTICLE	Slavery and Abolition Before the United States Supreme Court, 1820-1860
JOURNAL	The Journal of American History 65, no. 1 (1978)
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Slavery and Abolition Before the United States Supreme Court, 1820–1860

WILLIAM M. WIECEK

INVIDIOUS contemporary opinions of Chief Justice Roger B. Taney have mischievously obstructed our efforts to understand the policy-making role of the antebellum United States Supreme Court. The judgment of the "five slaveholders who compose a majority of the Court," snorted Horace Greeley after the decision in *Dred Scott* v. *Sandford*, "is entitled to just so much moral weight as would be the judgment of a majority of those congregated in any Washington bar-room."[1] "The name of Taney is to be hooted down the page of history," hooted Charles Sumner in an often-quoted anti-eulogy. "He administered justice at last wickedly, and degraded the judiciary of the country, and degraded the age."[2] Greeley, Sumner, and others thereby fixed a proslavery image on the late antebellum Court, based almost entirely on the *Dred Scott* case, that endured for half a century.

But in a landmark 1911 essay, Edward S. Corwin defended Taney's *Dred Scott* opinion as grounded in precedent.[3] Charles Warren attacked Taney's Republican critics in his magisterial 1923 history of the Supreme Court.[4] Charles Evans Hughes, Chief Justice of the United States, lent the prestige of his office to the rehabilitation of Taney's reputation in a widely noted 1931 dedicatory address.[5] Finally, in 1937, Felix Frankfurter interred the "five slaveholders and two or three doughfaces" image. He refuted the view of Taney as "the leader of a band of militant 'agrarian,' 'localist,' 'pro-slavery' judges," and scorned the "dramatic conflict between Darkness and Light: [John]

William M. Wiecek is professor of history in the University of Missouri.

[1] New York *Tribune*, March 7, 1857.
[2] *Congressional Globe*, 38 Cong., 2 Sess., 1012 (Feb. 23, 1865).
[3] Edward S. Corwin, "The Dred Scott Decision in the Light of Contemporary Legal Doctrines," *American Historical Review*, XVII (Oct. 1911), 52–69.
[4] Charles Warren, *The Supreme Court in United States History* (3 vols., Boston, 1923), III, 1–51.
[5] Charles Evans Hughes, "Roger Brooke Taney," *American Bar Association Journal*, XVII (Dec. 1931), 785–90.

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Marshall, the architect of a nation; Taney, the bigoted provincial and protector of slavery.''[6]

Liberated from its advocacy role of condemning or defending Taney, subsequent scholarship has sought an understanding of him, his Court, and the role they played in the slavery controversy. Whether from the warmly sympathetic vantage of the work of Carl Brent Swisher,[7] or the coldly critical view of Arthur Bestor,[8] or through exhaustive surveys of the *Dred Scott* decision itself,[9] scholars have provided an enduring description of the Supreme Court's policy-making role. But modern studies of the United States Supreme Court and its slavery-related cases sometimes share two characteristics that hamper a fuller understanding of the Court: their focus is the *Dred Scott* case, which they view at least implicitly as an aberration.[10] As an alternative, this essay adopts the historian's usual method of working from beginnings forward in time, searching for the Court's unfolding development of attitudes toward cases involving slavery and the abolition movement. Approached in this way, *Dred Scott* does not appear exceptional or anomalous; rather, it emerges as a natural result of judge-made doctrines and tendencies that had been developing for two decades.

The Marshall Court, unlike its successor, always displayed a delicate sense of its own limitations in slavery issues. The individual justices were not indifferent to slavery; quite the contrary. Several members of the Court, as well as Marshall's predecessor, Chief Justice John Jay, played prominent roles in organizations or episodes that figured in the slavery controversy. Before his elevation to the Court, Jay had been an active member of the New-York Society for Promoting the Manumission of Slaves and Protecting Such of Them as Have Been or

[6] Felix Frankfurter, *The Commerce Clause under Marshall, Taney and Waite* (Chapel Hill, 1937), 48. The ''five slaveholders and two or three doughfaces'' phrase was another Horace Greeley contribution. New York *Tribune*, March 5, 1857.

[7] Carl Brent Swisher, *Roger B. Taney* (New York, 1936); Carl Brent Swisher, ''Dred Scott One Hundred Years After,'' *Journal of Politics*, XIX (May 1957), 167–83; Carl Brent Swisher, ''Mr. Chief Justice Taney,'' Allison Dunham and Philip B. Kurland, eds., *Mr. Justice* (Chicago, 1964), 203–30; *History of the United States Supreme Court of the United States: The Taney Period, 1836–64* (New York, 1974).

[8] Arthur Bestor, ''State Sovereignty and Slavery: A Reinterpretation of Proslavery Constitutional Doctrine, 1846–1860,'' *Journal of the Illinois State Historical Society*, LIV (Summer 1961), 117–80.

[9] Walter Ehrlich, ''A History of the Dred Scott Case'' (doctoral dissertation, Washington University, St. Louis, 1950); Vincent C. Hopkins, *Dred Scott's Case* (New York, 1951).

[10] Exceptions to the second generalization are Corwin, ''Dred Scott Decision in the Light of Contemporary Legal Doctrines''; Bestor, ''State Sovereignty and Slavery''; Robert J. Harris, ''Chief Justice Taney: Prophet of Reform and Reaction,'' *Vanderbilt Law Review*, 10 (Feb. 1957), 227–57; Helen Tunnicliff Catterall, ''Some Antecedents of the Dred Scott Case,'' *American Historical Review*, XXX (Oct. 1924), 56–70; and Paul Finkelman, ''The Nationalization of Slavery: A Counterfactual Approach to the 1860s,'' *Louisiana Studies*, XIV (Fall 1975), 213–40.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.60 - Republicanism and the Idea of Party in the Jacksonian Period

Major Wilson

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REPUBLICANISM AND THE IDEA OF PARTY IN THE JACKSONIAN PERIOD

Major Wilson

There are many useful ways to think about party development in the United States during the Jacksonian period. In broadest terms party can be seen as a product of "modernization," a process characterized by an expanding market, the growing pluralism of interests, and the triumph of equalitarian ideals in the political sphere. As family and partnership ventures gave way to corporate forms of business, and as a myriad of new social organizations evinced the principle of voluntary association, new party organization arose to mobilize a mass electorate, isolate public issues, and choose government officials. Driven by what Richard Hofstadter called a "passion for organization," a new breed of professional politicians began to displace the older patrician leadership with a political machine of interchangeable parts and to embrace party in some ways as a good or end in itself. Successive presidential elections provided more immediate stimuli for party formation and served, by 1840, to draw rather clearly the lines of the second party system. There were elements of continuity with the earlier parties, but the new party system was deemed by many students to be different and distinctively modern.[1]

Along with new organization came the formulation of the modern "idea of a party system." According to Michael Wallace, Martin

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Mr. Wilson is a member of the Department of History at Memphis State University, Memphis, Tennessee.

William Nisbet Chambers, "Party Development and Party Action: The American Origins," *History and Theory*, 3 (number 1, 1963), 91-120; Roy F. Nichols, *The Invention of the American Political Parties* (New York 1967); Richard Hofstadter, *The Idea of a Party System: The Rise of Legitimate Opposition in the United States, 1780-1840* (Berkeley 1969); Lynn L. Marshall, "The Strange Stillbirth of the Whig Party," *American Historical Review*, 72 (Jan. 1967), 445-468; Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill 1966).

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Van Buren and key members of his Albany Regency contributed most to "the modern concept of a political party." In place of the old antiparty ideal, with its emphasis on a politics of consensus, they sought to justify a politics of conflict carried on through the competition of permanent party organizations. As in the economic marketplace, they seemed to suppose, the general interest or good of society would emerge in the political arena by the check and balance of separate and competing interests. Here was to be found, Hofstadter agreed, "a complete, articulate, quite sophisticated, quite modern defense of the political party"—one that was thenceforth to order political life in democratic America.[2]

It is easy, however, to overstate the modernity of the second party system. One recent historian has found many elements of an older, deferential style of politics mingled with new party organization. Nor, as the present essay argues, did the modern "idea" of party enjoy an unqualified triumph. To the contrary, recent scholarship on the concept of republicanism invites a closer look at the way the eighteenth-century Country outlook helped to shape the perceptions of party held by those involved in the process.[3] It has long been recognized that many Whigs continued to invoke the antiparty ideals of an earlier age, even as they were driven toward more effective party organization. Much less obvious, because relatively neglected by students of the period, was the effort of Democratic spokesmen to identify party organization with the old republican faith. Van Buren in particular attached great importance to this effort and devoted considerable attention to it. He responded to the claims of political foes with republican claims of his own; his history of parties reflected, in a systematic

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[2] Michael Wallace, "Changing Concepts of Party in the United States: New York, 1815-1828," *American Historical Review*, 74 (Dec. 1968), 453-491 (quotation, 453); Hofstadter, *Idea of a Party System*, 252.

[3] Ronald P. Formisano, "Political Character, Antipartyism and the Second Party System," *American Quarterly*, 21 (Winter 1969), 683-709; "Deferential-Participant Politics: The Early Republic's Political Culture, 1789-1840," *American Political Science Review*, 68 (June 1974), 473-487; *The Transformation of Political Culture: Massachusetts Parties, 1790s-1840s* (New York 1984). Two important historiographical essays by Robert E. Shalhope deal with the growing body of literature on republicanism in the last two decades: "Toward a Republican Synthesis: The Emergence of an Understanding of Republicanism in American Historiography," *William and Mary Quarterly*, 29 (Jan. 1972), 49-80; "Republicanism and Early American Historiography," *ibid.*, 39 (Apr. 1982), 334-356. Observing that most of the works dealt with the period before 1815, Shalhope called for historians to study the relevance of the concept for the later periods.

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.61 - John Randolph of Roanoke and the Politics of Slavery in the Early Republic

Nicholas Wood

ARTICLE	John Randolph of Roanoke and the Politics of Slavery in the Early Republic
JOURNAL	The Virginia Magazine of History and Biography 120, no. 2 (2012)
EXCERPT	Original journal pages 107-108
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NICHOLAS WOOD

John Randolph of Roanoke and the Politics of Slavery in the Early Republic

As was not uncommon, John Randolph of Roanoke felt so sick one night in early 1817 that he thought he was going to die. Laudanum helped numb the pain, but it also clouded his mind and apparently did little to improve his mood. He later recounted the episode to his godson: "I was quite delirious, but had method in my madness; for they tell me I ordered [my slave] Juba to load my gun, and to shoot the first 'doctor' that should enter the room." (Apparently no doctor entered the room.) Randolph's excesses, eccentricities, and fits of madness are well known to historians of the early republic: he brought his hunting dogs into the House of Representatives, caned another congressman in the Capitol's stairwell, and fought his first duel over the mispronunciation of a word and another against Secretary of State Henry Clay. Born into one of Virginia's most prominent families, and tracing his ancestry to Pocahontas and John Rolfe, he was haughty, aristocratic, and nursed grudges. His aggressive debating style led one observer to describe him as an "*intellectual butcher*," for "nothing delights him more than dissecting, cutting up and exposing to public gaze, the mangled carcasses of his political foes." His enemies concluded that his apparent impotence was evidence of "Divine Providence," for "[m]oral monsters cannot propagate." Randolph's personality, along with his uncompromising political principles, helped relegate him to the political margins for the quarter century after he broke with mainstream Republicans early in President Thomas Jefferson's second term.[1]

Aside from his eccentricities, Randolph is best remembered today for pioneering many of the tactics that came to characterize the "Slave Power."

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By the 1840s, the Slave Power—the political power wielded by slaveowners to expand and perpetuate slavery—was embodied by John C. Calhoun with his portrayal of slavery as a "positive good" and the pressure he put on northern congressmen to support proslavery policies in Congress. But during the first three decades of the nineteenth century, Randolph appeared to many of his contemporaries and subsequent historians to be the precocious pioneer of the Slave Power. Following the Missouri crisis of 1819–21, one New England Federalist portrayed Randolph and other Virginians as leading a "*crusade for unlimited slavery*." Worse yet, they seduced or intimidated the "weakest" and "most assailable" northern politicians into doing their bidding. It was imagined that slaveowners held banquets at which their northern "dough face" allies were given membership badges with the number 666—"the number of the beast"—to wear during their upcoming campaign to reopen the Atlantic slave trade and spread slavery throughout all of North America. Northern newspaper editors also imagined "secret sessions" in which Randolph browbeat dough faces into supporting proslavery policies. This image of Randolph as embodying the Slave Power became even more prominent following his death.[2]

Among historians, the connection between Randolph and the Slave Power was made most forcefully by Henry Adams. Adams was sympathetic to state rights as a political philosophy, but he correctly observed that by the mid-nineteenth century, "defiled by an unnatural union with the slave power, the doctrine became at last a mere phrase." Many slaveholders cynically appealed to state rights when they felt slavery was threatened, but "whenever a question arose of extending or protecting slavery, the slaveholders became friends of centralized power, and used that dangerous weapon with a kind of frenzy." In Adams's opinion, the "prostitution [of state rights] to the base uses of the slave power," was "begun by Randolph, and only at a later time consummated by Calhoun." Yet, even as Randolph pioneered proslavery politics he "loudly and pathetically declared himself a victim to slavery, a hater of the detestable institution, an *ami des noirs*." More recent historians have also been very critical of Randolph. Duncan Macleod attributes Randolph's political principles to a commitment to slavery: "Randolph emphasized state rights because of the existence of slavery and the need to protect it. He argued for strict construction because the growth of a nation-

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CHAPTER 9 | SCHOLARLY ARTICLE

A9.62 - The Missouri Compromise Reconsidered: Antislavery Rhetoric and the Emergence of the Free Labor Synthesis

Joshua Michael Zeitz

ARTICLE	The Missouri Compromise Reconsidered: Antislavery Rhetoric and the Emergence of the Free Labor Synthesis
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THE MISSOURI COMPROMISE RECONSIDERED: ANTISLAVERY RHETORIC AND THE EMERGENCE OF THE FREE LABOR SYNTHESIS

Joshua Michael Zeitz

In retrospect, the more that he pondered its dynamics, the more certain Thomas Jefferson grew that the Missouri Crisis had been orchestrated for political purposes by a group of sly Federalist operatives. "The Missouri question is a mere party trick," he wrote to Charles Pinckney, several months after Congress formulated the well known 36°30' line. "The leaders of federalism, defeated in their schemes of obtaining power by rallying partisans to the principle of monarchism . . . are taking advantage of the virtuous feelings of the people to effect a division of parties by a geographical line." Former President James Madison agreed that the proponents of slavery restriction shared "an object very different from the welfare of the slaves," while his successor and Virginia neighbor, President James Monroe, was certain that the sole intent of the antislavery forces was "undoubtedly to acquire power."[1] By December 1820 Jefferson could

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[1] Thomas Jefferson to Charles Pinckney, Sept. 30, 1820, in *The Writings of Thomas Jefferson*, ed. Albert Ellery Bergh (20 vols., Washington, DC, 1907), XV, 281; James Madison to James Monroe, Feb. 10, 1820, in *The Writings of James Madison*, ed. Gaillard Hunt (9 vols., New York, 1900-10), IX, 21; Monroe to Jefferson, Feb. 7, 1820, Monroe to

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assure his old friend, Marquis de Lafayette, that the debate had not been "a moral question, but one merely of power." Eight months later he detected no more lasting harm done than that the episode had "given resurrection to the Hartford Convention men." Some three years after the crisis had passed, the sage of Monticello remained indignant that "the people of the North [had been] blindfolded into the snare [and had] followed their leaders for awhile with a zeal truly moral and laudable, until they became sensible" that the Missouri question had been "got up" under a "false front."[2]

The few professional historians who have closely examined the subject more or less accept Jefferson's interpretation of the Missouri Crisis, characterizing antiextensionists as either Federalists in Republican clothing, apostate Republicans, or some other breed of "Easterner" with over-arching political motive.[3] Although historians have conceded that some and perhaps many of the restrictionists of 1820 were opposed to slavery on moral grounds, they generally fail to clarify the nature of that "moral" objection and ultimately identify politics of some sort as the

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Jefferson, May 1820, in *The Writings of James Monroe*, ed. Stanislaus Murray Hamilton (7 vols., New York, 1902), VI, 114 (quotation), 121.

[2] Jefferson to John Holmes, Apr. 22, 1820, Jefferson to the Marquis de La Fayette, Dec. 26, 1820, Jefferson to Henry Dearborn, Aug. 17, 1821, Jefferson to La Fayette, Nov. 4, 1823, all in Bergh, ed., *The Writings of Thomas Jefferson,* XV, 248, 301, 329, 492.

[3] One variation on this theme proposes the primacy of economic policy and explains objections to Missouri's unqualified admission as closely related to the convergence of northern interests around the nascent (and still nameless) American System. Following this line of thought is the only modern, book-length account of the Missouri Compromise, Glover Moore, *The Missouri Controversy, 1819-1821* (Lexington, KY, 1953). Moore observes that "the desire of each great section of the nation to spread its own type of civilization over the western country" as "one of the fundamental causes" of the episode. Nonetheless, his work focuses almost exclusively to the political intrigues of Federalists and De Witt Clinton Republicans, and on the close association of tariff politics and sectional antagonisms. Another variation of the political interpretation contends that the Federalists never seriously entertained illusions of producing a lasting fissure in the ranks of the northern wing of the Republican Party. By this account they hoped merely to manipulate the slavery issue enough to recoup a level of political respectability not enjoyed since the years prior to the fateful Hartford Convention. See Shaw Livermore, Jr., *The Twilight of Federalism: The Disintegration of the Federalist Party, 1815-1830* (Princeton, 1962), 88-112. Livermore asserts that "[m]ost northern Federalists, of course, sincerely deplored slavery. It would have been strange if the Federalists had not seized upon the Missouri Question, but this is not to say that the Federalists actually hatched and nurtured the conflict" (89). Livermore suggests a confluence of natural (but unspecified) Federalist opposition to slavery and the possibility the crisis offered to rehabilitate the much maligned party.

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